

OVERLAND PARK BUILDING, FIRE & ZONING CODE

2024 code amendments adopted in 2026 • zoning excerpts • parking

PROPERTY	9401 Nieman Road, Overland Park, Kansas 66214
CURRENT THROUGH	July 12, 2026
ACTIVE-SET STATUS	Current-law set; enacted addenda included; withdrawn sources excluded
SCOPE	Official local amendments and selected development-code chapters relevant to a fourplex

Use rule: Retrieve the controlling text, confirm the trigger and currentness, then obtain Kansas counsel review before enforcement, filing, denial, accommodation decisions, or material lease changes.

This compilation is a research and retrieval aid, not legal advice, a title opinion, or a substitute for official current law. Summaries and applicability labels are navigation aids; the appended official text controls.

How this bundle should be used

TYPE	HOW TO USE IT
BINDING	Statute, regulation, ordinance, or controlling court decision. Confirm effective date and later history.
CONDITIONAL	Binding only when a stated trigger exists—such as HUD assistance, a federally backed mortgage, or third-party management.
GUIDANCE	Agency or court-administration material. Useful operationally but not itself controlling law unless incorporated.
PROPOSED	Monitoring only. Do not apply as current law.
WITHDRAWN	Excluded from this active set. Keep only in a separately labeled historical archive.

- These city PDFs contain local amendments. The incorporated copyrighted ICC base codes are not reproduced; consult the officially adopted base text when an amendment depends on it.
- R-3 zoning appears plausible but is not verified to the parcel. Confirm official zoning and lawful nonconforming status before applying district excerpts.
- Fire/open-flame, building, electrical, mechanical, plumbing, fuel-gas and energy rules can depend on occupancy classification and the scope/date of work.

Text-integrity rule: appended official PDFs are preserved as retrieved. The front matter adds navigation only and does not alter statutory, regulatory, judicial, or municipal wording.

Source inventory and page map

13 official source documents are included. Page numbers below refer to the finished merged PDF. Use the PDF bookmarks or search the exact citation.

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TITLE 16 - BUILDINGS AND CONSTRUCTION

16.300.100 BUILDING CODE - INCORPORATION

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16.300.100 BUILDING CODE - ADOPTION

The **2024 International Building Code**, as published by the International Code Council, Inc., is hereby adopted by reference as the Building Code of the City of Overland Park, save and except such parts or portions thereof as are specifically deleted, added or changed in the City Code. At least one copy shall be marked "Official Copy as Incorporated by Ordinance No. BC-3499" and filed with the City Clerk for inspection by the public during reasonable business hours, with all sections or portions thereof intended to be deleted, added or changed clearly marked to show any deletions, additions or changes.

(History: Ord. No. BC-3499, §2, 2026; Ord. No. BC-3286 §1, 2020; Ord. No. BC-2936 §1, 2012; Ord. No. BC-2635 §1, 2007; Ord. No. BC-2459 §1, 2004; Ord. No. BC-2237 §1, 2001; Source or prior law: 16.04.300; Ord. No. BC-2013 §1, 97; Ord. No. BC-1824 §1, 94)

16.300.101.1

Section 101.1 of the *International Building Code* is hereby amended to read as follows:

101.1 Title. These regulations and the deletions, additions and changes contained in the OPMC Chapter 16.300 through 16.380, shall be known as the *Building Code of the City of Overland Park*, hereinafter referred to as "this code" or "the Building Code."

(History: Ord. No. BC-3499 §3, 2026; Ord. BC-3286 §2, 2020; Ord. BC-2936 §2, 2012; BC-2635 §2, 2007; BC-2459 §2, 2004; BC-2237 §1, 2001; Source or prior law: 16.04.320; BC-2013 §2, 97; BC-1824 §2, 94)

16.300.101.4

Section 101.4 of the *International Building Code* is hereby amended to read as follows:

101.4 Referenced codes. The other codes specified in Sections 101.4.1 through 101.4.7 and referenced elsewhere in this code shall be considered to be part of the requirements of this code to the prescribed extent of each such reference.

101.4.1 Gas. The provisions of the *International Fuel Gas Code* shall apply to the installation of gas piping from the point of delivery, gas appliances and related accessories as covered in this code. These requirements apply to gas piping systems extending from the point of delivery to the inlet connections of appliances and the installation and operation of residential and commercial gas appliances and related accessories.

(History: Ord. No. BC-3499 §4, 2026; Ord. No. BC-3466 §1, 2024; Ord. No. BC-3286 §3, 2020; Ord. No. BC-2936 §3, 2012; Ord. No. BC-2635 §3 & 4, 2007; Ord. No. BC-2459 §4, 2004; Ord. No. BC-2237 §1, 2001)

16.300.103.1

Section 103.1 of the *International Building Code* is hereby amended to read as follows:

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(History: Ord. No. BC-3499 §5, 2026; Ord. No. BC-3286 §4, 2020; Ord. No. BC-2936 §4, 2012; Ord. No. BC-2635 §6, 2007; Ord. No. BC-2459 §5, 2004; Ord. No. BC-2237 §1, 2001; Source or prior law: 16.04.335; Ord. No. BC-2013 §3, 97; Ord. No. BC-1824 §3, 94)

16.300.103.2 (Deleted)

Section 103.2 of the *International Building Code* is hereby intentionally deleted and omitted.

(History: Ord. No. BC-3499 §6, 2026; Ord. No. BC-3286 §5, 2020; Ord. No. BC-2936 §5, 2012; Ord. No. BC-2635 §7, 2007; Ord. No. BC-2459 §6, 2004; Ord. No. BC-2237 §1, 2001)

16.300.104.10

Section 104.10 of the *International Building Code* is hereby added to read as follows:

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(History: Ord. No. BC-3499 §7, 2026)

16.300.105.1

Section 105.1 of the *International Building Code* is hereby amended to read as follows:

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(History: Ord. No. BC-3499 §8, 2026; Ord. No. BC-3286 §6, 2020; Ord. No. BC-2936 §6, 2012; Ord. No. BC-2635 §8 & 9, 2007; Ord. No. BC-2459 §7, 2004; Ord. No. BC-2338 §1, 2001)

16.300.105.2

Section 105.2 of the *International Building Code* is hereby amended to read as follows:

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(History: Ord. No. BC-3499, §9, 2026; Ord. No. BC-3286 §7, 2020; Ord. No. BC-2936 §7, 2012; Ord. No. BC-2635 §10, 2007; Ord. No. BC-2459 §8, 2004; Ord. No. BC-2237 §1, 2001; Source or prior law: 16.04.345 (part); Ord. No. BC-1824 §5, 94)

16.300.105.3

Section 105.3 of the *International Building Code* is hereby amended to read as follows:

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(History: Ord. No. BC-3499 §10, 2026; Ord. BC-3466 §2, 2024; Ord. BC-3286 §8, 2020; Ord. BC-2936 §8, 2012; BC-2635 §§11, 12, 13, 14,15 & 16, 2007; §BC-2578 §§1 & 2, 2005; BC-2459 §§9, 10, 11, 12, 13, 14 & 187, 2004; BC-2237 §1, 2001; Source or prior law: 16.04.046 (part), 16.04.350, 16.04.351, 16.04.365, 16.04.370 (part), 16.04.375, 16.04.380 (part), 16.04.185 (part) & 16.04.415; 16.24.020, 16.24.030, 16.24.040, 16.24.050 & 16.24.060 (part); BC-2171 §1, 99; BC-2013 §§4 & 6, 97; BC-2002 §1, 96; BC-2001 §1, 96; BC-1940 §1, 95; BC-1824 §§6, 7, 10, 11, 12, 13, 14, 21, 94; 7.52.032 (part); SS-1701 §1, 91; SM-1553 §1, 88; SM-1364§1, 86; SM-557 §§2, 3, 4, 5 & 6, 69)

16.300.107.1

Section 107.1 of the *International Building Code* is hereby amended to read as follows:

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(History: BC-3499 §11, 2026; Ord. BC-3286 §11, 2020; Ord. BC-3234 §1, 2019; Ord. BC-2936 §11, 2012; BC-2635 §20, 23 & 24, 2007; BC-2459 §19 & 20, 2004; BC-2237 §1, 2001; Source or prior law: 16.04.418 & 16.04.430; BC-1824 §§22 & 26, 94)

16.300.109.2

Section 109.2 of the *International Building Code* is hereby amended to read as follows:

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History: Ord. No. BC-3499 §12, 2026; Ord. CM-3433 §3, 2023; Ord. BC-3286 §10, 2020; Ord. BC-2936 §10, 2012; BC-2635 §19, 2007; BC-2459 §16, 2004; BC-2237 §1, 2001; Source or prior law: 16.04.380 (part); BC-1824 §13, 94; 16.04.385 (part); BC-1824 §14, 94)

16.300.113.1

Section 113.1 of the *International Building Code* is hereby amended to read as follows:

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(History: Ord. No. BC-3499 §13, 2026; Ord. BC-3286 §11, 2020; Ord. BC-3234 §1, 2019; Ord. BC-2936 §11, 2012; BC-2635 §20, 23 & 24, 2007; BC-2459 §19 & 20, 2004; BC-2237 §1, 2001; Source or prior law: 16.04.418 & 16.04.430; BC-1824 §§22 & 26, 94)

16.300.113.3

Section 113.3 of the *International Building Code* is hereby amended to read as follows:

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(History: Ord. No. BC-3499 §14, 2026; Ord. BC-3286 §12 , 2020; Ord. BC-3234 §2, 2019)

16.300.114.2

Section 114.2 of the *International Building Code* is hereby amended to read as follows:

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(History: Ord. No. BC-3499 §15, 2026)

16.300.114.3

Section 114.3 of the *International Building Code* is hereby amended to read as follows:

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(History: Ord. No. BC-3499 §16, 2026; Ord. BC-3286 §13, 2020; Ord. BC-2936 §13, 2012; BC-2635 §26, 2007; BC-2459 §22, 2004; BC-2237 §1, 2001)

16.300.114.4

Section 114.4 of the *International Building Code* is hereby amended to read as follows:

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(History: Ord. No. BC-3499 §17, 2026; Ord. BC-3286 §14, 2020; Ord. BC-2936 §14, 2012; BC-2635 §27, 2007; BC-2459 §23, 2004; BC-2237 §1, 2001; Source or prior law: 7.52.040; SS-1701 §1, 91; SS-878 §2, 76; SS-183 §4, 63; 16.02.050; BC-838 §6, 75; 16.04.346 (part); BC-2002 §1, 96; BC-1940 §1, 95; BC-1824 §6, 94; 16.04.405; BC-1824 §17, 94)

16.300.114.5

Section 114.5 of the *International Building Code* is hereby added to read as follows:

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History: BC-3499 §18, 2026; BC-3286 §15, 2020; Ord. BC-2936 §15, 2012; BC-2635 §28, 2007; BC-2459 §24, 2004; BC-2237 §1, 2001)

16.300.308.2.4

Section 308.2.4 of the International Building Code is hereby amended to read as follows:

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(History: Ord. No. BC-3499 §19, 2026; Ord. No. BC-3286 §16, 2020)

16.300.308.3.2

Section 308.3.2 of the *International Building Code* is hereby amended to read as follows:

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(History: Ord. No. BC-3499 §20, 2026; Ord. BC-3286 §17, 2020)

16.300.310.4.1

Section 310.4.1 of the *International Building Code* is hereby amended to read as follows:

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(History: Ord. No. BC-3499 §21, 2026; Ord. BC-3286 §18 , 2020)

16.300.503.1.4

Section 503.1.4 of the *International Building Code* is hereby amended to read as follows:

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(History: Ord. No. BC-3499 §22, 2026; Ord. BC-3286 §20, 2020)

16.300.706.1.1

Section 706.1.1 of the *International Building Code* is hereby amended to read as follows:

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(History: Ord. No. BC-3499 §23, 2026; Ord. BC-3286 §21, 2020)

16.300.903.3.5.3

Section 903.3.5.3 of the *International Building Code* is hereby added to read as follows:

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(History: Ord. No. BC-3499 §24, 2026; Ord. BC-3286 §22, 2020; Ord. BC-2936 §168, 2012; BC-2635 §29, 2007)

16.300.903.3.9

Section 903.3.9 of the *International Building Code* is hereby amended to read as follows:

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(History: Ord. No. BC-3499 §25, 2026)

16.300.903.4

Section 903.4 of the *International Building Code* is hereby amended to read as follows:

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(History: Ord. No. BC-3499 §26, 2026; Ord. BC-3286 §23, 2020; Ord. BC-2936 §17, 2012; BC-2635 §30, 2007)

16.300.905.4

Section 905.4 of the *International Building Code* is hereby amended to read as follows:

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(History: Ord. No. BC-3499 §27, 2026; Ord. BC-3286 §24, 2020)

16.300.907.6.6

Section 907.6.6 of the International Building Code is hereby amended to read as follows:

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(History: Ord. No. BC-3499 §28, 2026; Ord. No. BC-3286 §27, 2020)

16.300.912.3

Section 912.3 of the *International Building Code* is hereby amended to read as follows:

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(History: Ord. No. BC-3499 §29, 2026)

16.300.913.4

Section 913.4 of the *International Building Code* is hereby amended to read as follows:

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(History: Ord. No. BC-3499 §30, 2026; Ord. No. BC-3286 §28, 2020; Ord. No. BC-2936 §22, 2012; Ord. No. BC-2635 §36, 2007 part)

16.300.1010.6

Section 1010.6 of the *International Building Code* is hereby added to read as follows:

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(History: Ord. No. BC-3499 §31, 2026; Ord. No. BC-3286 §30, 2020)

16.300.1705.5.4

Section 1705.5.4 of the *International Building Code* is hereby added.

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(History: Ord. No. BC-3499 §32, 2026)

16.33.2900 (Deleted)

Chapter 29 of the *International Building Code* is hereby intentionally deleted and omitted. (See the International Plumbing Code.)

(History: Ord. No. BC-3499 §33, 2026; Ord. No. BC-3286 §34, 2020; Ord. No. BC-2936 §25, 2012)

16.300.313.1

Section 3103.1 of the International Building Code is hereby amended to read as follows:

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(History: Ord. No. BC-3499 §34, 2026; Ord. No. BC-3286 §36, 2020; Ord. No. BC-2936 §26, 2012; Ord. No. BC-2635 §42, 2007; Ord. No. BC-2459 §31, 2004; Ord. No. BC-2237 §1, 2001; Source or prior law: 16.04.630 (part); Ord. No. BC-2013 §17, 97)

16.300.3303.8

Section 3303.8 of the *International Building Code* is hereby added to read as follows:

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(History: Ord. No. BC-3499 §35, 2026; Ord. No. BC-3286 §37, 2020; Ord. No. BC-2936 §27, 2012; Ord. No. BC-2635 §43, 2007)

TITLE 16 - BUILDINGS AND CONSTRUCTION

16.305 EXISTING BUILDING CODE

Contents:

16.305.100 International Existing Building Code – Adoption.

16.305.101.1

16.305.101.7

16.304.103 (Deleted)

16.305.201.5

16.305.303

16.305.100 International Existing Building Code – Adoption.

The **2024 International Existing Building Code**, as published by the International Code Council, Inc., is hereby adopted by reference as the Existing Building Code of the City of Overland Park, save and except such parts or portions thereof as are specifically deleted, added or changed in the City Code. At least one copy shall be marked “Official Copy as Incorporated by Ordinance No. BC-3499” and filed with the City Clerk for inspection by the public during reasonable business hours, with all sections or portions thereof intended to be deleted, added or changed clearly marked to show any deletions, additions or changes.

(History: Ord. No. BC- 3499, §37, 2026; Ord. No. BC-3286 §38, 2020; Ord. No. BC-2936 §168, 2012; Ord. No. BC-2635 §46, 2007)

16.305.101.1

Section 101.1 of the *International Existing Building Code* is hereby amended to read as follows:

101.1 Title These regulations shall be known as the Existing Building Code of the City of Overland Park, hereinafter referred to as “this code.”

(History: Ord. No. BC-3499, §38, 2026; Ord. No. BC-3286 §39, 2020; Ord. No. BC-2936 §168, 2012; Ord. No. BC-2635 §46, 2007)

16.305.101.7

Section 101.7 of the *International Existing Building Code* is hereby added to read as follows:

101.7 Administration and enforcement. The administration and enforcement provisions for this code shall be those provisions contained in Sections 103 through 116 of the International Building Code in OPMC 16.300 et seq.

(History: Ord. No. BC-3499, §39, 2026; Ord. No. BC-3286 §40, 2020)

16.304.103 (Deleted)

Sections 103 through 117 of the *International Existing Building Code* are hereby intentionally deleted and omitted. *(See Violations, Notices and Orders, Unsafe Structures and Equipment, Emergency Measures, and Demolition provisions set forth in OPMC Chapter 7.25.)*

(History: Ord. No. BC-3499, §40, 2026; Ord. No. BC-3286 §41, 2020; Ord. No. BC-2936 §168, 2012; Ord. No. BC-2635 §48, 2007)

16.305.201.5

Section 201.5 of the International Existing Building Code is hereby added to read as follows:

16.305.201.5 Interpretations of definitions. For purposes of interpretation of the definitions of Existing Building and Existing Structure in Section 202, the phrase “a legal building permit” shall be interpreted to mean one for which a final certificate of occupancy has been issued.

(History: Ord. No. BC-3499, §55, 2026; Ord. No. BC-3286 §42, 2020)

16.305.303

Section 303 of the International Existing Building Code is hereby amended to read as follows:

303.1 General This section applies to the design and construction of storm shelters for the purpose of providing protection during tornadoes, hurricanes and other severe windstorms.

303.1.1 Construction. Storm shelters shall be constructed in accordance with Section 423 of the International Building Code and ICC 500 and shall be designated as hurricane shelters, tornado shelters or combined hurricane and tornado shelters.

Exception: Storm shelters added to critical emergency operations facilities or Group E occupancies are not required to comply with the travel distance in Section 423.4.2 or 423.5.2 of the International Building Code.

303.2 Addition to a Group E occupancy. Where an addition is added to an existing Group E occupancy, and the addition includes a gymnasium, located in an area where the shelter design wind speed for tornadoes is 250 mph (402.3 km/h) in accordance with Figure 304.2(1) of ICC 500 and the occupant load in the addition is 50 or more, the addition shall have a storm shelter constructed in accordance with ICC 500.

Exceptions:

1. Group E day care facilities.
2. Group E occupancies accessory to places of religious worship.
3. Additions meeting the requirements for shelter design in ICC 500.

303.2.1 Design occupant capacity. The required design occupant capacity of the storm shelter shall include all buildings on the site, and shall be the total occupant load of the classrooms, vocational rooms and offices in the Group E occupancy. The code official may accept the student and staff projections that the school district has tabulated and presented to the School Board.

Exception: Where approved by the code official, the required design occupant capacity of the shelter shall be permitted to be reduced by the design occupant capacity of any existing storm shelters on the site.

303.2.2 Water closets and lavatories. Water closets and lavatories provided for additions to a Group E occupancy and required by ICC 500 shall be provided within the shelter or within the building served by the shelter.

303.3 Occupancy classification. The occupancy classification for storm shelters shall be determined in accordance with Section 423.3 of the *International Building Code*.

(History: Ord. No. BC-3499, §56, 2026; Ord. No. BC-3286 §43, 2020)

TITLE 16 - BUILDINGS AND CONSTRUCTION

16.320 FIRE CODE

Contents:

16.320.100 Fire Code - Adoption.

16.320.101.1

16.320.101.2

16.320.103.1

16.320.104.3

16.320.105.1

16.320.105.5.1 (Deleted)

16.320.105.5.22

16.320.105.5.36

16.320.105.5.51

16.320.105.6 (Deleted)

16.320.112.1

16.320.112.2 (Deleted)

16.320.113.4

16.320.114.4 (Deleted)

16.320.307.1.1

16.320.310.7

16.320.315.6 (Deleted)

16.320.320.4.2.1

16.320.403.11.3

16.320.404.4

16.320.503.3

16.320.503.6

16.320.505.1

16.320.505.2

16.320.506.2

16.320.507.1

16.320.507.5

16.320.509.1

16.320.903.4
16.320.905.4
16.320.907.6.6
16.320.912.3
16.320.913.4
16.320.1103.2 (Deleted)
16.320.4104.2
16.320.5601.1
16.320.5604.1
16.320.5704.2.13
16.320.D103.1 (Deleted)
16.320.D107.1

16.320.100 Fire Code - Adoption.

The **2024 International Fire Code**, as published by the International Code Council, Inc., is hereby adopted by reference as the Fire Code of the City of Overland Park, save and except such parts or portions thereof as are specifically deleted, added or changed in the City Code. At least one copy shall be marked "Official Copy as Incorporated by Ordinance No. BC-3499" and filed with the City Clerk for inspection by the public during reasonable business hours, with all sections or portions thereof intended to be deleted, added or changed clearly marked to show any deletions, additions or changes.

(History: Ord. No. BC-3499, §58, 2026; Ord. No. BC-3286 §91, 2020; Ord. No. BC-2936 §62, 2012; Ord. No. BC-2635 §75, 2007; Ord. No. BC-2459 §60, 2004; Ord. No. BC-2237 §3, 2001)

16.320.101.1

Section 101.1 of the *International Fire Code* is hereby amended to read as follows:

101.1 Title. These regulations shall be known as the Fire Code of the City of Overland Park, Kansas, hereinafter referred to as "this code."

(History: Ord. No. BC-3499, §59, 2026; Ord. No. BC-3286 §92, 2020; Ord. No. BC-2936 §63, 2012)

16.320.101.2

Section 101.2 of the *International Fire Code* is hereby amended to read as follows:

101.2 Scope. This code establishes regulations affecting or relating to structures, processes, premises and safeguards regarding all of the following:

1. The hazard of fire and explosion arising from the storage, handling or use of structures, materials or devices.
2. Conditions hazardous to life, property or public welfare in the occupancy of structures or premises.
3. Fire hazards in the structure or on the premises from occupancy or operation.
4. Matters related to the construction, extension, repair, alteration or removal of fire protection systems.
5. Conditions affecting the safety of fire fighters and emergency responders during emergency operations.

101.2.1 Appendices. Provisions in the appendices shall not apply unless specifically adopted.

101.2.1.1 Appendices adopted. The following appendices are adopted as part of this code:

Appendix B Fire-Flow Requirements for Buildings

Appendix C Fire Hydrant Locations and Distribution

Appendix D Fire Apparatus Access Roads

Appendix I Fire Protection Systems-Noncompliant Conditions

Appendix N Indoor Trade Shows and Exhibitions

Appendix O Valet Trash and Recycling Collection in Group R-2 Occupancies

(History: Ord. No. BC-3499, §60, 2026; Ord. No. BC-3286 §93, 2020; Ord. No. BC-2936 §64, 2012; Ord. No. BC-2635 §76, 2007; Ord. No. BC-2459 §61, 2004; Ord. No. BC-2237 §3, 2001)

16.320.103.1

Section 103.1 of the *International Fire Code* is hereby amended to read as follows:

103.1 Creation of agency. The department of fire prevention is hereby created and the official in charge thereof shall be known as the fire code official. The function of the agency shall be the implementation, administration and enforcement of the provisions of this code.

(History: Ord. No. BC-3499, §61, 2026)

16.320.104.3

Section 104.3 of the *International Fire Code* is hereby amended to read as follows:

104.3 Applications and permits. The fire code official is authorized to receive applications, review construction documents and , issue permits for operations regulated by this code, inspect the premises for which such permits have been issued and enforce compliance with the provisions of this code.

(History: Ord. No. BC-3499, §62, 2026; Ord. No. BC-3286 §95, 2020; Ord. No. BC-2936 §66, 2012; Ord. No. BC-2635 §79, 2006)

16.320.105.1

Section 105.1 of the *International Fire Code* is hereby amended to read as follows:

105.1 General Permits shall be in accordance with Sections 105.1.1 through 105.6.25.

105.1.1 Permits required. Permits required by this code shall be obtained from the Overland Park Fire Department. Permit fees, if any, shall be paid prior to issuance of the permit. Issued permits shall be kept on the premises designated therein at all times and shall be readily available for inspection by the Fire Department.

Exception: Permit applications for fireworks permits shall be submitted to the City Clerk as required by O.P.M.C. 5.40.

105.1.2 Types of permits. Operational permit. An operational permit allows the applicant to conduct an operation or a business for which a permit is required by Section 105.5 for either:

- 1.1. A prescribed period
- 1.2. Until renewed or revoked

(History: Ord. No. BC-3499, §63, 2026; Ord. No. BC-3286 §96, 2020; Ord. No. BC-2936 §67, 2012; Ord. No. BC-2635 §81, 2007; Ord. No. BC-2459 §64, 2004; Ord. No. BC-2237 §3, 2001; Source or prior law: 16.14.220 (part); Ord. No. BC-2013 §80, 97; Ord. No. BC-1824 §117, 94)

16.320.105.5.1 (Deleted)

The following Sections of the *International Fire Code* are hereby deleted: Sections 105.5.1 through 105.5.15, Sections 105.5.17 through 105.5.21, Sections 105.5.23 through 105.5.35, Sections 105.5.37 through 105.5.43 Sections 105.5.45 through 105.5.50, Sections 105.5.52 through 105.5.57.

(History: Ord. No. BC-3499, §64, 2026; Ord. No. BC-3286 §98, 2020; Ord. No. BC-2936 §69, 2012; Ord. No. BC-2635 §84, 2007)

16.320.105.5.22

Section 105.5.22 of the *International Fire Code* is hereby amended to read as follows:

105.5.22 Hazardous Materials. Where required by the Fire Code Official an operational permit is required to store, transport on site, dispense, use or handle extremely hazardous substances. “Extremely Hazardous Substances (EHS) Facilities” are defined as facilities subject to the provisions of Superfund Amendments and Reauthorization Act of 1986 (SARA TITLE III), Section 302, for storing, transporting, dispensing, using, or handling of listed chemicals in excess of their threshold planning quantities (TPQ).

(History: Ord. No. BC-3499, §65, 2026; Ord. No. BC-3286 §99, 2020; Ord. No. BC-2936 §70, 2012; Ord. No. BC-2635 §85, 2007)

16.320.105.5.36

Section 105.5.36 of the *International Fire Code* is hereby amended to read as follows:

105.5.36 Open burning. An operational permit is required for the kindling or maintaining of an open fire or a fire on any public street, alley, road, or other public or private ground. Instructions and stipulations of the permit shall be adhered to. Applications for open burning shall be submitted in writing to the Overland Park Fire Department, before the fire is set and shall be in such form and contain such information as required by the Fire Department. Such applications shall contain information regarding the purpose of the proposed burning, the nature and quantities of material to be burned, the time and date when such burning will take place, the location of the burning site, and the name and phone number of the person responsible for supervision of the burning.

Exception: Recreational fires.

(History: Ord. No. BC-3499, §66, 226; Ord. No. BC-3286 §100, 2020)

16.320.105.5.51

Section 105.5.51 of the *International Fire Code* is hereby amended to read as follows:

105.5.51 Temporary membrane structures, special event structures, tents and canopies. An operational permit is required to operate an air-supported temporary membrane structure, a temporary special event structure or a tent having an area in excess of 900 square feet (83.7 m²), or a canopy in excess of 900 square feet (83.7 m²).

Exceptions:

1. Tents used exclusively for recreational camping purposes.
2. Tents, curtains and extensions attached thereto, when used for funeral services.
3. Fabric canopies open on all sides, which comply with all of the following:
4. Individual canopies having a maximum size of 900 square feet (83.7 m²).
5. The aggregate area of multiple canopies placed side by side without a fire break clearance of not less than 12 feet (3658 mm) shall not exceed 900 square feet (83.7 m²) total.
6. A minimum clearance of 12 feet (3658 mm) to structures and other tents shall be provided.

(History: Ord. No. BC-3499, §67, 2026; Ord. No. BC-3286 §101, 2020)

16.320.105.6 (Deleted)

Section 105.6 of the *International Fire Code* is hereby intentionally deleted and omitted.

(History: Ord. No. BC-3499, §68, 2026; Ord. No. BC-3286 §102, 2020; Ord. No. BC-2936 §73, 2012; Ord. No. BC-2635 §88, 2007)

16.320.112.1

Section 112.1 of the *International Fire Code* is hereby amended to read as follows:

112.1 Board of appeals. An application for appeal of orders, decisions or determinations made by the fire code official shall be made to the Code Board of Appeals as established in OPMC Section 16.300.113.1. The appeal shall be based on a claim that the intent of this code or the rules legally adopted hereunder has been incorrectly interpreted, the provisions of this code do not fully apply, or an equivalent method of protection or safety is proposed. The Code Board of Appeals shall not have authority to waive requirements of this code.

(History: Ord. No. BC-3499, §69, 2026; Ord. No. BC-3286 §104, 2020)

16.320.112.2 (Deleted)

Sections 112.2 through 112.4 of the *International Fire Code* are hereby intentionally deleted and omitted.

(History: Ord. No. BC-3499, §70, 2026; Ord. No. BC-3286 §105, 2020; Ord. No. BC-2936 §168, 2012; Ord. No. BC-2635 §90, 2007; Ord. No. BC-2459 §70, 2004; Ord. No. BC-2237 §3, 2001; Source or prior law: 16.14.230 (part); Ord. No. BC-1824 §118, 94)

16.320.113.4

Section 113.4 of the *International Fire Code* is amended to read as follows:

113.4 Violation penalties. Persons who shall violate a provision of this code, or OPMC Chapters 16.300 through 16.380, or shall fail to comply with any of the requirements thereof or who shall erect, install, alter, repair or do work in violation of the approved construction documents or directive of the Fire Code Official, or of a permit or certificate used under provisions of this code, shall be subject to penalties as prescribed by law, or other references incorporated, is guilty of a public offense as provided in OPMC Section 1.12.010.

113.4.1 Abatement of violation. In addition to the imposition of the penalties herein described, the Fire Code Official is authorized to institute appropriate action to prevent unlawful construction or to restrain, correct or abate a violation; or to prevent illegal occupancy of a structure or premises; or to stop an illegal act, conduct of business or occupancy of a structure on or about any premises.

(History: Ord. No. BC-3499, §73, 2026; Ord. No. BC-3286 §106, 2020)

16.320.114.4 (Deleted)

Section 114.4 of the *International Fire Code* is hereby intentionally deleted and omitted.

(History: Ord. No. BC-3499, §74, 2026; Ord. No. BC-3286 §107, 2020)

16.320.307.1.1

Section 307.1.1 of the *International Fire Code* is hereby amended to read as follows:

307.1.1 Prohibited open burning. Open burning, bonfires, recreational fires or portable outdoor fireplaces, shall be prohibited when atmospheric conditions or local circumstances make such fires hazardous (determined using information from the National Weather Service or the National Oceanic and Atmospheric Administration (NOAA).

Exception: Prescribed burning for the purpose of reducing the impact of wildland fire when authorized by the fire code official.

(History: Ord. No. BC-3499, 75, §2026; Ord. No. BC-3286 §108, 2020; Ord. No. BC-3130 §1, 2016)

16.320.310.7

Section 310.7 of the *International Fire Code* is hereby amended to read as follows:

310.7 Burning objects. Lighted matches, cigarettes, cigars or other burning objects shall not be discarded in such a manner that could cause ignition of other combustible material.

310.7.1 Smoking receptacles required. Owners of commercial and multi-family properties, where smoking is permitted, shall be responsible for providing and maintaining non-combustible receptacles specifically designed for the collection of discarded smoking material.

(History: Ord. No. BC-3499, §76, 2026)

16.320.315.6 (Deleted)

Section 315.6 of the *International Fire Code* is hereby intentionally deleted and omitted.

(History: Ord. No. BC-3499, §77, 2026)

16.320.320.4.2.1

Section 320.4.2.1 of the *International Fire Code* is hereby amended to read as follows:

320.4.2.1 Technical opinion and report. A technical opinion and report complying with Section 104.2.2 shall be prepared to evaluate the fire and explosion risks associated with the indoor storage area and to make recommendations for fire and explosion protection. The report shall be submitted to the fire code official and building code official and shall require the fire code and building code official's approval prior to issuance of a permit. In addition to the requirements of Section 104.2.2, the technical opinion and report shall specifically evaluate the following:

1. The potential for deflagration of flammable gases released during a thermal runaway event.
2. The basis of design for an automatic sprinkler system or other approved fire suppression system. Such design basis shall reference relevant full-scale fire testing or another approved method of demonstrating sufficiency of the recommended design such as NFPA 855 or an equivalent.

(History: Ord. No. BC-3499, §78, 2026)

16.320.403.11.3

Section 403.11.3 of the *International Fire Code* is hereby amended to read as follows:

403.11.3 Crowd Managers. Trained crowd managers shall be provided for facilities or events where more than 1,000 persons congregate. Not fewer than four trained crowd managers, and not fewer than one trained crowd manager for each 250 persons or portion thereof, shall be provided for the gathering. Where approved by the fire code official, the ratio of crowd managers shall be permitted to be reduced where the facility is equipped throughout with an approved automatic sprinkler system or based upon the nature of the event.

(History: Ord. No. BC-3499, §79, 2026)

16.320.404.4

Section 404.4 of the *International Fire Code* is hereby amended to read as follows:

404.4 Availability. Fire safety, evacuation and lockdown plans shall be available in the workplace for reference and review by employees, and copies shall be furnished to the fire code official for review on request.

404.4.1 Distribution. The fire safety, evacuation and lockdown plans shall be distributed to the tenants and building service employees by the owner or owner's agent. Tenants shall distribute to their employees applicable parts of the fire safety plan and lockdown plan affecting the employees' actions in the event of a fire or other emergency

404.4.1.1 Building information card and floor plans. In buildings or occupancies required to prepare a fire safety and evacuation plan and in special uses in Section 403.10 required to prepare a fire safety and evacuation plan, a building information card complying with feature 13 of Section 508.1.6 shall be maintained on the premises and submitted or otherwise made available to the fire department. When required by the fire code official, building floor plans shall be submitted to the fire department in an approved manner.

(History: Ord. No. BC-3499, §80, 2026)

16.320.503.3

Section 503.3 of the *International Fire Code* is amended to read as follows:

503.3 Marking. Where required by the Fire Department, approved signs or other approved notices shall be provided for fire apparatus access roads to identify such roads or prohibit the obstruction thereof. Signs or notices shall be maintained in a clean and legible condition at all times and be replaced or repaired when necessary to provide adequate visibility.

503.3.1 Marking requirements. Each separate fire lane signage, which may consist of one sign or a combination of signs, shall have a cumulative minimum size of 96 square inches and contain the “No Parking” words or symbol with the words “Fire Lane” located directly beneath the “No Parking” words or symbol. Each sign or combination of signs are required to be uniformly mounted between 2 feet 8 inches to 7 feet 0 inches above grade to the bottom of the sign, and so located not to obstruct pedestrian traffic. The sign or combination of signs shall be mounted within 6 feet of the curb or striped pavement and are required to face or run parallel with oncoming vehicular traffic. The sign or combination of signs may be mounted on the building, pole base, or any other structure provided the signage meets the setback and minimum and maximum height requirements indicated above. The sign, or combination of signs, are required to be spaced no more than 200 feet apart. In addition, the curb, or pavement if a curb is absent, is required to be marked with a yellow or red stripe that shall run not less than 6 feet of each 30-foot length of fire lane. Each separate yellow or red striped area shall contain 3 inch black lettering indicating “Fire Lane”; provided, however, that the presence of such lettering is not a prerequisite to the enforcement of fire lane parking violations. Furthermore, the exceeding of any standards intended to inform the public of the location of a fire lane shall not affect the enforcement of this section.

(History: Ord. No. BC-3499, §81, 2026; Ord. No. BC-3286 §112, 2020; Ord. No. BC-2936 §81, 2012; Ord. No. BC-2635 §98, 2007; Ord. No. BC-2459 §77, 2004; Ord. No. BC-2237 §3, 2001; Source or prior law: 16.14.270; Ord. No. BC-2013 §82, 97; Ord. No. BC-1824 §122, 94)

16.320.503.6

Section 503.6 of the *International Fire Code* is hereby amended to read as follows:

503.6 Security gates. Where security gates are installed, they shall have an approved means of emergency operation. The security gates and the emergency operation shall be maintained operational at all times and shall comply with the following:

1. All gates shall be of the sliding, hinged, or counter-balanced type, and where electrically controlled, shall be capable of being operated to the full open position by emergency responders during a loss of power to the gates' operating mechanism.
2. Electrical or mechanical operated gates shall be capable of being unlocked or opened with an approved fire department county keyed cylinder installed at an accessible location on the entry side of the gate. The key-operated switch shall bypass the release mechanism to allow the gate to be operated by emergency response personnel.
3. In addition to an approved key cylinder operation device, gates shall be equipped with audible release, set to operate with an emergency response yelp tone.
4. Keypads and other entry devices installed on gates shall not interfere with the operation of either the approved key access cylinder or emergency response audible release.

(History: Ord. No. BC-3499, §82, 2026; Ord. No. BC-3286 §113, 2020; Ord. No. BC-2936 §82, 2012; Ord. No. BC-2635 §100, 2007)

16.320.505.1

Section 505.1 of the *International Fire Code* is hereby amended to read as follows:

505.1 Address numbers. New and existing buildings shall have approved address numbers, building numbers, or approved building identification placed in a position that is on the building or on any structure, mail box, sign or monument on the property that is securely fixed to the ground to be plainly legible and visible from the street or road fronting the property. These numbers shall contrast with their background. Address numbers shall be provided in additional approved locations to facilitate emergency response. Address numbers shall be Arabic numerals or alphabet letters. Numbers shall be a minimum of 4 inches high with a minimum stroke width of 0.5 inch. Numbers shall be a minimum height of: 4 inches in Use Groups R-3 and R-4; and 8 inches in all other Use Groups. When required by the building official, the identifying numbers shall be lighted by an approved light source.

505.1.1 Secondary address numbers. Multi-tenant retail shopping centers in which tenant spaces have secondary entry doors from an exterior facade of the building and have paved vehicle access adjacent to such doors shall have approved numbers or addresses placed on or adjacent to each door. Secondary address numbers shall be a minimum of 4 inches in height.

Exceptions:

1. If more than one entry door is installed on a facade, only one door needs to be marked (entry doors defined as overhead or cargo doors and normal passage doors).
2. Further exceptions shall be permitted by the building official after consultation with the Crime Prevention Unit of Overland Park Police Department if it can be shown that marking the doors would create a security risk.

505.1.2 Additional identification. Where identification of additional exits would be of benefit to emergency response personnel, a sequential numbering system can be required by the fire code official whereby the interior and exterior surfaces of each exit is marked in an approved manner.

(History: Ord. No. BC-3499, §83, 2026; Ord. No. BC-3286 §114, 2020; Ord. No. BC-2936 §83, 2012; Ord. No. BC-2731 §1, 2008; Ord. No. BC-2635 §101, 2007; Ord. No. BC-2459 §78, 2004; Ord. No. BC-2237 §3, 2001; Source or prior law: 16.07.304.3; Ord. No. BC-2114 §9, 98; 16.14.320 (part); Ord. No. BC-2013 §83, 97; Ord. No. BC-1824 §129, 94)

16.320.505.2

Section 505.2 of the *International Fire Code* is hereby amended to read as follows:

505.2 Street or road signs. Streets and roads shall be identified with approved signs. The signage shall consist of Arabic numerals or alphabet letters which are reflective and contrast with their background. The numbers and letters shall be a minimum of 6 inches high with a minimum stroke width of 0.5 inches. Temporary signs shall be installed at each street intersection when construction of new roadways allows passage by vehicles. Signs shall be of an approved size, weather resistant and be maintained until replaced by permanent signs.

(History: Ord. No. BC-3499, §84, 2026; Ord. No. BC-3286 §115, 2020; Ord. No. BC-2936 §84, 2012; Ord. No. BC-2635 §102, 2007)

16.320.506.2

Section 506.2 of the *International Fire Code* is hereby amended to read as follows:

506.2 Key box maintenance. The operator of the building shall immediately notify the Overland Park Fire Department and provide the new key where a lock is changed or rekeyed. The key to such lock shall be secured in the key box. The key box shall be maintained in working order by the operator, owner or occupant of the building.

(History: Ord. No. BC-3499, §85, 2026; Ord. No. BC-3286 §116, 2020; Ord. No. BC-2936 §85, 2012; Ord. No. BC-2635 §103, 2007; Ord. No. BC-2459 §79, 2004; Ord. No. BC-2237 §3, 2001; Source or prior law: 16.14.310 (part); Ord. No. BC-1824 §128, 94)

16.320.507.1

Section 507.1 of the *International Fire Code* is amended to read as follows:

507.1 Required water supply. An approved water supply capable of supplying the required fire flow for fire protection shall be provided to premises upon which facilities, buildings or portions of buildings are hereafter constructed or moved into or within the jurisdiction.

507.1.1 Water distribution system failures. Water districts serving areas within Overland Park shall notify the Emergency Communications Center of any failure in their water distribution system; hydrant repair, main breaks, pump failures or other interruptions of water supply that may affect water supply for fire control purposes.

(History: Ord. No. BC-3499, §86, 2026; Ord. No. BC-3286 §117, 2020; Ord. No. BC-2936 §86, 2012; Ord. No. BC-2635 §104, 2007; Ord. No. BC-2459 §80, 2004; Ord. No. BC-2237 §3, 2001; Source or prior law: 16.05.170 (part); Ord. No. BC-2013 §25, 97)

16.320.507.5

Section 507.5 of the *International Fire Code* is hereby amended to read as follows:

507.5 Fire hydrant systems. Fire hydrant systems shall comply with Sections 507.5.1 through 507.5.6.

507.5.1 Where required. Where a portion of the facility or building hereafter constructed or moved into or within the jurisdiction is more than 400 feet (122 m) from a hydrant on a fire apparatus access road, as measured by an approved route around the exterior of the facility or building, on-site fire hydrants and mains shall be provided where required by the fire code official.

Exceptions:

1. For Group R-3 occupancies, the distance shall be 600 feet (183 m).
2. For agricultural structures classified as Group U occupancies, the distance shall be 600 feet (183 m) or as approved by the fire code official.

507.5.1.1 Hydrant for standpipe systems. Buildings equipped with a standpipe system installed in accordance with Section 905 shall have a fire hydrant within 100 feet (30 480 mm) of the fire department connections.

Exception: The distance shall be permitted to exceed 100 feet (30 480 mm) where approved by the fire code official.

507.5.2 Inspection, testing and maintenance. Fire hydrant systems shall be subject to periodic tests as required by the fire code official. Fire hydrant systems shall be maintained in an operative condition at all times and shall be repaired where defective. Additions, repairs, alterations and servicing shall comply with approved standards.

507.5.3 Private fire service mains and water tanks. Private hydrants shall be painted red in color. Private fire service mains and water tanks shall be periodically inspected, tested and maintained in accordance with NFPA 25 at the following intervals:

1. Private fire hydrants of all types: Inspection annually and after each operation; flow test and maintenance annually.
2. Fire service main piping: Inspection of exposed, annually; flow test every 5 years.
3. Fire service main piping strainers: Inspection and maintenance after each use.

507.5.4 Obstruction. Unobstructed access to fire hydrants shall be maintained at all times. The fire department shall not be deterred or hindered from gaining immediate access to fire protection equipment or fire hydrants. All hydrants shall be painted and highly visible.

507.5.5 Clear space around hydrants. A 3-foot (914 mm) clear space shall be maintained around the circumference of fire hydrants, except as otherwise required or approved.

507.5.6 Physical protection. Where fire hydrants are subject to impact by a motor vehicle, guard posts or other approved means shall comply with Section 312.

(History: Ord. No. BC-3499, §87, 2026; Ord. No. BC-3286 §118, 2020; Ord. No. BC-2936 §87, 2012)

16.320.509.1

Section 509.1 of the *International Fire Code* is hereby amended to read as follows:

509.1 Identification. Fire protection equipment shall be identified in an approved manner. Rooms containing controls for air-conditioning systems, sprinkler risers and valves, or other fire detection, suppression or control elements shall be identified for the use of the fire department. Approved signs required to identify fire protection system equipment and equipment location shall be constructed of durable materials, permanently installed and readily visible.

509.1.1 Identification standard. Rooms containing the equipment identified in Section 509.1 shall be identified by minimum 4 inch letters with a minimum 0.5-inch stroke on contrasting background.

509.1.2 Utility identification. Where required by the fire code official, gas shutoff valves, electric meters, service switches and other utility equipment shall be clearly and legibly marked to identify the unit or space that it serves. Identification shall be made in an approved manner, readily visible and shall be maintained.

(History: Ord. No. BC-3499, §88, 2026; Ord. No. BC-3286 §119, 2020; Ord. No. BC-2936 §88, 2012; Ord. No. BC-2635 §107, 2007; Ord. No. BC-2459 §83, 2004; Ord. No. BC-2237 §3, 2001; Source or prior law: 16.04.515 (part); Ord. No. BC-2013 §11, 97)

16.320.903.4

Section 903.4 of the *International Fire Code* is hereby amended to read as follows:

903.4 Sprinkler system supervision and alarms. Automatic sprinkler system supervision and alarms shall comply with Sections 903.4.1 through 903.4.3.

903.4.1 Electronic supervision. Valves controlling the water supply for automatic sprinkler systems, pumps, tanks, water levels and temperatures, critical air pressure and waterflow switches on all sprinkler systems shall be electrically supervised by a listed fire alarm control unit.

Exceptions:

1. Automatic sprinkler systems protecting one- and two-family dwellings.
2. Limited area sprinkler systems in accordance with Section 903.3.8, provided that backflow prevention device test valves located in limited area sprinkler system supply piping shall be locked in the open position unless supplying an occupancy required to be equipped with a fire alarm system, in which case the backflow preventer valves shall be electrically supervised by a tamper switch installed in accordance with NFPA 72 and separately annunciated.
3. Automatic sprinkler systems installed in accordance with NFPA 13R where a common supply main is used to supply both domestic water and the automatic sprinkler system, and a separate shutoff valve for the automatic sprinkler system is not provided.
4. Jockey pump control valves that are sealed or locked in the open position.
5. Control valves to commercial kitchen hoods, paint spray booths or dip tanks that are sealed or locked in the open position.
6. Valves controlling the fuel supply to fire pump engines that are sealed or locked in the open position.
7. Trim valves to pressure switches in dry, preaction and deluge sprinkler systems that are sealed or locked in the open position.
8. Underground key or hub gate valves in roadway boxes.
9. On new and existing installations, isolation valves for the backflow prevention devices remotely located in pits which are locked or chained in the open position.

903.4.2 Monitoring. Alarm, supervisory and trouble signals shall be distinctly different and shall be automatically transmitted to an approved supervising station or, where approved by the fire code official, shall sound an audible signal at a constantly attended location.

903.4.3 Alarms. An approved audible and visual sprinkler waterflow alarm device shall be connected to each automatic sprinkler system. Such sprinkler waterflow alarm devices shall be activated by water flow equivalent to the flow of a single sprinkler of the smallest orifice size installed in the system. Alarm devices shall be provided on the exterior of the building directly above the fire department connection or in an approved location. Where a waterflow switch is required by Section 903.4.1 to be electrically supervised, such sprinkler waterflow alarm devices shall be powered by a fire alarm control unit or, where provided, a fire alarm system. Where a fire alarm system is provided, actuation of the automatic sprinkler system shall actuate the building fire alarm system.

Exception: Automatic sprinkler systems protecting one- and two-family dwellings.

(History: Ord. No. BC-3499, §89, 2026; Ord. No. BC-3286 §122, 2020; Ord. No. BC-2936 §91, 2012; Ord. No. BC-2635 §113, 2007)

16.320.905.4

Section 905.4 of the *International Fire Code* is hereby amended to read as follows:

905.4 Location of Class I standpipe hose connections. Class I standpipe hose connections shall be provided in all of the following locations:

1. In every required interior exit stairway or exterior exit stairway, a hose connection shall be provided for each story above and below grade plane. Hose connections shall be located at the intermediate floor landing unless otherwise approved by the fire code official.
Exception: A single hose connection shall be permitted to be installed in the open corridor or open breezeway between open stairs that are not greater than 75 feet (22 860 mm) apart.
2. On each side of the wall adjacent to the exit opening of a horizontal exit.
Exception: Where floor areas adjacent to a horizontal exit are reachable from an interior exit stairway or exterior exit stairway hose connection by a 30-foot (9144 mm) hose stream from a nozzle attached to 100 feet (30 480 mm) of hose, a hose connection shall not be required at the horizontal exit.
3. In every exit passageway, at the entrance from the exit passageway to other areas of a building.
Exception: Where floor areas adjacent to an exit passageway are reachable from an interior exit stairway or exterior exit stairway hose connection by a 30-foot (9144 mm) hose stream from a nozzle attached to 100 feet (30 480 mm) of hose, a hose connection shall not be required at the entrance from the exit passageway to other areas of the building.
4. In covered mall buildings, adjacent to each exterior public entrance to the mall and adjacent to each entrance from an exit passageway or exit corridor to the mall. In open mall buildings, adjacent to each public entrance to the mall at the perimeter line and adjacent to each entrance from an exit passageway or exit corridor to the mall.
5. Where the roof has a slope less than 4 units vertical in 12 units horizontal (33.3-percent slope), a hose connection shall be located to serve the roof or at the highest landing of an interior stairway with access to the roof provided in accordance with Section 1011.12.
6. Where the most remote portion of a nonsprinklered floor or story is more than 150 feet (45 720 mm) from a hose connection or the most remote portion of a sprinklered floor or story is more than 200 feet (60 960 mm) from a hose connection, the fire code official is authorized to require that additional hose connections be provided in approved locations.

905.4.1 Protection. Risers and laterals of Class I standpipe systems not located within an interior exit stairway shall be protected by a degree of fire resistance equal to that required for vertical enclosures in the building in which they are located.

Exception: In buildings equipped throughout with an approved automatic sprinkler system, laterals that are not located within an interior exit stairway are not required to be enclosed within fire-resistance-rated construction.

905.4.2 Interconnection. In buildings where more than one standpipe is provided, the standpipes shall be interconnected in accordance with NFPA 14.

(History: Ord. No. BC-3499, §90, 2026; Ord. No. BC-3286 §123, 2020)

16.320.907.6.6

Section 907.6.6 of the *International Fire Code* is hereby amended to read as follows:

907.6.6 Monitoring. Fire alarm systems required by this chapter or by the International Building Code shall be monitored by an approved supervisory station in accordance with NFPA 72. The fire alarm system shall be monitored by an approved entity that has been listed by a nationally recognized agency to perform such service.

Fire alarm systems that require two or more zones, or have addressable fire alarm panels, shall report a signal to the monitoring company wherein the fire alarm initiating device and its location can be determined. The monitoring company shall then report this information to the emergency communication center dispatch.

Exception: Monitoring by a supervising station is not required for:

1. Single- and multiple-station smoke alarms required by Section 907.2.11.
2. Smoke detectors in Group I-3 occupancies.
3. Automatic sprinkler systems in one- and two-family dwellings.
4. Proprietary systems as approved by the Fire Department.

907.6.6.1 Transmission of alarm signals. Transmission of alarm signals to a supervising station shall be in accordance with NFPA 72.

907.6.6.2 MIY monitoring. Direct transmission of alarms associated with monitor it yourself (MIY) transmitters to a public safety answering point (PSAP) shall not be permitted unless approved by the fire code official.

907.6.6.3 Termination of monitoring service. Termination of fire alarm monitoring services shall be in accordance with Section 901.9.

(History: Ord. No. BC-3499, §91, 2026; Ord. No. BC-3286 §126, 2020)

16.320.912.3

Section 912.3 of the *International Fire Code* is hereby amended to read as follows:

912.3 Fire hose threads. Fire hose threads used in connection with standpipe systems shall be approved and shall be compatible with fire department hose threads.

912.3.1 Fire department supply connection. All connections to supply fire sprinkler systems or standpipe systems shall be fitted with an approved 4 inch Storz quick coupling connector.

(History: Ord. No. BC-3499, §92, 2026)

16.320.913.4

Section 913.4 of the *International Fire Code* is hereby amended to read as follows:

913.4 Valve Supervision. Where provided, the fire pump suction, discharge and bypass valves, and the isolation valves on the backflow prevention device or assembly shall be supervised open by one of the following methods.

1. Central-station, proprietary or remote-station signaling service.
2. Local signaling service that will cause the sounding of an audible signal at a constantly attended location.

913.4.1 Test outlet valve supervision. Fire pump test outlet valves shall be supervised in the closed position.

(History: Ord. No. BC-3499, §93, 2026; Ord. No. BC-3286 §127, 2020; Ord. No. BC-2936 §95, 2012; Ord. No. BC-2635 §118, 2007; Ord. No. BC-2459 §88, 2004; Ord. No. BC-2237 §3, 2001; Source or prior law: 16.04.525 (part); Ord. No. BC-2013 §14, 97)

16.320.1103.2 (Deleted)

Sections 1103.2 through 1104.25 of the *International Fire Code* are hereby intentionally deleted and omitted.

(History: Ord. No. BC-3499, §94, 2026; Ord. No. BC-3286 §130, 2020; Ord. No. BC-2936 §97, 2012)

16.320.4104.2

Section 4104.2 of the *International Fire Code* is hereby amended to read as follows:

4104.2 Open-flame cooking devices. Charcoal burners and other open-flame cooking devices shall not be located or operated on combustible balconies or within 10 feet (3048 mm) of combustible construction.

Exceptions:

1. One- and two-family dwellings
2. Where buildings, balconies and decks are protected by an automatic sprinkler system.

(History: Ord. No. BC-3499, 98, 2026)

16.320.5601.1

Section 5601.1 of the *International Fire Code* is hereby amended to read as follows:

5601.1 Scope. The provisions of this chapter shall govern the possession, manufacture, storage, handling, sale and use of explosives, explosive materials, fireworks and small arms ammunition.

Exceptions:

1. The Armed Forces of the United States, Coast Guard or National Guard.
2. Explosives in forms prescribed by the official United States Pharmacopoeia.
3. The possession, storage and use of small arms ammunition when packaged in accordance with DOTn packaging requirements.
4. The possession, storage and use of not more than 1 pound (0.454 kg) of commercially manufactured sporting black powder, 20 pounds (9 kg) of smokeless powder and 10,000 small arms primers for hand loading of small arms ammunition for personal consumption.
5. The use of explosive materials by federal, state and local regulatory, law enforcement and fire agencies acting in their official capacities.
6. Special industrial explosive devices that in the aggregate contain less than 50 pounds (23 kg) of explosive materials.
7. The possession, storage and use of blank industrial-power load cartridges when packaged in accordance with DOTn packaging regulations.
8. Transportation in accordance with DOTn 49 CFR Parts 100-185.
9. Items preempted by federal regulations.

5601.1.1 Explosive material standard. In addition to the requirements of this chapter, NFPA 495 shall govern the manufacture, transportation, storage, sale, handling and use of explosive materials.

5601.1.2 Explosive material terminals. In addition to the requirements of this chapter, the operation of explosive material terminals shall conform to the provisions of NFPA 498.

5601.1.3 Fireworks. The possession, manufacture, storage, sale, handling and use of fireworks are prohibited.

Exceptions:

1. Storage and handling of fireworks as allowed in Section 5604 and OPMC Sections 5.40.020 and 5.40.120.
2. Activities complying with OPMC Section 5.40.120.
3. The use of fireworks for display as permitted in Section 5608.
4. The possession, storage, sale, handling and use of specific types of Division 1.4G fireworks where allowed by applicable local or state laws, ordinances and regulations, provided that such fireworks comply with CPSC 16 CFR, Parts 1500 and 1507, and DOTn 49 CFR, Parts 100-185, as applicable for consumer fireworks.

5601.1.4 Rocketry. The storage, handling and use of model and high-power rockets shall comply with the requirements of NFPA 1122, NFPA 1125 and NFPA 1127.

5601.1.5 Ammonium nitrate. The storage and handling of ammonium nitrate shall comply with the requirements of NFPA 400 and Chapter 63.

Exception: Storage of ammonium nitrate in magazines with blasting agents shall comply with the requirements of NFPA 495.

(History: Ord. No. BC-3499, §99, 2026; Ord. No. BC-3286 §135, 2020; Ord. No. BC-2936 §101, 2012)

16.320.5604.1

Section 5604.1 of the *International Fire Code* is hereby amended to read as follows:

5604.1 General. Storage of explosives and explosive materials, small arms ammunition, small arms primers, propellant-actuated cartridges and smokeless propellants in magazines shall conform with the provisions of this section and OPMC Chapters 5.36 and 5.38.

(History: Ord. No. BC-3499, §100, 2026; Ord. No. BC-3286 §136, 2020; Ord. No. BC-2936 §102, 2012)

16.320.5704.2.13

Section 5704.2.13 of the *International Fire Code* is hereby amended to read as follows:

5704.2.13 Abandonment and status of tanks. Tanks taken out of service shall be removed in accordance with Section 5704.2.14, or safeguarded in accordance with Section 5704.2.13.1 through 5704.2.13.2.3 and API 1604.

5704.2.13.1 Underground tanks. Underground tanks taken out of service shall comply with Section 5704.2.13.1.1 through 5704.2.13.1.4.

5704.2.13.1.1 Temporarily out of service. Underground tanks temporarily out of service shall have the fill line, gauge opening vapor return and pump connection secure against tampering. Vent lines shall remain open and be maintained in accordance with Section 5704.2.7.3 and 5704.2.7.4.

5704.2.13.1.2 Out of service for 90 days. Underground tanks not used for a period of 90 days shall be safeguarded in accordance with all the following or be removed in accordance with Section 5704.2.14.

1. Flammable or combustible liquids shall be removed from the tank.
2. All piping, including fill line, gauge opening, vapor return and pump connection, shall be capped or plugged and secured from tampering.
3. Vent lines shall remain open and be maintained in accordance with Section 5704.2.7.3 and 5704.2.7.4.

5704.2.13.1.3 Out of service for one year. Underground tanks that have been out of service for a period of one year shall be removed from the ground in accordance with Section 5704.2.14.

5704.2.13.1.4 Reinstallation of underground tanks. Tanks that are to be reinstalled for flammable or combustible liquid service shall be in accordance with this chapter, ASME Boiler and Pressure Vessel Code (Section VIII) API 12-P, API 1615, UL 58 and UL 1316.

5704.2.13.2 Above-ground tanks. Above-ground tanks taken out of service shall comply with Sections 5704.2.13.2.1 through 5704.2.13.2.3.

5704.2.13.2.1 Temporarily out of service. Above-ground tanks temporarily out of service shall have all connecting lines isolated from the tank and be secured against tampering.

Exception: In-place fire protection (foam) system lines.

5704.2.13.2.2 Out of service for 90 days. Above-ground tanks not used for a period of 90 days shall be safeguarded in accordance with Section 5704.2.13.1.2 or removed in accordance with Section 5704.2.14.

Exceptions:

1. Tanks and containers connected to oil burners that are not in use during the warm season of the year or are used as a backup heating system to gas.
2. In-place, active fire protection (foam) system lines.

5704.2.13.2.3 Out of service for one year. Above-ground tanks that have been out of service for a period of 1 year shall be removed in accordance with Section 5704.2.14.

Exception: Tanks within operating facilities.

(History: Ord. No. BC-3499, §101, 2026; Ord. No. BC-3286 §137, 2020; Ord. No. BC-2936 §103, 2012)

16.320.D103.1 (Deleted)

Section D103.1 of Appendix D of the *International Fire Code* is hereby intentionally deleted and omitted.

(History: Ord. No. BC-3499, §102, 2026; Ord. No. BC-3286 §138, 2020; Ord. No. BC-2936 §104, 2012; Ord. No. BC-2635 §131, 2007; Ord. No. BC-2459 §99, 2004)

16.320.D107.1

Section D107.1 of Appendix D of the *International Fire Code* is hereby amended to read as follows:

D107.1 One- or two-family dwelling residential developments. Developments of one- or two-family dwellings where the number of dwelling units exceeds 50 shall be provided with two separate and approved fire apparatus access roads, and shall meet the requirements of Section D104.3.

Exceptions:

1. Where there are more than 50 dwelling units accessed from a single public or private fire apparatus access road and all dwelling units are equipped throughout with an approved automatic sprinkler system in accordance with Sections 903.3.1.1, 903.3.1.2 or 903.3.1.3, access from two directions shall not be required.
2. The number of dwelling units accessed from a single fire apparatus access road shall not be increased unless fire apparatus access roads will connect with future development, as determined by the Fire Department.

(History: Ord. No. BC-3499, §103, 2026; Ord. No. BC-3286 §139, 2020; Ord. No. BC-2936 §105, 2012; Ord. No. BC-2635 §133, 2007; Ord. No. BC-2459 §101, 2004)

TITLE 16 - BUILDINGS AND CONSTRUCTION

16.330 PLUMBING CODE

Contents:

16.330.100 Plumbing Code - Adoption.

16.330.101.1

16.330.101.5

16.330.103 (Deleted)

16.330.111.4

16.330.112 (Deleted)

16.330.305.4

16.330.312.7 (Deleted)

16.330.403.1

16.330.410.4

16.330.701.2

16.330.1101.1

16.330.100 Plumbing Code - Adoption.

The **2024 International Plumbing Code**, as published by the International Code Council, Inc., is hereby adopted by reference as the Plumbing Code of the City of Overland Park, save and except such parts or portions thereof as are specifically deleted, added or changed in the City Code. At least one copy shall be marked "Official Copy as Incorporated by Ordinance No. BC-3499" and filed with the City Clerk for inspection by the public during reasonable business hours, with all sections or portions thereof intended to be deleted, added or changed clearly marked to show any deletions, additions or changes.

(History: Ord. No. BC-3499, §105, 2026; Ord. No. BC-3286 §140, 2020; Ord. No. BC-2936 §106, 2012; Ord. No. BC-2635 §134, 2007; Ord. No. BC-2459 §102, 2004; Ord. No. BC-2237 §4, 2001)

16.330.101.1

Section 101.1 of the *International Plumbing Code* is hereby amended to read as follows:

101.1 Title. These regulations shall be known as the *Plumbing Code of the City of Overland Park*, hereinafter referred to as “this code.”

(History: Ord. No. BC-3499, §106, 2026; Ord. No. BC-3286 §141, 2020; Ord. No. BC-2936 §107, 2012)

16.330.101.5

Section 101.5 of the *International Plumbing Code* is hereby added to read as follows:

16.330.101.5 Administration and enforcement. The administration and enforcement provisions for this code shall be those provisions contained in Sections 103 through 116 of the *International Building Code* in OPMC 16.300 et seq.

(History: BC-3499, §107, 2026; Ord. No. BC-3286 §142, 2020; Ord. No. BC-2936 §108, 2012)

16.330.103 (Deleted)

Sections 103 through 108 of the *International Plumbing Code* are hereby intentionally deleted and omitted.

(History: Ord. No. BC-3499, §108, 2026; Ord. No. BC-3286 §143, 2020; Ord. No. BC-2936 §109, 2012; Ord. No. BC-2635 §136, 2007; Ord. No. BC-2459 §104, 2004; Ord. No. BC-2237 §4, 2001; Source or prior law: 16.08.120; Ord. No. BC-2013 §36, 97)

16.330.111.4

Section 111.4 of the *International Plumbing Code* is hereby amended to read as follows:

16.330.111.4 Testing. Plumbing work and systems shall be tested as required in Section 312 and in accordance with Sections 111.4.1 through 111.4.3. Tests shall be made by the permit holder and observed by the code official as deemed necessary.

111.4.1 New, altered, extended or repaired systems. New plumbing systems and parts of existing systems that have been altered, extended or repaired shall be tested as prescribed herein to disclose leaks and defects, except that testing is not required in the following cases:

1. In any case that does not include addition to, replacement, alteration or relocation of any water supply, drainage or vent piping.
2. In any case where plumbing equipment is set up temporarily for exhibition purposes.

111.4.2 Equipment, material and labor for tests. Equipment, material and labor required for testing a plumbing system or part thereof shall be furnished by the permit holder.

111.4.3 Reinspection and testing. Where any work or installation does not pass any initial test or inspection, the necessary corrections shall be made to comply with this code. The work or installation shall then be resubmitted to the code official for inspection and testing.

(History: Ord. No. BC-3499, §114, 2026; Ord. No. BC-3286 §144, 2020; Ord. No. BC-2936 §110, 2012)

16.330.112 (Deleted)

Sections 112 through 115 of the *International Plumbing Code* are hereby intentionally deleted and omitted.

(History: Ord. No. BC-3499, §115-118, 2026)

16.330.305.4

Section 305.4 of the *International Plumbing Code* is hereby amended to read as follows:

305.4 Freezing. Water, soil and waste pipes shall not be installed outside of a building, in attics or crawl spaces, concealed in outside walls, or in any other place subjected to freezing temperatures unless adequate provision is made to protect such pipes from freezing by insulation or heat or both. Exterior water supply system piping shall be installed not less than 6 inches (152 mm) below the frost line. The frost line depth for Overland Park is 36 inches.

305.4.1 Sewer depth. The building sewer shall be installed in a trench deep enough to provide the pipe with at least 30 inches of earth cover.

(History: Ord. No. BC-3499, §119, 2026; Ord. No. BC-3286 §145, 2020; Ord. No. BC-2936 §111, 2012; Ord. No. BC-2635 §137, 2007; Ord. No. BC-2459 §106, 2004; Ord. No. BC-2237 §4, 2001; Source or prior law: 16.08.165; Ord. No. BC-2013 §40, 97)

16.330.312.7 (Deleted)

Sections 312.7 through 312.8 of the *International Plumbing Code* are hereby intentionally deleted and omitted.

(History: Ord. No. BC-3499, §120, 2026; Ord. No. BC-3286 §146, 2020; Ord. No. BC-2936 §112, 2012; Ord. No. BC-2635 §140, 2007; Ord. No. BC-2459 §109, 2004; Ord. No. BC-2237 §4, 2001; Source or prior law: 16.08.180; Ord. No. BC-2013 §42, 97)

16.330.403.1

Section 403.1 of the *International Plumbing Code* is hereby amended to read as follows¹:

403.1 Minimum number of fixtures. Plumbing fixtures shall be provided in the minimum number as shown in Table 403.1, based on the actual use of the building or space. Uses not shown in Table 403.1 shall be considered individually by the code official. The number of occupants shall be determined by the *International Building Code*.

Exception to Table 403.1: A service sink is not required in business or mercantile occupancies with a total of 2500 square feet or less of gross floor area and where the nature of the business does not include services or processes requiring frequent mopping of floor surfaces. Food service or merchants, beauty parlors, barber shops and veterinary clinics are examples of businesses that require a service sink.

403.1.1 Fixture calculations. To determine the occupant load of each sex, the total occupant load shall be divided in half. To determine the required number of fixtures, the fixture ratio or ratios for each fixture type shall be applied to the occupant load of each sex in accordance with Table 403.1. Fractional numbers resulting from applying the fixture ratios of table 403.1 shall be rounded up to the next whole number. For calculations involving multiple occupancies, such fractional numbers for each occupancy shall first be summed and then rounded up to the next whole number.

Exceptions:

1. The total occupant load shall not be required to be divided in half where approved statistical data indicates a distribution of the sexes of other than 50 percent of each sex.
2. Where multiple-user facilities are designed to serve all genders, the minimum fixture count shall be calculated 100 percent, based on total occupant load. In such multiple-user facilities, each fixture type shall be in accordance with ICC A117.1.

403.1.2 Fixtures in single-user toilet facilities and bathing rooms. The plumbing fixtures located in single-user toilet facilities and single-user bathing rooms, including family or assisted-use toilet facilities and bathing rooms, shall contribute toward the total number of required plumbing fixtures for a building or tenant space. The number of fixtures in single-user toilet facilities, single-user bathing rooms and family or assisted-use toilet facilities shall be deducted proportionally from the required gender ratios of Table 403.1. Single-user toilet facilities and bathing rooms, and family or assisted-use toilet facilities and bathing rooms shall be identified as being available for use by all persons regardless of their sex.

403.1.3 Lavatory distribution. Where two or more toilet facilities are provided for each sex, the required number of lavatories shall be distributed proportionately to the required number of male and female designated water closets.

¹Note: Only text is being amended. Table 403.1 shall remain as published in the *International Plumbing Code*.

(History: Ord. No. BC-3499, §122, 2026; Ord. No. BC-3286 §147, 2020; Ord. No. BC-3286 §147, 2020; Ord. No. BC-2936 §113, 2012; Ord. No. BC-2635 §142, 2007)

16.330.410.4

Section 410.4 of the *International Plumbing Code* is hereby amended to read as follows:

410.4 Drinking Fountain Substitutions. The following substitutions shall be permissible: A break room sink, or water dispenser, or bottled water dispenser complying with the reach ranges in ICC A117.1 for the following occupancies.

1. Mercantile and business occupancies (excluding medical offices and concentrated business areas) with less than 2,500 square feet of gross floor area.
2. Warehouse occupancies with less than 7500 square feet of gross floor area.
3. Where restaurants provide drinking water in a container free of charge, drinking fountains shall not be required in those restaurants.
4. In occupancies other than restaurants where drinking fountains are required, water dispensers shall be permitted to be substituted for not more than 50 percent of the required number of drinking fountains.
5. In veterinary clinics, kennel's, barber and beauty shops where hair cutting services are provided, dental offices and similar occupancies where it creates a health hazard to install a drinking fountain.

(History: Ord. No. BC-3499, §123, 2026; Ord. No. BC-3286 §149, 2020)

16.330.701.2

Section 701.2 of the *International Plumbing Code* is hereby amended to read as follows:

16.330.701.2 Connection to sewer required. Sanitary drainage piping from plumbing fixtures in buildings and sanitary drainage piping systems from premises shall be connected to a public sewer. Where a public sewer is not available, the sanitary drainage piping and systems shall be connected to a private sewage disposal system in compliance with state or local requirements. (See *Johnson County Environmental Sanitary Code* 2025 Edition, and amendments thereto.) Where state or local requirements do not exist for private sewage disposal systems, the sanitary drainage piping and systems shall be connected to an approved private sewage disposal system that is in accordance with the *Johnson County Environmental Sanitary Code* 2025 Edition, and amendments thereto.

Exception: Sanitary drainage piping and systems that convey only the discharge from bathtubs, showers, lavatories, clothes washers and laundry trays shall not be required to connect to a public sewer or to a private sewage disposal system provided that the piping or systems are connected to a system in accordance with Chapter 13 or 14.

701.2.1 Public systems available. A public sewer system shall be considered available when the lot or tract is located within the distance indicated in *Johnson County Environmental Sanitary Code* 2025 Edition (and amendments thereto.)

(History: Ord. No. BC-3499, §124, 2026; Ord. No. BC-3466 §3, 2024; Ord. No. BC-3286 §150, 2020; Ord. No. BC-2936 §114, 2012; Ord. No. BC-2832 §1, 2009)

16.330.1101.1

Section 1101.1 of the *International Plumbing Code* is hereby amended to read as follows:

1101.1 Scope. The provisions of this chapter shall govern the materials, design, construction and installation of storm drainage starting at the building roof and terminating at the connection to the site storm drainage system as covered in Title 15 of the Overland Park Municipal Code. Nothing in this chapter shall be construed to take precedence over the requirements set forth in Title 15 of the Overland Park Municipal Code or the requirements set forth by the Johnson County Wastewater District.

(History: Ord. No. BC-3499, §125, 2026; Ord. No. BC-3286 §152, 2020; Ord. No. BC-2936 §116, 2012; Ord. No. BC-2635 §146, 2007; Ord. No. BC-2459 §115, 2004; Ord. No. BC-2237 §4, 2001; Source or prior law: 16.08.200; Ord. No. BC-2013 §45, 97)

TITLE 16 - BUILDINGS AND CONSTRUCTION

16.340 MECHANICAL CODE

Contents:

16.340.100 Mechanical Code – Adoption.

16.340.101.1

16.340.101.5

16.340.102.12

16.340.103 (Deleted)

16.340.100 Mechanical Code – Adoption.

The **2024 International Mechanical Code**, as published by the International Code Council, Inc., is hereby adopted by reference as the Mechanical Code of the City of Overland Park, save and except such parts or portions thereof as are specifically deleted, added or changed in the City Code. At least one copy shall be marked “Official Copy as Incorporated by Ordinance No. BC-3499” and filed with the City Clerk for inspection by the public during reasonable business hours, with all sections or portions thereof intended to be deleted, added or changed clearly marked to show any deletions, additions or changes.

(History: Ord. No. BC-3499, §127, 2026)

16.340.101.1

Section 101.1 of the *International Mechanical Code* is hereby amended to read as follows:

101.1 Title. These regulations shall be known as the Mechanical Code of the City of Overland Park, hereinafter referred to as “this code.”

(History: Ord. No. BC- 3499, §128, 2026; Ord. No. BC-3286 §154, 2020; Ord. No. BC-2936 §118, 2012)

16.340.101.5

Section 101.5 of the *International Mechanical Code* is hereby added to read as follows:

101.5 Administration and Enforcement. The administration and enforcement provisions for this code shall be those provisions contained in Sections 103 through 116 of the International Building Code in OPMC 16.300 et seq.

(History: Ord. No. BC-3499, §129, 2026; Ord. No. BC-3286 §155, 2020; Ord. No. BC-2936 §119, 2012; Ord. No. BC-2635 §148, 2007 (part); Ord. No. BC-2459 §119 & 187, 2004; Ord. No. BC-2237 §5, 2001)

16.340.102.12

Section 102.12 of the *International Mechanical Code* is hereby added to read as follows:

102.12 State boiler inspector. Where permits are issued and portions of the work require inspection and approval of boilers and pressure vessels by the state of Kansas, those portions of the work will comply with the state requirements in lieu of compliance with the technical provisions of this code. Contact the Office of the State Fire Marshal Boiler Safety Unit for complete information regarding state requirements. State approval is generally required for all boilers that require permits.

Exceptions:

1. Boilers serving individual dwelling units and their accessory structures.
2. Boilers serving apartment houses with less than 5 families.
3. Pressure vessels that do not exceed 15 cubic feet and 250 psi.

(History: Ord. No. BC-3499, §130, 2026; Ord. No. BC-3286 §156, 2020; Ord. No. BC-2936 §120, 2012; Ord. No. BC-2635 §149, 2007; Ord. No. BC-2459 §120, 2004; Ord. No. BC-2237 §5, 2001)

16.340.103 (Deleted)

Sections 103 through 115 of the *International Mechanical Code* are hereby intentionally deleted and omitted.

(History: Ord. No. BC-3499, §131, 2026; Ord. No. BC-3286 §157, 2020; Ord. No. BC-2936 §121, 2012; Ord. No. BC-2635 §150, 2007; Ord. No. BC-2459 §121, 2004; Ord. No. BC-2237 §5, 2001; Source or prior law: 16.12.031; Ord. No. BC-2013 §92, 97; Ord. No. BC-1824 §97, 94; 16.12.120; Ord. No. BC-2013 §72, 97)

TITLE 16 - BUILDINGS AND CONSTRUCTION

16.350 FUEL GAS CODE

Contents:

16.350.100 Fuel Gas Code – Adoption.

16.350.101.1

16.350.101.5

16.350.103 (Deleted)

16.350.301.16

16.350.100 Fuel Gas Code – Adoption.

The **2024 International Fuel Gas Code**, as published by the International Code Council, Inc., is hereby adopted by reference as the Fuel Gas Code of the City of Overland Park, save and except such parts or portions thereof as are specifically deleted, added or changed in the City Code. At least one copy shall be marked “Official Copy as Incorporated by Ordinance No. BC-3499” and filed with the City Clerk for inspection by the public during reasonable business hours, with all sections or portions thereof intended to be deleted, added or changed clearly marked to show any deletions, additions or changes.

(History: Ord. No. BC-3499, §143, 2026; Ord. No. BC-3286 §158, 2020; Ord. No. BC-2936 §122, 2012; Ord. No. BC-2635 §151, 2007; Ord. No. BC-2459 §124, 2004; Ord. No. BC-2237 §6, 2001)

16.350.101.1

Section 101.1 of the *International Fuel Gas Code* is hereby amended to read as follows:

101.1 Title. These regulations shall be known as the *Fuel Gas Code of the City of Overland Park*, hereinafter referred to as “this code.”

(History: Ord. No. BC-3499, 144, 2026; Ord. No. BC-3286 §159, 2020; Ord. No. BC-2936 §123, 2012; Ord. No. BC-2635 §152, 2007)

16.350.101.5

Section 101.5 of the *International Fuel Gas Code* is hereby added to read as follows:

101.5 Administration and enforcement. The administration and enforcement provisions for this code shall be those provisions contained in Sections 103 through 116 of the *International Building Code* in OPMC 16.300 et seq.

(History: Ord. No. BC-3499, §145, 2026; Ord. No. BC-3286 §160, 2020; Ord. No. BC-2459 §187, 2004; Ord. No. BC-2237 §6, 2001)

16.350.103 (Deleted)

Sections 103 through 114 of the *International Fuel Gas Code* are hereby intentionally deleted and omitted.

(History: Ord. No. BC-3499, §146, 2026; Ord. No. BC-3286 §161, 2020; Ord. No. BC-2936 §125, 2012; Ord. No. BC-2635 §154, 2007; Ord. No. BC-2459 §126, 2004; Ord. No. BC-2237 §6, 2001)

16.350.301.16

Section 301.16 of the *International Fuel Gas Code* is hereby added to read as follows:

16.350.301.16 Protection from physical damage. Where meters supplying fuel gas are located adjacent to parking spaces or vehicular driveways they shall be protected from physical damage per Section 312 of the International Fire Code.

(History: Ord. No. BC-3499, §155, 2026; Ord. No. BC-3286 §162, 2020; Ord. No. BC-2936 §126, 2012; Ord. No. BC-2635 §155, 2007)

TITLE 16 - BUILDINGS AND CONSTRUCTION

16.360 ELECTRICAL CODE

Contents:

16.360.100 Electrical Code - Adoption.

16.360.90.10

16.360.210.52(C)(3)

16.360.100 Electrical Code - Adoption.

The ***NFPA 70 National Electrical Code, 2023 Edition*** - second printing (the “*National Electrical Code*”), approved as an American National Standard and published by the National Fire Protection Association, Inc., is hereby adopted by reference as the Electrical Code of the City of Overland Park, save and except such parts or portions thereof as are specifically deleted, added or changed in the City Code. At least one copy shall be marked “Official Copy as Incorporated by Ordinance No. BC-3499” and filed with the City Clerk for inspection by the public during reasonable business hours, with all sections or portions thereof intended to be deleted, added or changed clearly marked to show any deletions, additions or changes.

(History: Ord. No. BC-3499, §157, 2026; Ord. No. BC-3286 §163, 2020; Ord. No. BC-2936 §127, 2012; Ord. No. BC-2635 §156, 2007; Ord. No. BC-2459 §129, 2004; Ord. No. BC-2237 §7, 2001)

16.360.90.10

Article 90, Section 90.10 of the *National Electrical Code* is hereby added to read as follows:

90.10 Administration and Enforcement. The administrative provisions for this code shall be those provisions contained in Sections 103 through 116 of the Building Code in OPMC 16.300 et seq.

(History: Ord. No. BC-3499, §158, 2026; Ord. No. BC-3286 §164, 2020; Ord. No. BC-2936 §128, 2012; Ord. No. BC-2635 §158, 2007)

16.360.210.52(C)(3)

Article 210, Section 210.52(C)(3) of the *National Electrical Code* is hereby amended to read as follows:

210.52(C)(3) Receptacle Outlet Location. Receptacle outlets shall be located in one or more of the following:

1. On or above, but not more than 20 inches above, the countertop or work surface.
2. In countertop or work surfaces: Receptacle outlet assemblies listed for use in the countertops or work surfaces shall be permitted to be installed in countertops or work surfaces.
3. Below countertop or work surfaces: Not more than 12 inches below the countertop or work surface. Receptacles installed below a countertop or work surface shall not be located where the countertop or work surface extends more than 6 inches beyond its support base.

(History: Ord. No. BC-3499, 1§59, 2026)

TITLE 16 - BUILDINGS AND CONSTRUCTION

16.370 ENERGY CONSERVATION CODE

Contents:

16.370.100 Energy Conservation Code - Adoption

16.370.C101.1

16.370.C101.5

16.370.C103 (Deleted)

16.370.C105.2

16.370.C106 (Deleted)

16.370.C107

16.370.C108 (Deleted)

16.370.C402.6.2

16.370.C403.7.1

16.370.C403.7.8 (Deleted)

16.370.C405.2.4

16.370.C405.2.10 (Deleted)

16.370.C405.13

16.370.C405.15 (Deleted)

16.370.C406.2.5.5

16.370.C502.3.8 (Deleted)

16.370.R101.1

16.370.R101.2

16.370.R101.5

16.370.R103 (Deleted)

16.370.R105.2

16.370.R106 (Deleted)

16.370.R107

16.370.R108 (Deleted)

16.370.R405.2

16.370.100 Energy Conservation Code - Adoption

The **2024 International Building Code**, as published by the International Code Council, Inc., is hereby adopted by reference as the Energy Conservation Code of the City of Overland Park, save and except such parts or portions thereof as are specifically deleted, added or changed in the City Code. At least one copy shall be marked "Official Copy as Incorporated by Ordinance No. BC-3499" and filed with the City Clerk for inspection by the public during reasonable business hours, with all sections or portions thereof intended to be deleted, added or changed clearly marked to show any deletions, additions or changes.

(History: Ord. No. BC-3499, §161, 2026; Ord. No. BC-3286 §166, 2020; Ord. No. BC-2936 §132, 2012; Ord. No. BC-2635 §160, 2007; Ord. No. BC-2459 §134, 2004; Ord. No. BC-2237 §8, 2001)

16.370.C101.1

Section C101.1 of the *International Energy Conservation Code* is hereby amended to read as follows:

C101.1 Title. This code shall be known as the *Energy Conservation Code of the City of Overland Park*, hereafter referred to as "this code."

(History: Ord. No. BC-3499, §162, 2026; Ord. No. BC-3286 §167, 2020; Ord. No. BC-2936 §133, 2012; Ord. No. BC-2635 §161, 2007)

16.370.C101.5

Section C101.5 of the *International Energy Conservation Code* is hereby added to read as follows:

C101.5 Administration and Enforcement. The administration and enforcement provisions for this code shall be those provisions contained in Sections 103 through 116 of the International Building Code in OPMC 16.300 et seq.

(History: Ord. No. BC-3499, §163, 2026; Ord. No. BC-3286 §168, 2020)

16.370.C103 (Deleted)

Section C103 of the *International Energy Conservation Code* is hereby intentionally deleted and omitted.

(History: Ord. No. BC-3499, §164, 2026)

16.370.C105.2

Section C105.2 of the *International Energy Conservation Code* is hereby amended to read as follows:

C105.2 Information on construction documents. Construction documents shall be drawn to scale on suitable material. Electronic media documents are permitted to be submitted where approved by the code official. Construction documents shall be of sufficient clarity to indicate the location, nature and extent of the work proposed, and show in sufficient detail pertinent data and features of the building, systems and equipment as herein governed. Details shall include, but are not limited to, the following as applicable:

1. Energy compliance path.
2. Insulation materials and their R-values.
3. Fenestration U-factors and solar heat gain coefficients (SHGC).
4. Area-weighted U-factor and solar heat gain coefficient (SHGC) calculations.
5. Air barrier and air sealing details, including the location of the air barrier.
6. Thermal bridges as identified in Section C402.7.
7. Mechanical system design criteria.
8. Mechanical and service water-heating systems and equipment types, sizes and efficiencies.
9. Economizer description.
10. Equipment and system controls.
11. Fan motor horsepower (hp) and controls.
12. Duct sealing, duct and pipe insulation and location.
13. Lighting fixture schedule with wattage and control narrative.
14. Location of daylight zones on floor plans.
15. Location of pathways for routing of raceways or cable from the on-site renewable energy system to the electrical distribution equipment.
16. Location reserved for inverters, metering equipment and energy storage systems (ESS), and a pathway reserved for routing of raceways or conduit from the renewable energy system to the point of interconnection with the electrical service and the ESS.
17. Location and layout of a designated area for ESS.
18. Rated energy capacity and rated power capacity of the installed or planned ESS.
19. The additional energy requirements chosen from Section C406.

C105.2.1 Building thermal envelope depiction. The building thermal envelope shall be represented on the construction drawings.

(History: Ord. No. BC-3499, §165, 2026)

16.370.C106 (Deleted)

Section C106 of the *International Energy Conservation Code* is hereby intentionally deleted and omitted.

(History: Ord. No. BC-3499, §166, 2026)

16.370.C107

Section C107 of the *International Energy Conservation Code* is hereby amended to read as follows:

C107 SPECIAL INSPECTIONS AND TESTS

Where application is made to the building official for construction as specified in section 105 of the *International Building Code*, the owner or owner's authorized agent, other than the contractor, shall employ one or more approved agencies to provide special inspections and tests during construction on the types of work specified in this section. An approved agency shall be one that meets the requirements as specified in Section 1703 of the International Building Code.

The following shall be provided prior to issuance of a permit:

1. The design professional in responsible charge shall provide a statement of intent listing the required special inspections and tests in accordance with Section C107.1 through C107.4.
2. A letter of confirmation from the approved agency or agencies shall be provided to the building official that confirms the agency has been hired to perform the required inspections.

C107.1 Air barrier. An approved third party agency shall inspect the air barrier in accordance with the approved plans and Section C402.6.

C107.2 Insulation and thermal envelope. An approved third party agency shall inspect the installation of the insulation and other thermal envelope components in accordance with the approved plans and Section C402.6.

C107.3 Air tightness. An approved third party agency shall test the air tightness of the building in accordance with Section C402.6.

C107.4 Duct sealing and leakage. An approved third party agency shall inspect the duct sealing and test the duct leakage for compliance with Section C403.13 or Section C503.3.3.

(History: Ord. No. BC-3499, §167, 2026)

16.370.C108 (Deleted)

Sections C108 through C110 of the *International Energy Conservation Code* are hereby intentionally deleted and omitted.

(History: Ord. No. BC-3499, §168, 2026)

16.370.C402.6.2

Section C402.6.2 of the *International Energy Conservation Code* is hereby amended to read as follows:

C402.6.2.1 Whole building test method and reporting. The building thermal envelope shall be tested by an approved third party in accordance with ASTM E3158 or an equivalent approved method. A report that includes the tested surface area, floor area, air by volume, stories above grade, and air leakage rates shall be submitted to the code official and the building owner.

Exceptions:

1. For buildings less than 10,000 square feet (929 m²), the entire building thermal envelope shall be permitted to be tested in accordance with ASTM E779, ASTM E3158, ASTM E1827 or an equivalent approved method.
2. For buildings greater than 50,000 square feet (4645 m²), portions of the building shall be permitted to be tested and the measured air leakage shall be area weighted by the surface areas of the building thermal envelope in each portion. The weighted-average tested air leakage shall not be greater than the whole building air leakage limit. The following portions of the building shall be tested:
 - 2.1 The entire building thermal envelope area of stories that have any conditioned spaces directly under a roof.
 - 2.2 The entire building thermal envelope area of stories that have a building entrance, have a floor over unconditioned space, have a loading dock or that are below grade.
 - 2.3 Representative above-grade portions of the building totaling not less than 25 percent of the wall area enclosing the remaining conditioned space.

C402.6.2.2 Dwelling and sleeping unit enclosure method and reporting. The building thermal envelope shall be tested for air leakage in accordance with ASTM E779, ANSI/RESNET/ICC 380, ASTM E1827 or an equivalent approved method. Where multiple dwelling units or sleeping units or other spaces are contained within one building thermal envelope, each shall be considered an individual testing unit, and the building air leakage shall be the weighted average of all tested unit results, weighted by each testing unit enclosure area. Units shall be tested without simultaneously testing adjacent units and shall be separately tested as follows:

1. Where buildings have less than eight total dwelling or sleeping units, each testing unit shall be tested.
2. Where buildings have eight or more dwelling or sleeping units, the greater of seven units or 20 percent of the units in the building shall be tested, including a top floor unit, a middle floor unit, a ground floor unit and a unit with the largest testing unit enclosure area. For each tested unit that exceeds the maximum air leakage rate, an additional three units shall be tested, including a mixture of testing unit types and locations.
3. Enclosed spaces with not less than one exterior wall in the building thermal envelope shall be tested in accordance with Section C402.6.2.1.

Exception: Corridors, stairwells, and enclosed spaces having a conditioned floor area not greater than 1,500 square feet (139 m²) shall be permitted to comply with Section C402.6.2.3 and either Section C402.6.2.3.1 or Section C402.6.2.3.2.

C402.6.2.3 Building thermal envelope design and construction verification criteria. Where Section C402.6.2.1 and C402.6.2.2 are not applicable the installation of the continuous air barrier shall be verified by the code official, a registered design professional or approved agency in accordance with the following:

1. A review of the construction documents and other supporting data shall be conducted to assess compliance with the requirements in Section C402.6.1.
2. Inspection of continuous air barrier components and assemblies shall be conducted during construction to verify compliance with the requirements of Sections C402.6.2.3.1 and C402.6.2.3.2. The air barrier shall be provided with access for inspection and repair.
3. A final inspection report shall be provided for inspections completed by the registered design professional or approved agency. The inspection report shall be provided to the building owner or owner's authorized agent and the code official. The report shall identify deficiencies found during inspection and details of corrective measures taken.

C402.6.2.3.1 Materials. Materials with an air permeability not greater than 0.004 cfm/ft² (0.02 L/s × m²) under a pressure differential of 0.3 inch water gauge (75 Pa) when tested in accordance with ASTM E2178 shall comply with this section. Materials in Items 1 through 16 shall be deemed to comply with this section, provided that joints are sealed and materials are installed as air barriers in accordance with the manufacturer's instructions.

1. Plywood with a thickness of not less than 3/8 inch (10 mm).
2. Oriented strand board having a thickness of not less than 3/8 inch (10 mm).
3. Extruded polystyrene insulation board having a thickness of not less than 1/2 inch (12.7 mm).
4. Foil-back polyisocyanurate insulation board having a thickness of not less than 1/2 inch (12.7 mm).

Closed-cell spray foam having a minimum density of 1.5 pcf (2.4 kg/m³) and having a thickness of not less than 1 1/2 inches (38 mm).

5. Open-cell spray foam with a density between 0.4 and 1.5 pcf (0.6 and 2.4 kg/m³) and having a thickness of not less than 4.5 inches (113 mm).
6. Exterior or interior gypsum board having a thickness of not less than 1/2 inch (12.7 mm).
7. Cement board having a thickness of not less than 1/2 inch (12.7 mm).
8. Built-up roofing membrane.
9. Modified bituminous roof membrane.
10. Single-ply roof membrane.
11. A Portland cement/sand parge, or gypsum plaster having a thickness of not less than 5/8 inch (15.9 mm).
12. Cast-in-place and precast concrete.
13. Fully grouted concrete block masonry.
14. Sheet steel or aluminum.
15. Solid or hollow masonry constructed of clay or shale masonry units.
16. A final inspection report shall be provided for inspections completed by the registered design professional or approved agency. The inspection report shall be provided to the building owner or owner's authorized agent and the code official. The report shall identify deficiencies found during inspection and details of corrective measures taken.

C402.6.2.3.2 Assemblies. Assemblies of materials and components with an average air leakage not greater than 0.04 cfm/ft² (0.2 L/s × m²) under a pressure differential of 0.3 inch of water gauge (75 Pa) where tested in accordance with ASTM E2357, ASTM E1677, ASTM D8052 or ASTM E283 shall comply with this section. Assemblies listed in Items 1 through 3 below shall be deemed to comply, provided that joints are sealed and the requirements of Section C402.6.1.2 are met.

1. Concrete masonry walls coated with either one application of block filler or two applications of a paint or sealer coating.
2. Masonry walls constructed of clay or shale masonry units with a nominal width greater than or equal to 4 inches (102 mm).
3. A Portland cement/sand parge, stucco or plaster not less than 1/2 inch (12.7 mm) in thickness.

(History: Ord. No. BC-3499, §171, 2026)

16.370.C403.7.1

Section C403.7.1 of the *International Energy Conservation Code* is hereby amended to read as follows:

C403.7.1 Demand control ventilation. Demand control ventilation (DCV) shall be provided for the following:

1. Spaces larger than 250 square feet (23 m²) in Climate Zones 5A, 6, 7, and 8 and spaces larger than 500 square feet (46.5 m²) in other climate zones that have a design occupant load of 15 people or greater per 1,000 square feet (93 m²) of floor area, as established in Table 403.3.1.1 of the International Mechanical Code, and are served by systems with one or more of the following:
 - 1.1. An air-side economizer.
 - 1.2. Automatic modulating control of the outdoor air damper.
 - 1.3. A design outdoor airflow greater than 3,000 cfm (1416 L/s).

Exceptions:

1. Spaces served by systems with energy recovery in accordance with Section C403.7.4.2 and that have a floor area less than:
 - 1.1. 6,000 square feet (557 m²) in Climate Zone 3C.
 - 1.2. 2,000 square feet (186 m²) in Climate Zones 1A, 3B and 4B.
 - 1.3. 1,000 square feet (93 m²) in Climate Zones 2A, 2B, 3A, 4A, 4C, 5 and 6.
 - 1.4. 400 square feet (37 m²) in Climate Zones 7 and 8.
2. Multiple-zone systems without direct digital control of individual zones communicating with a central control panel.
3. Spaces served by multiple-zone systems with a design outdoor airflow less than 750 cfm (354 L/s).
4. Spaces where more than 75 percent of the space design outdoor airflow is required for makeup air that is exhausted from the space or transfer air that is required for makeup air that is exhausted from other spaces.
5. Spaces with one of the following occupancy classifications as defined in Table 403.3.1.1 of the International Mechanical Code: correctional cells, education laboratories, barber, beauty and nail salons, and bowling alley seating areas.
6. Spaces where the registered design professional demonstrates an engineered ventilation system design that:
 - 6.1. Prevents the maximum concentration of contaminants from being more than that obtainable by the required rate of outdoor air ventilation.
 - 6.2. Allows the required minimum design rate of outdoor air to be reduced by not less than 15 percent.

(History: Ord. No. BC-3499, §172, 2026)

16.370.C403.7.8 (Deleted)

Section C403.7.8 of the *International Energy Conservation Code* is hereby intentionally deleted and omitted.

(History: Ord. No. BC-3499, §173, 2026)

16.370.C405.2.4

Section C405.2.4 of the *International Energy Conservation Code* is hereby amended to read as follows; provided however, Figures C405.2.4.2(1), C405.2.4.2(2), C405.2.4.2(3), C405.2.4.3 and C405.2.4.4 shall continue to read as originally published in the 2024 *International Energy Conservation Code* and accordingly said figures are not reprinted but are incorporated by reference:

C405.2.4 Daylight responsive controls. Daylight responsive controls complying with Section C405.2.4.1 shall be provided to control the general lighting within daylight zones in the following spaces:

1. Spaces with a total of more than 150 watts of general lighting within primary sidelit daylight zones complying with Section C405.2.4.2.
2. Spaces with a total of more than 300 watts of general lighting within sidelit daylight zones complying with Section C405.2.4.2.
3. Spaces with a total of more than 150 watts of general lighting within toplit daylight zones complying with Section C405.2.4.3.

Exceptions:

1. Daylight responsive controls are not required for the following:
2. Spaces in health care facilities where patient care is directly provided.
3. Sidelit daylight zones on the first floor above grade in Group A-2 and Group M occupancies.
4. Enclosed office spaces less than 250 square feet (23.2 m²).

C405.2.4.1 Daylight responsive control function. Where required, daylight responsive controls shall be provided within each space for control of lights in that space and shall comply with all of the following:

1. Lights in toplit daylight zones in accordance with Section C405.2.4.3 shall be controlled independently of lights in sidelit daylight zones in accordance with Section C405.2.4.2.
2. Lights in the primary sidelit daylight zone shall be controlled independently of lights in the secondary sidelit daylight zone.
3. Daylight responsive controls within each space shall be configured so that they can be calibrated from within that space by authorized personnel.
4. Calibration mechanisms shall be in a location with ready access.
5. Daylight responsive controls shall dim lights continuously from full light output to 15 percent of full light output or lower.
6. Daylight responsive controls shall be configured to completely shut off all controlled lights.
7. When occupant sensor controls have reduced the lighting power to an unoccupied setpoint in accordance with Sections C405.2.1.2 through C405.2.1.4, daylight responsive controls shall continue to adjust electric light levels in response to available daylight, but shall be configured to not increase the lighting power above the specified unoccupied setpoint.
8. Lights in sidelit daylight zones in accordance with Section C405.2.4.2 facing different cardinal orientations [within 45 degrees (0.79 rad) of due north, east, south, west] shall be controlled independently of each other.

Exceptions:

1. Within each space, up to 150 watts of lighting within the primary sidelit daylight zone is permitted to be controlled together with lighting in a primary sidelit daylight zone facing a different cardinal orientation.
2. Within each space, up to 150 watts of lighting within the secondary sidelit daylight zone is permitted to be controlled together with lighting in a secondary sidelit daylight zone facing a different cardinal orientation.

C405.2.4.2 Sidelit daylight zone. The sidelit daylight zone is the floor area adjacent to vertical fenestration that complies with all of the following:

1. Where the fenestration is located in a wall, the primary sidelit daylight zone shall extend laterally to the nearest full-height wall, or up to 1.0 times the height from the floor to the top of the fenestration, and longitudinally from the edge of the fenestration to the nearest full-height wall, or up to 0.5 times the height from the floor to the top of the fenestration, whichever is less, as indicated in Figure C405.2.4.2(1).
2. Where the fenestration is located in a rooftop monitor, the primary sidelit daylight zone shall extend laterally to the nearest obstruction that is taller than 0.7 times the ceiling height, or up to 1.0 times the height from the floor to the bottom of the fenestration, whichever is less, and longitudinally from the edge of the fenestration to the nearest obstruction that is taller than 0.7 times the ceiling height, or up to 0.25 times the height from the floor to the bottom of the fenestration, whichever is less, as indicated in Figures C405.2.4.2(2) and C405.2.4.2(3).
3. Where the fenestration is located in a wall, the secondary sidelit daylight zone is directly adjacent to the primary sidelit daylight zone and shall extend laterally to 2.0 times the height from the floor to the top of the fenestration or to the nearest full-height wall, whichever is less, and longitudinally from the edge of the fenestration to the nearest full-height wall, or up to 0.5 times the height from the floor to the top of the fenestration, whichever is less, as indicated in Figure C405.2.4.2(1).
4. The area of the fenestration is not less than 24 square feet (2.23 m).
5. The distance from the fenestration to any building or geological formation that would block access to daylight is greater than one-half of the height from the bottom of the fenestration to the top of the building or geologic formation.
6. The visible transmittance of the fenestration is not less than 0.20.
7. The projection factor (determined in accordance with Equation 4-4) for any overhanging projection that is shading the fenestration is not greater than 1.0 for fenestration oriented 45 degrees or less from true north and not greater than 1.5 for all other orientations.

FIGURE C405.2.4.2(1)—PRIMARY AND SECONDARY SIDELIT DAYLIGHT ZONES - see figure as originally published in the *2024 International Energy Conservation Code*, which is incorporated herein by reference.

FIGURE C405.2.4.2(2)—DAYLIGHT ZONE UNDER A ROOFTOP MONITOR - see figure as originally published in the *2024 International Energy Conservation Code*, which is incorporated herein by reference.

FIGURE C405.2.4.2(3)—DAYLIGHT ZONE UNDER A SLOPED ROOFTOP MONITOR - see figure as originally published in the *2024 International Energy Conservation Code*, which is incorporated herein by reference.

C405.2.4.3 Toplit daylight zone. The toplit daylight zone is the floor area underneath a roof fenestration assembly that complies with all of the following:

1. The toplit daylight zone shall extend laterally and longitudinally beyond the edge of the roof fenestration assembly to the nearest obstruction that is taller than 0.7 times the ceiling height, or up to 0.7 times the ceiling height, whichever is less, as indicated in Figure C405.2.4.3.
2. Direct sunlight is not blocked from hitting the roof fenestration assembly at the peak solar angle on the summer solstice by buildings or geological formations.
3. The product of the visible transmittance of the roof fenestration assembly and the area of the rough opening of the roof fenestration assembly divided by the area of the toplit zone is not less than 0.008.

FIGURE C405.2.4.3—TOPLIT DAYLIGHT ZONE - see figure as originally published in the *2024 International Energy Conservation Code*, which is incorporated herein by reference.

C405.2.4.4 Atriums. Daylight zones at atrium spaces shall be established at the top floor surrounding the atrium and at the floor of the atrium space, and not on intermediate floors, as indicated in Figure C405.2.4.4.

FIGURE C405.2.4.4—DAYLIGHT ZONES AT A MULTISTORY ATRIUM - see figure as originally published in the *2024 International Energy Conservation Code*, which is incorporated herein by reference.

(History: Ord. No. BC-3499, §174, 2026)

16.370.C405.2.10 (Deleted)

Section C405.2.10 of the *International Energy Conservation Code* is hereby intentionally deleted and omitted.

(History: Ord. No. BC-3499, §175, 2026)

16.370.C405.13

Section C405.13 of the *International Energy Conservation Code* is hereby amended to read as set forth hereafter; provided however, Tables C405.13.2 and C405.13.8 shall continue to read as originally published in the *2024 International Energy Conservation Code* and accordingly said tables are not reprinted but are incorporated by reference:

C405.13 Energy monitoring. New buildings with a gross conditioned floor area of not less than 25,000 square feet (2,322.58 m²) shall be equipped to measure, monitor, record and report energy consumption in accordance with Sections C405.13.1 through C405.13.6 for load categories indicated in Table C405.13.2 and Sections C405.13.7 through C405.13.11 for end-use categories indicated in Table C405.13.8.

Exceptions:

1. Dwelling units in R-2 occupancies.
2. Individual tenant spaces are not required to comply with this section provided that the space has its own utility services and meters and has less than 5,000 square feet (464.5 m²) of conditioned floor area.

C405.13.1 Electrical energy metering. For electrical energy supplied to the building and its associated site, including but not limited to site lighting, parking, recreational facilities and other areas that serve the building and its occupants, meters or other measurement devices shall be provided to collect energy consumption data for each end-use category required by Section C405.13.2.

C405.13.2 End-use electric metering categories. Meters or other approved measurement devices shall be provided to collect energy use data for each end-use category indicated in Table C405.13.2. Where multiple meters are used to measure any end-use category, the data acquisition system shall total all of the energy used by that category. Not more than 5 percent of the design load for each of the end-use categories indicated in Table C405.13.2 shall be permitted to be from a load that is not within that category.

Exceptions:

1. HVAC and water heating equipment serving only an individual dwelling unit shall not require end-use metering.
2. End-use metering shall not be required for fire pumps, stairwell pressurization fans or any system that operates only during testing or emergency.
3. End-use metering shall not be required for an individual tenant space having a floor area not greater than 2,500 square feet (232 m²) where a dedicated source meter complying with Section C405.13.3 is provided.

TABLE C405.13.2 - see table as originally published in the *2024 International Energy Conservation Code*, which is incorporated herein by reference.

C405.13.3 Electrical meters. Meters or other measurement devices required by this section shall be configured to automatically communicate energy consumption data to the data acquisition system required by Section C405.13.4. Source meters shall be allowed to be any digital-type meter. Lighting, HVAC or other building systems that can self-monitor their energy consumption shall be permitted instead of meters. Current sensors shall be permitted, provided that they have a tested accuracy of ± 2 percent. Required metering systems and equipment shall have the capability to provide at least hourly data that is fully integrated into the data acquisition system and graphical energy report in accordance with Sections C405.13.4 and C405.13.5. Nonintrusive load monitoring (NILM) packages that extract energy consumption data from detailed electric waveform analysis shall be permitted to substitute for individual meters if the equivalent data is available for collection in Section C405.13.4 and reporting in Section C405.13.5.

C405.13.4 Electrical energy data acquisition system. A data acquisition system shall have the capability to store the data from the required meters and other sensing devices for a minimum of 36 months. The data acquisition system shall have the capability to store real-time energy consumption data and provide hourly, daily, monthly and yearly logged data for each end-use category required by Section C405.13.2. The data acquisition system shall have the capability of providing building total peak electric demand and the time(s) of day and time(s) per month at which the peak occurs. Peak demand shall be integrated over the same time period as the underlying whole-building meter reading rate.

C405.13.5 Graphical energy report. A permanent and readily available reporting mechanism shall be provided in the building for access by building operation and management personnel. The reporting mechanism shall have the capability to graphically provide the energy consumption for each end-use category required by Section C405.13.2 not less than every hour, day, month and year for the previous 36 months.

C405.13.6 Renewable energy. On-site renewable energy sources shall be metered with no less frequency than nonrenewable energy systems in accordance with Section C405.13.3.

C405.13.7 Nonelectrical energy submetering. For all nonelectrical energy supplied to the building and its associated site that serves the building and its occupants, submeters or other measurement devices shall be provided to collect energy consumption data for each end-use category required by Section C405.13.8.

Exceptions:

1. HVAC and water heating equipment serving only an individual dwelling unit shall not require end-use submetering.
2. End-use submetering shall not be required for fire pumps, stairwell pressurization fans or any system that operates only during testing or emergency.
3. End-use submetering shall not be required for an individual tenant space having a floor area not greater than 2,500 square feet (232 m²) where a dedicated source meter complying with Section C405.13.9 is provided.
4. Equipment powered primarily by solid fuels serving loads other than building heating and service water heating loads.

C405.13.8 End-use nonelectrical submetering categories. Submeters or other approved measurement devices shall be provided to collect energy use data for each end-use category indicated in Table C405.13.8. Where multiple submeters are used to measure any end-use category, the data acquisition system shall total all of the energy used by that category. Not more than 5 percent of the design load for each of the end-use categories indicated in Table C405.13.8 shall be permitted to be from a load that is not within that category.

TABLE C405.13.8 - see table as originally published in the *2024 International Energy Conservation Code*, which is incorporated herein by reference.

C405.13.9 Nonelectrical submeters. Submeters or other measurement devices required by this section shall be configured to automatically communicate energy consumption data to the data acquisition system required by Section C405.13.10. Source submeters shall be allowed to be any digital-type meter that can provide a digital output to the data acquisition system. Required submetering systems and equipment shall be fully integrated into the data acquisition system and graphical energy report that updates at least hourly in accordance with Sections C405.13.10 and C405.13.11.

C405.13.10 Nonelectrical energy data acquisition system. A data acquisition system shall have the capability to store the data from the required submeters and other sensing devices for not less than 36 months. The data acquisition system shall have the capability to store real-time energy consumption data and provide hourly, daily, monthly and yearly logged data for each end-use category required by Section C405.13.8. The data acquisition system shall have the capability of providing building total nonelectrical peak demand and the time(s) of day and time(s) per month at which the peak occurs. Where applicable as determined by the authority having jurisdiction (AHJ), peak demand shall be integrated over the same time period as the underlying whole-building meter reading rate.

C405.13.11 Graphical energy report. A permanent and readily accessible reporting mechanism shall be provided in the building that is accessible by building operation and management personnel. The reporting mechanism shall have the capability to graphically provide the nonelectrical energy consumption for each end-use category required by Section C405.13.8 not less than every hour, day, month and year for the previous 36 months. The graphical report shall incorporate natural gas interval data from the submeter or the ability to enter gas utility bills into the report.

(History: Ord. No. BC-3499, §176, 2026)

16.370.C405.15 (Deleted)

Section C405.15 through C406.2.2.4 of the *International Energy Conservation Code* is hereby intentionally deleted and omitted.

(History: Ord. No. BC-3499, §177, 2026)

16.370.C406.2.5.5

Section C406.2.5.5 of the *International Energy Conservation Code* is hereby amended to read as follows:

C406.2.5.5 L05 Residential light control. In buildings with Group R-2 occupancy spaces, interior lighting systems shall comply with the following:

1. In common areas, the following space types shall have occupant sensor controls that comply with the requirements of Section C405.2.1.1:
 - 1.1. Laundry/washing areas.
 - 1.2. Dining areas.
 - 1.3. Food preparation areas.
 - 1.4. Seating areas.
 - 1.5. Exercise areas.
 - 1.6. Massage spaces.
2. In dwelling units, not less than one receptacle in each living room and each sleeping room shall be controlled by a switch in that room.

(History: Ord. No. BC-3499, §179, 2026)

16.370.C502.3.8 (Deleted)

Section C502.3.8 of the *International Energy Conservation Code* is hereby intentionally deleted and omitted.

(History: Ord. No. BC-3499, §180, 2026)

16.370.R101.1

Section R101.1 of the *International Energy Conservation Code* is hereby amended to read as follows:

R101.1 Title. This code shall be known as the *Energy Conservation Code of the City of Overland Park*, hereinafter referred to as “this code.”

(History: Ord. No. BC-3499, §181, 2026)

16.370.R101.2

Section R101.2 of the *International Energy Conservation Code* is hereby amended to read as follows:

R101.2 Scope. This code applies to the design and construction of Group R-2, R-3 and R-4 buildings three stories or less in height above grade plane.

(History: Ord. No. BC-3499, §182, 2026)

16.370.R101.5

Section R101.5 of the *International Energy Conservation Code* is hereby added to read as follows:

R101.5 Administration and Enforcement. The administration and enforcement provisions for this code shall be those provisions contained in Sections 103 through 116 of the *International Building Code* in OPMC 16.300 et seq.

(History: Ord. No. BC-3499, §183, 2026; Ord. No. BC-3286 §168, 2020)

16.370.R103 (Deleted)

Section R103 of the *International Energy Conservation Code* is hereby intentionally deleted and omitted.

(History: Ord. No. BC-3499, §184, 2026; Ord. No. BC-3286 §169, 2020; Ord. No. BC-2635 §211, 2007; Ord. No. BC-2459 §137, 2004; Ord. No. BC-2237 §8, 2001)

16.370.R105.2

Section R105.2 of the *International Energy Conservation Code* is hereby added to read as follows:

R105.2 Information on construction documents. Construction documents shall be drawn to scale on suitable material. Electronic media documents are permitted to be submitted where approved by the code official. Construction documents shall be of sufficient clarity to indicate the location, nature and extent of the work proposed, and show in sufficient detail pertinent data and features of the building, systems and equipment as herein governed. Details shall include the following as applicable:

1. Energy compliance path.
2. Insulation materials and their R-values.
3. Fenestration U-factors and solar heat gain coefficients (SHGC).
4. Area-weighted U-factor and solar heat gain coefficients (SHGC) calculations.
5. Mechanical system design criteria.
6. Mechanical and service water-heating systems and equipment types, sizes and efficiencies.
7. Equipment and system controls.
8. Duct sealing, duct and pipe insulation and location.
9. Air sealing details.
10. The additional energy requirements chosen from Section R408.

R105.2.1 Building thermal envelope depiction. The building thermal envelope shall be represented on the construction documents.

R105.2.2 Solar-ready system. Where a solar-ready zone is provided, the construction documents shall indicate details for a dedicated roof area for the solar-ready zone, roof dead load, roof live load, ground snow load and the routing of conduit or prewiring from the solar-ready zone to an electrical service panel or plumbing from the solar-ready zone to a service water heating system.

(History: Ord. No. BC-3499, §185, 2026)

16.370.R106 (Deleted)

Section R106 of the *International Energy Conservation Code* is hereby intentionally deleted and omitted.

(History: Ord. No. BC-3499, §186, 2026)

16.370.R107

Section R107 of the *International Energy Conservation Code* is hereby amended to read as follows:

R107 SPECIAL INSPECTIONS AND TESTS

Where application is made to the building official for construction as specified in Section 105 of the International Building Code, the owner or owner's authorized agent, other than the contractor, shall employ one or more approved agencies to provide special inspections and tests during construction on the types of work specified in this section. An approved agency shall be one that meets the requirements as specified in Section 1703 of the International Building Code.

The following shall be provided prior to issuance of a permit:

1. The design professional in responsible charge shall provide a statement of intent listing the required special inspections and tests in accordance with Section R107.1 through R107.4.
2. A letter of confirmation from the approved agency or agencies shall be provided to the building official that confirms the agency has been hired to perform the required inspections.

R107.1 Air barrier. An approved third party agency shall inspect the air barrier in accordance with the approved plans and Section R402.5.

R107.2 Insulation and thermal envelope. An approved third party agency shall inspect the installation of the insulation and other thermal envelope components in accordance with the approved plans and Section R402.5.

R107.3 Air tightness. An approved third party agency shall test the air tightness of the building in accordance with Section R402.5.

R107.4 Duct sealing and leakage. An approved third party agency shall inspect the duct sealing and test the duct leakage for compliance with Section R403.3 or Section R503.1.

(History: Ord. No. BC-3499, §187, 2026)

16.370.R108 (Deleted)

Sections R108 through R110 of the *International Energy Conservation Code* are hereby intentionally deleted and omitted.

(History: Ord. No. BC-3499, §188, 2026)

16.370.R405.2

Section R405.2 of the *International Energy Conservation Code* is hereby amended to read as set forth hereafter; provided however, Table R405.2 shall continue to read as originally published in the 2024 *International Energy Conservation Code* and accordingly said table is not reprinted but is incorporated by reference:

R405.2 Simulated building performance compliance. Compliance based on simulated building performance requires that a building comply with the following:

1. The requirements of the sections indicated within Table R405.2.
2. The proposed total building thermal envelope thermal conductance (TC) shall be less than or equal to the required total building thermal envelope TC using the prescriptive U-factors and F-factors from Table R402.1.2 multiplied by 1.08 in Climate Zones 0, 1 and 2, and 1.15 in Climate Zones 3 through 8, in accordance with Equation 4-2 and Section R402.1.5. The area-weighted maximum fenestration SHGC permitted in Climate Zones 0 through 3 shall be 0.30.

Equation 4-2 For Climate Zones 0–2: $TC_{\text{Proposed design}} \leq 1.08 \times TC_{\text{Prescriptive reference design}}$

For Climate Zones 3–8: $TC_{\text{Proposed design}} \leq 1.15 \times TC_{\text{Prescriptive reference design}}$

3. For all dwelling units, the annual energy cost of the proposed design shall be less than or equal to 85 percent of the annual energy cost of the standard reference design. For each dwelling unit with greater than 5,000 square feet (465 m²) of living space located above grade plane, the annual energy cost of the dwelling unit shall be reduced by an additional 5 percent of annual energy cost of the standard reference design. Energy prices shall be taken from an approved source, such as the US Energy Information Administration's State Energy Data System prices and expenditures reports. Code officials shall be permitted to require time-of-use pricing in energy cost calculations.

Exceptions:

1. The energy use based on source energy expressed in Btu or Btu per square foot of conditioned floor area shall be permitted to be substituted for the energy cost. The source energy multiplier for electricity shall be 2.51. The source energy multipliers shall be 1.09 for natural gas, 1.15 for propane, 1.19 for fuel oil, and 1.30 for imported liquified natural gas.
2. The energy use based on site energy expressed in Btu or Btu per square foot of conditioned floor area shall be permitted to be substituted for the energy cost.

TABLE R405.2 - see table as originally published in the *2024 International Energy Conservation Code*, which is incorporated herein by reference.

(History: Ord. No. BC-3499, §191, 2026)

TITLE 18 - UNIFIED DEVELOPMENT ORDINANCE

18.110 RULES OF INTERPRETATION AND DEFINITIONS

Contents:

18.110.010 Rules of Interpretation

18.110.020 Definitions

18.110.010 Rules of Interpretation

For purposes of interpreting this ordinance, the following rules shall apply.

- A. Unless the context clearly indicates to the contrary, words used in the present tense include the future tense, words used in the singular include the plural, words used in the plural include the singular, words importing the masculine gender include the feminine and neuter, the word "shall" is mandatory, the word "building" includes the word "structure", and the term "used for" includes "designed for" or "intended for."
- B. Unless specifically provided, in computing any period of time prescribed or allowed by this ordinance, the day of the act, event, or default from which the designated period of time begins to run shall not be included. The last day of the period so computed is to be included, unless it is a Saturday, Sunday or a legal holiday, in which event the period runs until the end of the next day which is not a Saturday, Sunday or a legal holiday. When the period of time proscribed or allowed is less than seven (7) days, intermediate Saturdays, Sundays and legal holidays shall be excluded in the computation. A half-holiday shall be considered as other days and not as a holiday. "Legal holiday" includes any day designated as a holiday by the Congress of the United States or by the Kansas legislature. Whenever a notice, petition or other document is required to be filed within a specified time period, the notice, petition or document must be filed with the appropriate city official or in the appropriate City office not later than 5:00 p.m. on the last day of the period as computed above.
- C. Where this ordinance permits or requires an act on the part of an "owner" or "landowner," and a particular lot or tract of land is owned by several persons, whether in joint tenancy, tenancy in common, partnership, joint venture or other form of joint ownership, the act shall be taken on behalf of, and with the express consent of, all such persons.

(History: Ord. ZRR-1725; ZRR-1637)

18.110.020 Definitions

- A. Where a word or term is not defined in this Chapter but is defined elsewhere in this ordinance or in the Code, such definition shall be applicable unless the context indicates that a standard dictionary definition is more appropriate.

B. Where a word or term is defined in this Chapter and also defined elsewhere in this ordinance, the definition contained in this Chapter shall be generally applicable except in the Chapter or Section to which the other definition applies.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.030 Accessory Building

Accessory building means a subordinate building having a use customarily incident to and located on the lot occupied by the main building. A building housing an accessory use is considered to be an integral part of the main building when it has any part of a wall in common with the main building, or is under an extension of the main roof and designed as an integral part of the main building.

(History: Ord. ZRR-1725; ZRR-1637; ZRR-889 §18.02)

18.110.035 Accessory Use

Accessory use means a use of a building or land which serves an incidental function to and is customarily associated with, and located on the same lot or premises as, the main use of the premises.

(History: Ord. ZRR-1725; ZRR-1637; ZRR-889 §18.02)

18.110.040 Agricultural Use

Agricultural use refers to the use of land where such land is devoted to the production of plants, animals or horticultural products, including but not limited to: forages; grains and feed crops; dairy animals and dairy products; poultry and poultry products; beef cattle, sheep, swine and horses; bees and apiary products; trees and forest products; fruits, nuts and berries; vegetables; or nursery, floral, ornamental and greenhouse products. Agricultural use shall not include use of land for recreational purposes, suburban residential acreages, rural home sites or farm home sites and yard plots whose primary function is for residential or recreational purposes even though such properties may produce or maintain some of those plants or animals listed in the foregoing definition.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.045 Alley

Alley means a minor way, dedicated for public use, which is used primarily for vehicular access to the sides or rear of lots.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637; ZRR-889 §18.02)

18.110.050 Alteration

Alteration means any addition, removal, extension or change in location of any exterior wall of the main building or accessory building.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637; ZRR-889 §18.02)

18.110.052 Antenna - Satellite Dish

Satellite Dish Antenna shall mean a dish-shaped antenna used to receive signals transmitted from satellites. Large Satellite Dish Antennas are those where the maximum diameter of the dish is greater than 36 inches. Small Satellite Dish Antennas are those where the maximum diameter of the dish is 36 inches or less in diameter.

(History: Ord. ZRR-3134 §13, 2016; ZRR-2004 § 1, 96)

18.110.055 Apartment

Apartment means a room or a suite of rooms within an apartment house arranged, intended or designed for a place of residence of a single family or group of individuals living together as a single housekeeping unit.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637; ZRR-889 §18.02)

18.110.060 Apartment House

Apartment house means a building arranged, intended or designed for residence by more than two families.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637; ZRR-889 §18.02)

18.110.065 Arcade

Arcade shall mean any establishment housing 5 or more video games, pinball games, air hockey, or similar coin-operated amusement apparatus.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637; ZRR-1197; ZRR-889 §18.02)

Base flood elevation– see [18.110.505](#).

Base flood protection elevation– see [18.110.510](#).

18.110.070 Block

Block means a tract or parcel of land entirely surrounded by public highways or streets, other than alleys. In cases where the platting is incomplete or disconnected, the Director of Planning and Development Services shall determine the outline of the block.

(History: Ord. ZRR-2343 §2, 2002; ZRR-1725; ZRR-1661; ZRR-1637; ZRR-889 §18.02)

18.110.071 Best Management Practice (BMP)

Best Management Practice or BMP mean physical facilities, schedules of activities, prohibitions of practices, maintenance procedures, and other management practices which, when properly designed, installed and maintained, will be effective to prevent or reduce the discharge of water or air pollution associated with land disturbance activities regulated by this Ordinance.

(History: Ord. ZRR-2420 §1, 2003)

18.110.072 Build-to Line

Build-to line means a line, parallel to the respective lot line, and internal to the lot, which defines the required maximum and minimum setback for the entire building façade as specified in the district regulations.

(History: Ord. ZRR-2343 §3, 2002)

18.110.074 Building Permit

Building permit means an official document or certificate issued by the Director of Planning and Development Services which authorizes any owner or authorized agent to construct, enlarge, alter, repair, move, demolish, or change the occupancy of a building or structure, or to install, enlarge, alter, remove, replace any electrical, gas, mechanical, or plumbing system, the installation of which is regulated by [Title 16](#) of the Overland Park Municipal Code, or to cause any such work to be done. A building permit may also specifically authorize land disturbance and installation of site improvements in lieu of separate site development and land disturbance permits.

(History: Ord. ZRR-2420 §2, 2003)

18.110.075 Church

Church means a building for public religious worship, and includes synagogues and temples.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.080 City

City means the City of Overland Park, Kansas.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.085 City Attorney

City Attorney means the duly appointed City Attorney of the City, or his or her designee.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.090 City Clerk

City Clerk means the duly appointed City Clerk of the City, or his or her designee.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.095 City Council

City Council means the duly elected or appointed City Council of the City.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.100 City Engineer

City Engineer means the duly appointed City Engineer of the City, or his or her designee.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.105 Club

Club means a Class A or Class B Club. Class A Club means a premises that is owned or leased by a corporation, partnership, business trust or association, and that is operated thereby as a bona fide nonprofit, social, fraternal or war veterans' club as determined by the Director of Alcoholic Beverage Control of the Kansas Department of Revenue, for the exclusive use of the corporate stockholders, partners, trust beneficiaries or associates and their families and guests accompanying them as provided in K.S.A. 41-2637 (as may be amended). Class B Club means a premises operated for profit by a corporation, partnership, or individual to which members of such club may resort for the consumption of food or alcoholic beverages and for entertainment. (See 5.20.055 I-K, and K.S.A. 41-2601 (e) - (g))

(History: Ord. ZRR-3355; § 1, 2022; Ord. ZRR-1725; ZRR-1661; ZRR-1637; ZRR-1447; ZRR-889 §18.02)

18.110.110 Code or O.P.M.C.

Code or O.P.M.C. means the Overland Park Municipal Code.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.115 Code Administrator

Code Administrator means the duly appointed Code Administrator of the City, or his or her designee.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.120 Commercial Districts

Commercial districts means districts C-O, CP-O, C-1, CP-1, C-2, CP-2, C-3, CP-3, DFD and MXD.

(History: Ord. ZRR-3164 §1, 2017; ZRR-2478 §1, 2004; ZRR-2343 §4, 2002; ZRR-1725; ZRR-1661; ZRR-1637)

Effective on: 6/13/2017

18.110.125 Community Development Committee

Community Development Committee means the Community Development Committee of the City Council.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.130 Comprehensive Plan

Comprehensive plan means the current Comprehensive Plan for the City, as adopted in accordance with K.S.A. 12-747.

(History: Ord. ZRR-3416 §6, 2023; Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.132 Continuing Care Community

Continuing Care Community means a multi-unit residential project, consisting of one or several buildings designed as a unified development, and providing health related services to its residents such as nursing care or assistance with activities of daily living. Continuing care communities typically provide a range of housing options, as well as common facilities to accommodate resident services such as meals, transportation and social activities. Free-standing buildings containing 4 or fewer dwelling units for independent senior living may be a component of the continuing care community provided they do not comprise more than 25 percent of the total units within the development.

(History: Ord. ZRR-2650 §1, 2007)

18.110.135 Court

Court means an open, unoccupied space, other than a yard, bounded on three or more sides by exterior walls of a building, or by exterior walls of a building and lot lines on which walls are allowable.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.140 Cul-de-sac

Cul-de-sac means a street having only one end open to traffic with the other end permanently terminated by a vehicular turnaround.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.145 Curb Level

Curb Level means the mean level of the curb in front of the lot or, in the case of a corner lot, along the abutting street, where the mean curb level is the highest.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637; ZRR-889 §18.02)

18.110.150 Customary Passenger Car

Customary passenger car means a motor vehicle with motive power designed for carrying 10 passengers or fewer, including vans, but excluding trailers and vehicles constructed on a truck chassis with a gross weight of more than 6,000 pounds.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.155 Day Care

Day care means the provision of supervision, training, food, lodging or medical services to persons for less than 24 hours a day.

Child care center means a facility which provides care and educational activities for 13 or more children two weeks to 16 years of age for more than three hours and less than 24 hours per day including day time, evening, and nighttime care; or which provides before and after school care for school-age children. A facility may have fewer than 13 children and be licensed as a center if the program and building meet child care center regulations set out in K.S.A. Chapter 65 and K.A.R. Chapter 28.

Day care home means a structure designed and used as a one or two-family dwelling where day care is provided for a maximum of twelve (12) children, which is regulated under K.S.A. Chapter 65 and K.A.R. Chapter 28.

Mother's Day Out means a day care program operating more than five (5) consecutive hours or more than one day per week and in which any one child is enrolled for not more than one session per week.

Preschool means a day care facility providing educational experiences and operating in compliance with the definitions and regulations of the State of Kansas.

(History: Ord. ZRR-2903 §1, 2011; ZRR-1725; ZRR-1693; ZRR-1661; ZRR-1637; ZRR-1237; ZRR-889 §18.02)

18.110.160 Department Store

Department Store means a retail establishment with at least 80,000 square feet of gross floor area and offering a wide variety of merchandise and services, usually organized in separate departments.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.165 Detached

Detached means that a building does not have a wall, roof or other structure member in common with or in contact with another building.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637; ZRR-889 §18.02)

18.110.170 Developer

Developer means a person who engages in development of real estate, whether or not that person is the landowner.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.175 Development

Development means a grouping of buildings or building sites that are planned as an integrated unit or cluster on property under unified control or ownership at the time the zoning was approved by the City.

(History: Ord. No. ZRR-3300 §23, 2020; Ord. ZRR-2812 §14, 2009; ZRR-1725; ZRR-1661; ZRR-1637; ZRR-941; ZRR-889 §18.02)

18.110.180 Director of Planning and Development Services or Director

Director of Planning and Development Services or Director means the duly appointed Director of Planning and Development Services of the City (or -designee).

(History: Ord. ZRR-3416 §7, 2023; Ord. ZRR-2343 §5, 2002; ZRR-1725; ZRR-1661; ZRR-1637)

18.110.185 Display or Catalog Showroom

Display or catalog showroom means an establishment for the sale of merchandise exclusively from a display or catalog and where no exchange of merchandise takes place at the time of sale.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.187 Downtown Districts

Repealed.

(History: Ord. ZRR-3164 §6, 2017; ZRR-2343 §6, 2002)

Effective on: 6/13/2017

18.110.188 Drainageway

Drainageway means a man-made or natural conveyance that transports stormwater overland which is frequently referred to as a channel, swale, ditch, gully, stream, or watercourse. The drainageway includes all land inundated during the 1% design storm.

(History: Ord. ZRR-2564 §1, 2005)

18.110.190 Drinking Establishment

Drinking establishment means a premises that may be open to the general public, where alcoholic liquor and cereal malt beverage by the individual drink is served. (See license requirements in 5.20.055 N and K.S.A. 41-2601(h), each as may be amended.

(History: Ord. ZRR-3355 §2, 2022; Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.195 Drive

Drive means a right-of-way which affords principal means of vehicular access to or through a lot or tract of land and which is owned and maintained by the landowner.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637; ZRR-889 §18.02)

18.110.200 Drive-in Service

Drive-in service means the service of food or other goods, services or entertainment where patrons remain in their motor vehicles which are parked in spaces provided on the premises for that purpose.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637; ZRR-1148; ZRR-889 §18.02)

18.110.205 Drive-through Service

Drive-through service means service where patrons are served through a window or other device while remaining in their motor vehicles and where products served to patrons are normally not consumed on the premises.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637; ZRR-1148; ZRR-889 §18.02)

18.110.210 Dwelling

Dwelling means a building or portion thereof designed exclusively for residential occupancy, including one-family, two-family and multi-family dwellings, but not including hotels or motels.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637; ZRR-889 §18.02)

18.110.215 Dwelling, Multi-family

Dwelling, multi-family means a building, or portion thereof, arranged, intended or designed for occupancy by 3 or more families, and commonly referred to as a triplex, fourplex, townhouse or apartment building. The term “multi-family dwelling” may also include residential projects designed for older adults but which do not provide the health related services of a continuing care community.

(History: Ord. ZRR-2650 §2, 2007; ZRR-1725; ZRR-1661; ZRR-1637; ZRR-889 §18.02)

18.110.220 Dwelling, One-family

Dwelling, One-family means a building arranged, intended or designed for occupancy by one family, but excluding manufactured homes or mobile homes.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637; ZRR-889 §18.02)

18.110.225 Dwelling, Two-family

Dwelling, two-family means a building arranged, intended or designed for occupancy by 2 families, commonly referred to as a duplex.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637; ZRR-889 §18.02)

18.110.230 Dwelling Unit

Dwelling unit means an enclosure containing sleeping, kitchen and bathroom facilities designed for and used or held ready for use as a permanent residence by one family.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.235 Easement

Easement means a permanent or temporary grant of right by a landowner to the public, a corporation or other persons, of the use of a portion of a lot or tract of land for specified purposes where title to said portion of the lot or tract of land remains with the landowner.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.240 Family

Family means any of the following:

1. A group of not more than four (4) related or unrelated persons of any age living together by joint agreement and occupying a single housekeeping unit with common kitchen facilities, or a mixed group of related and non-related persons of any age who together constitute no more than a cumulative total of four (4) persons living together by joint agreement and occupying a single housekeeping unit with common kitchen facilities.
2. A group of any size and age consisting entirely of an immediate family. For the purpose of this section an "immediate family" shall be a group consisting of only a spouse, parent, child, grandchild, grandparent, brother or sister, all related by marriage or consanguinity, and all of who can provide documentation of such relationship within a reasonable time upon request by the appropriate enforcement officers of the City. Ten (10) calendar days shall constitute a reasonable period of time unless the occupants can establish the necessity of an extension of time to obtain such documentation from the authorized sources, and any request for an extension of time to the City must be submitted in writing prior to the expiration of the ten day response time, and must be accompanied by names, dates and location of the births or marriages sought to be documented.
3. A group of not more than seven (7) persons who are 18 years of age or older who are related by marriage or consanguinity, all living together and occupying a single housekeeping unit with common kitchen facilities, and all of who can provide documentation of such relationship within a reasonable time upon request by the appropriate enforcement officers of the City, as provided in subsection (2) above.
4. In any civil or criminal prosecution for violation of the permitted occupancy of a single-family dwelling, a court may, where appropriate, infer from the evidence presented in that prosecution, including, without being limited to, evidence that more than four (4) persons age 18 or older are occupying a single family dwelling, that such occupancy constitutes an occupancy in violation of the Municipal Code.

(History: Ord. ZRR-2281 §1, 2001; ZRR-1725; ZRR-1661; ZRR-1637; ZRR-889 §18.02)

18.110.245 Fence

Fence means a freestanding structure intended to provide privacy, prevent escape or intrusion or to redirect a person's direction of travel. A fence may be constructed of posts, wire, boards, stone or any standard building materials. Fence sections 16 feet or less in cumulative horizontal lengths, 4 feet or less in height and unattached to a fence shall be considered a landscape element and not a fence.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637; ZRR-1409; ZRR-889 §18.02)

18.110.250 Floodplain or 100-year Floodplain

Floodplain or 100-year floodplain is defined in Section 18.360.410.

(History: Ord. ZRR-2812 §1, 2009; ZRR-2450 §11, 2003; ZRR-1725; ZRR-1661; ZRR-1637; ZRR-1432; ZRR-941; ZRR-889 §18.02)

18.110.255 Floodway

Floodway is defined in Section 18.360.410.

(History: Ord. ZRR-2812 §2, 2009; ZRR-1725; ZRR-1661; ZRR-1637)

18.110.260 Flood Fringe (formerly Floodway Fringe)

Flood Fringe is defined in Section 18.360.410.

(History: Ord. ZRR-2812 §3, 2009; ZRR-2450 §12, 2003; ZRR-1725; ZRR-1661; ZRR-1637)

18.110.265 Floor Area

Floor Area means the area of a building, or a portion of a building, measured in square feet.

Gross floor area or total floor area means the sum of the gross horizontal areas of the several stories of the building, including accessory buildings, measured from the exterior faces of the exterior walls or from the center line of party walls, and including garages, porches, utility rooms, stairways, recreation rooms and storage rooms, but excluding unenclosed balconies and patios.

Ground floor area means the gross floor area of the building at grade, also known as the building's footprint.

(History: Ord. ZRR-3416 §8, 2023; Ord. ZRR-1725; ZRR-1661; ZRR-1637; ZRR-889 §18.02)

18.110.270 Future Development Plan

Future Development Plan means the map portion of the Comprehensive Plan which is the graphic representation of the City's land use goals, subgoals, and strategies as developed and identified in the Plan Implementation section of the Comprehensive Plan.

(History: Ord. ZRR-3416 §9, 2023; Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.275 Garage

Garage means an accessory building or portion of a main building primarily used for storage of motor vehicles.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637; ZRR-889 §18.02)

18.110.280 Garden Apartment Building

Garden apartment building means an apartment building located on a lot either singly or together with other similar apartment buildings, such buildings generally being one or two stories in height and having grounds completely landscaped.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.285 Governing Body

Governing Body means the Mayor and City Council of the City.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.290 Ground Cover

Ground cover means landscape materials, or living low-growing plants other than turf grass, installed in such a manner so as to form a continuous cover over the ground surface.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.295 Gross Land Area

Gross land area means all land contained within the boundaries of a particular lot or tract of legally-described property, including all existing and proposed public and private streets and one-half of any abutting street rights-of-way, excluding state and federal street rights-of-way.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.300 Group Boarding Home for Adults

Group boarding home for adults means a residential dwelling unit for 5 or more persons, 18 years of age or over, not constituting a “family” as defined at Section 18.110.240; provided, however, that this definition shall not include an existing or proposed use of a residential dwelling unit which also meets the definition of “group home” as defined in K.S.A. 12-736 and any amendments thereto and is otherwise in full compliance with that section of Kansas statutes. Such latter use shall be considered to be a single-family residential use and shall not be considered to be a “group boarding home for adults” for the purposes of this Unified Development Ordinance.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637; ZRR-889 §18.02)

18.110.305 Group Boarding Home for Minors

Group boarding home for minors means a residential dwelling unit for 5 or more persons under 18 years of age who do not constitute a “family” as defined at Section 18.110.240, who for various reasons cannot reside in their natural home and where 24-hour adult care, supervision and consultation exists under license of the Kansas Secretary of Health and Environment or the Secretary of Social and Rehabilitation Services; provided, however, that this definition shall not include an existing or proposed use of a residential dwelling unit which also meets the definition of “group home” as defined in K.S.A. 12-736 and any amendments thereto and is otherwise in full compliance with that section of the Kansas statutes. Such latter use shall be considered to be a single-family residential use and shall not be considered to be a “group boarding home for minors” for the purposes of the Unified Development Ordinance.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637; ZRR-889 §18.02)

18.110.310 Height of a Building or Structure

Height of a building or structure means the vertical distance from the average ground level abutting a building or structure to the highest point of a building or highest point of any permanent part of a structure other than a building; except that for a single-family, two-family, or multi-family residence, the distance shall be from the average ground level at the front of the residence to the highest point of a flat roof, the deck line of a mansard roof, or the average height between the plate and ridge of a gable, hip, shed or gambrel roof. Height, where not regulated in feet, shall be regulated by stories, and a story shall be equal to 12 feet for purposes of measuring structures.

(History: Ord. ZRR-2134 §1, 98; ZRR-1925 §1,95; ZRR-1725; ZRR-1661; ZRR-1637; ZRR-889 §18.02)

18.110.315 Highway

Highway means a thoroughfare controlled and maintained by the Kansas Department of Transportation.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.320 Home Occupation

Home occupation means an accessory use by the occupant(s) of a dwelling unit in which goods are produced or traded, or services are rendered, as an economic enterprise. Such use shall be clearly incidental or subordinate to the residential use of a dwelling.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.325 Industrial Districts

Industrial Districts means districts BP, M-1, MP-1, M-2 and MP-2.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.327 Infill Development

Infill Development shall mean development on a vacant or substantially vacant tract of land surrounded by existing development except that tracts of land larger than ten (10) acres shall not be considered infill development.

(History: Ord. ZRR-2848 §1, 2010)

18.110.330 Junior Department Store

Junior department store means a retail establishment with less than 80,000 square feet of gross floor area and offering a wide variety of merchandise and services, usually organized in separate departments.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.335 Kennel

Kennel means a commercial operation that (i) provides food, shelter and care for more than 4 animals of 6 months of age or older for purposes not primarily related to medical care (a kennel may or may not be run by or associated with a veterinarian), or (ii) regularly engages in the breeding of animals for sale.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.336 Land Disturbance

Land disturbance means any activity that changes the physical conditions of landform, vegetation and hydrology, creates bare soil, or otherwise may cause erosion or sedimentation. Such activities include, but are not limited to, clearing, removal of vegetation, stripping, grading, grubbing, excavating, filling, logging and storing of materials.

(History: Ord. ZRR-2420 §3, 2003)

18.110.337 Land Disturbance Permit

Land disturbance permit means an official document or certificate issued by the Director of Planning and Development Services authorizing land disturbance. A land disturbance permit may only be issued to the property owner.

(History: Ord. ZRR-2420 §4, 2003)

18.110.340 Landowner

Landowner means the legal or beneficial owner or owners of a lot or tract. The holder of a contract to purchase or other person having an enforceable proprietary interest in a lot or tract shall be deemed a landowner.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.345 Landscape Material

Landscape material means such living materials as trees, shrubs, ground cover, vines, turf grasses, and non-living materials such as rocks, pebbles, sand, bark, brick pavers, earthen mounds (excluding pavement), and other items of a decorative or embellishment nature such as fountains, pools, walls, fencing, sculpture, etc.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.350 Landscaped Open Space

Landscaped open space means that part of the gross land area in open space which is free of streets, structures, or parking areas and provided to improve the drainage, microclimate and aesthetics of the site. Such areas are usually landscaped and appropriately located to achieve maximum effect and appeal. Typically, such space includes lawn areas, shrubs and trees, walkways, paved terraces, sitting areas and outdoor recreational areas. Unpaved land areas within private or public street rights-of-way are not counted as landscaped open space unless they are in excess of minimum right-of-way standards.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637; ZRR-1427; ZRR-889 §18.02)

18.110.355 Landscaped Open Space Ratio

Landscaped Open Space Ratio means the numerical ratio between the landscaped open space and the gross land area of a site.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.360 Landscaped Setback

Landscaped setback means the area between the street right-of-way (in the case of a public street) or the curb line (in the case of a private street) and the building setback line.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.365 Landscaping

Landscaping means the bringing of the soil surface to a smooth finished grade and installing of sufficient trees, shrubs, ground cover and grass to soften building lines, provide shade and generally produce a pleasing visual effect of the premises.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637; ZRR-889 §18.02)

18.110.375 Lot

Lot means a parcel of land occupied, or to be occupied, by one main building or unit group of buildings, and the accessory buildings or uses customarily incident thereto, including such open spaces as are required under these regulations, and having its principal frontage upon a public street. A lot as used in this ordinance may consist of one or more platted lots or tracts, or parts thereof.

Platted lot means a portion of a subdivision intended as a unit for transfer of ownership or for development.

Corner lot means a lot abutting upon 2 or more streets at their intersection. A corner lot shall be deemed to front on that street on which it has its least dimension, unless otherwise specified by the Director of Planning and Development Services, except that a lot made up of more than one platted lot shall be deemed to front on the street upon which the platted lots front.

Double-frontage lot means a lot abutting upon 2 or more streets, at least 2 of which do not intersect.

Interior lot means a lot whose side lot lines do not abut upon any street.

Through lot means an interior, double-frontage lot.

(History: Ord. ZRR-2343 §7, 2002; ZRR-1725; ZRR-1661; ZRR-1637; ZRR-889 §18.02)

18.110.380 Lot Coverage

Lot coverage means that portion of the net site area which is covered by the ground floor of any structure, parking lots, and private streets and drives. Pools, tennis courts, sidewalks and plazas are not counted toward lot coverage.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637; ZRR-1427; ZRR-889 §18.02)

18.110.385 Lot Depth

Lot depth means the mean horizontal distance from the front lot line to the rear lot line.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637; ZRR-889 §18.02)

18.110.390 Lot line

Lot line means the boundary line of a lot.

Front lot line means that lot line abutting a street or private drive. In the case of a corner lot where there are two lot lines abutting intersecting streets, the front lot line shall normally be the one with the shortest length. In the case of a through lot, the front lot line shall be the one adjacent to the street which provides primary access to the lot or towards which the main building on the lot is oriented.

Side lot line means any lot line which intersects the front lot line. A side lot line shall include any linked line segments or arcs which have a bearing which is within 45 degrees of a line drawn perpendicular to the front lot line.

Rear lot line means any lot line which is not a front lot line or a side lot line.

Where the application of the rules is ambiguous or where the property owner requests an alternative designation, the Director of Planning and Development Services may specifically designate the various lot lines for a particular lot.

(History: Ord. ZRR-2343 §8, 2002; ZRR-1725; ZRR-1661; ZRR-1637; ZRR-889 §18.02)

18.110.395 Lot Width

Lot width means the horizontal distance between the side lot lines, measured at the front setback line or the front platted building line, whichever is greater.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637; ZRR-889 §18.02)

18.110.400 Main Building or Main Structure

Main building or main structure means the primary building or structure on a lot or a building or a structure that houses a principal use.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.405 Manufactured Home

Manufactured home means a structure which is subject to the federal manufactured home construction and safety standards established pursuant to 42 U.S.C. Section 5403.

Residential-design manufactured home means a manufactured home on a permanent foundation which has (A) minimum dimensions of 22 body feet in width, (B) a pitched roof and (C) siding and roofing materials which are customarily used on site-built homes.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.415 Mobile Home

Mobile home means a transportable, factory-built structure, designed to be used as a year-round residential dwelling, built prior to enactment of the National Manufactured Home Construction and Safety Standards Act, which became effective June 15, 1976.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637; ZRR-889 §18.02)

18.110.420 Mobile Home Park

Mobile home park means a tract of land meeting the requirements of this ordinance containing suitable drives, utilities and other supporting elements, and devoted to the sole purpose of accommodating mobile homes or manufactured homes on a permanent or a semi-permanent basis.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637; ZRR-889 §18.02)

18.110.425 Mobile Home Space

Mobile home space means that area of land within a mobile home park set aside for use as a site for one mobile home or manufactured home, including the open spaces around said home.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637; ZRR-889 §18.02)

18.110.430 Native Grasses

Native grasses means those species of perennial grass other than those designated as noxious weeds by the Kansas Department of Agriculture and Entomology.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.435 Net Site Area

Net site area means the land area of a lot or tract remaining after subtraction of all public street and alley rights-of-way as are required by this ordinance.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637; ZRR-889 §18.02)

18.110.440 Nonconforming Situation

Nonconforming situation means a situation that occurs when, on the effective date of this ordinance, an existing lot, structure or improvement, or the use of an existing lot, structure or improvement no longer conforms to one or more of the regulations applicable to the zoning district in which the lot, structure or improvement is located.

Nonconforming dimension means a nonconforming situation that occurs when the height, size or minimum floor area of a structure or the relationship between an existing building or buildings and the other buildings or lot lines does not conform to the regulations applicable to the zoning district in which the property is located.

Nonconforming lot means a lot existing on the effective date of this ordinance (and not created for purposes of evading the restrictions of this ordinance) that does not meet the minimum area requirement of the zoning district in which the lot is located.

Nonconforming project means any structure, development or undertaking that is incomplete on the effective date of this ordinance and would be inconsistent with one or more of the regulations applicable to the zoning district in which it is located if completed as proposed or planned.

Nonconforming site improvement means a nonconforming situation that occurs when, on the effective date of this ordinance, an existing site improvement on a lot, including but not limited to parking areas, storm drainage facilities, sidewalks and landscaping, no longer conforms to one or more of the regulations of this ordinance applicable to the property.

Nonconforming use means a nonconforming situation that occurs when property is used for a purpose or in any manner made unlawful by the use regulations or development and performance standards applicable to the zoning district in which the property is located. The term also refers to the activity that constitutes the use made of the property. For purposes of these definitions, the "effective date of this ordinance" shall be deemed to include the effective date of any amendments to this ordinance if the amendment, rather than this ordinance as originally adopted, creates a nonconforming situation.

(for nonconforming signs see [18.440.160](#))

(History: Ord. No. ZRR-3300 §24, 2020; Ord. ZRR-1725; ZRR-1661; ZRR-1637; ZRR-889 §18.02)

18.110.445 Official Street Map

Official Street Map means the current official map adopted by the Governing Body pursuant to K.S.A. 12-765.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.450 Official Zoning Map

Official Zoning Map means the zoning map adopted by the City pursuant to K.S.A. 12-753.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.455 100-year Frequency Flood

100-year frequency flood is defined in Section 18.360.410.

(History: Ord. ZRR-2812 §4, 2009; ZRR-1725; ZRR-1661; ZRR-1637; ZRR-889 §18.02; ZRR-832)

18.110.460 Open Space

Open space means the total horizontal area of uncovered open space plus one-half of the total horizontal area of covered open space subject to the limitations set forth below.

Uncovered open space means the total gross land area not covered by buildings plus open exterior balconies and roof areas improved as recreation space.

Covered open space means the usable open space closed to the sky but having two unobstructed open or partially open sides. "Partially open" is to be construed as fifty percent or more open. Examples of covered open space are covered balconies, carports, roofed porches, covered portions of improved roof areas, or spaces under buildings supported on columns or posts, or cantilevered. The number of square feet countable as open space shall not exceed the number of square feet of the open sides.

Open Space Lands means that portion of a tract of land zoned RP-OE or RP-OS that is set aside for the protection of sensitive natural features, farmland, scenic views, and other unique features. Open space lands may or may not be accessible to the residents of the development and the general public.

(History: Ord. ZRR-2345 §1, 2002; ZRR-1725; ZRR-1662; ZRR-1637)

18.110.465 Open Space Ratio

Open space ratio means the numerical ratio between the open space of the site and the gross land area of the site.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.470 Ordinance

Ordinance means the Unified Development Ordinance.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.475 Overlay District

Overlay district means a district which acts in conjunction with the underlying zoning district or districts.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637; ZRR-889 §18.02)

18.110.480 Planned Zoning District

Planned zoning district means the zoning of a lot or tract to permit that development as specifically depicted on plans approved in the process of zoning that lot or tract.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637; ZRR-889 §18.02)

18.110.485 Platted

Platted means real property which is subject of a final plat recorded with the Register of Deeds.

Final plat means a drawing of a permanent nature showing the precise location and dimension of such features as streets, lots, easements and other elements pertinent to transfer of property and prepared for permanent record.

Preliminary plat means a drawing showing the proposed general patterns of streets, lots and land uses within a tract to be subdivided.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.490 Play Equipment

Play equipment means equipment or apparatus primarily intended for use by children for recreational purposes, including but not limited to basketball goals, swingsets, jungle gyms and slides, but not including bicycle or skateboard ramps.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.492 Property Owner

Property Owner means the named property owner(s) as indicated by the records of the Johnson County Register of Deeds or Appraiser's Office. May also be referred to as owner or landowner. To the extent applicable, the term may include the Property Owner's designated agent authorized to act on behalf of the Property Owner.

(History: Ord. No. ZRR-3300 §25, 2020)

18.110.495 Recreational Vehicle

Recreational vehicle means a vehicular-type unit built on or for use on a chassis and designed primarily as living quarters for recreational, camping, vacation or travel use and which has its own motive power or is mounted on or drawn by another vehicle, and which has a body width not exceeding 8 feet and a body length not exceeding 40 feet; provided, however, that such term shall not include a unit which has no electrical system which operates above 12 volts and has no provisions for plumbing, heating and any other component or feature for which a standard is adopted by K.S.A. 75-1212 et seq.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.500 Recycling Collection Point

Recycling collection point means an accessory use or structure that serves as a drop-off point for recyclable materials. The temporary storage of such items would be permitted, but no processing would be allowed.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.503 Redevelopment

Redevelopment shall mean development on a tract of land that has been previously developed in accordance with a development plan, either under City or County zoning codes or where all or most of the existing structures and/or site improvements built under that plan are proposed to be razed and a new structure or structures or other site improvements are proposed to be constructed in accordance with an approved development plan or plat.

(History: Ord. ZRR-2848 §2, 2010)

18.110.505 Base Flood Elevation (Formerly Regulatory Flood Elevation)

Base flood elevation is defined in Section 18.360.410.

(History: Ord. ZRR-2812 §5, 2009; Ord. ZRR-2450 §13, 2003; ZRR-1725; ZRR-1661; ZRR-1637; ZRR-941; ZRR-889)

18.110.510 Base Flood Protection Elevation (Formerly Regulatory Flood Protection Elevation)

Repealed.

(History: Ord. ZRR-2812 §14, 2009; ZRR-2450 §14, 2003; ZRR-1725; ZRR-1661; ZRR-1637; ZRR-941; ZRR-889)

18.110.515 Residential Districts

Residential districts means districts DND, RE, RP-OE, RP-OS, R-1, RP-1, R-1A, RP-1A, RP-1N, R-2, RP-2, R-3, RP-3, RP-4, R-5, RP-5, R-6, RP-6, PRN, former District R-4, and Oxford Township Districts RR, R-1A, R-1B, R-2, R-3 and R-4 (per the March, 1982 Zoning and Subdivision Regulations for Oxford Township).

(History: Ord. ZRR-2590 §1, 2005; ZRR-2507 §1, 2004; ZRR-2343 §9, 2002; ZRR-1725; ZRR-1661; ZRR-1637)

18.110.520 Residentially Zoned Property

Residentially zoned property means property zoned for any residential district.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.525 Restaurant

Restaurant (*also referred to as Food Establishment or Food Service Establishment*) means any place wherein food is prepared and served or offered for sale or service on the premises or elsewhere in ready-to-eat form to the public for human consumption. "Restaurant" includes cafe, cafeteria, grill, pizza parlor, diner, snack shop, hamburger shop and steak house, but does not include roadside or farmers markets that offer only fresh fruits, nuts and vegetables for sale. (See K.S.A. 65-656(v).) If a restaurant is also licensed as a "drinking establishment" or as a "club," it must also meet all city code provisions applicable to drinking establishments or clubs.

(History: Ord. ZRR-3355 §3, 2022; Ord. ZRR-1725; ZRR-1661; ZRR-1637; ZRR-889 §18.02)

18.110.530 Retail sales of alcoholic liquor or cereal malt beverages

Retail sales of alcoholic liquor or cereal malt beverages means the sale of alcoholic liquor or cereal malt beverages in the unopened package for consumption off the premises by a retailer licensed by the State and the City. See license requirements for cereal malt beverages in [5.12](#), and license requirements for alcoholic liquor in [5.48](#))

(History: Ord. ZRR-3355 §3, 2022; Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.535 Rezoning

Rezoning means an application for amendment of the zoning district classification applicable to one or more specific lots or tracts.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.540 Rule Exception

Rule exception means the allowing of a subdivision to deviate from one or more specific standards and requirements of these rules and regulations.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.545 Setback Line

Setback line means a line, parallel to the respective lot line and internal to the lot, which defines the required building setback as specified in the district regulations.

Front setback line shall be parallel to the front lot line and shall extend from side lot line to side lot line.

Rear setback line shall be parallel to all rear lot lines and shall extend from side lot line to side lot line. If there is no rear lot line, there shall be no rear setback line.

Side setback lines are parallel to any side lot line and extend from the front setback line to the rear setback line or another side setback line.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.550 Shopping center

Shopping center means a group of commercial establishments planned, developed, owned or managed as a unit, related in size (gross floor area) and type of shops to the trade area that the unit serves, and with off-street parking provided on the property.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.555 Shrub

Shrub means any self-supporting, woody plant of a species which normally grows to an overall height of less than 15 feet in this region.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.583 Site Development Permit

Site development permit means an official document or certificate issued by the Director of Planning and Development Services authorizing installation of site improvements, including but not limited to, pavement, curbs, sidewalks, stormwater facilities, retaining walls and bank stabilization, and work related to such construction, including but not limited to clearing, grading, and grubbing.

(History: Ord. ZRR-2420 §5, 2003)

18.110.585 Stable

Stable means a structure or premises for the keeping of horses, ponies or mules.

Private stable means a stable for horses, ponies or mules which are owned by the occupants of the premises and which are not kept for remuneration, hire or sale.

Public stable means a stable other than a private stable or riding stable.

Riding stable means a stable in which horses, ponies or mules used exclusively for pleasure riding or driving are housed, boarded or kept for remuneration, hire or sale.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637; ZRR-889 §18.02)

18.110.590 Storage or Stored

Storage or stored shall mean the keeping of items, equipment, vehicles, trailers or materials for a period of time longer than would be involved in the normal day-to-day use or consumption of the same.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637; ZRR-935; ZRR-889)

18.110.595 Story

Story means that part of a building included between the surface of one floor and the surface of the floor above or, if there is no floor above, that part of the building which is between the surface of the floor and the ceiling next above. A top story attic is a half-story when the main line of the eaves is not above the middle of the interior height of such story. The first story is a half-story when between 50 and 75 percent of the area of its exterior walls are exposed to outside light and air entirely above grade in which exterior walls contain windows or doors permitting the entrance of daylight and outside air. When less than 50 percent of the area of the walls of the first story is exposed to outside light and air entirely above grade, that story shall be classed as a basement and in the case of multiple-family dwellings may not be occupied as a residence by other than a caretaker or manager.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637; ZRR-889 §18.02)

18.110.600 Street

Street means a right-of-way which affords principal means of vehicular access to property abutting thereon.

Private street means a right-of-way which affords principal access to property abutting thereon, which right-of-way is owned, controlled and maintained by persons other than the public.

Public street means a right of way which affords the principal means of vehicular access to property abutting thereon which right-of-way has been dedicated to the public for such use.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637; ZRR-889 §18.02)

18.110.605 Street Line

Street line means the dividing line between the street right-of-way and the abutting property.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637; ZRR-889 §18.02)

18.110.610 Structural Alteration

Structural alteration means any change in the supporting members of a building, such as bearing walls, columns, beams or girders.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637; ZRR-889 §18.02)

18.110.615 Utility Structure (formerly Structure)

Utility Structure means any cabinet, pedestal, box, building or other structure used for public utility services, public service corporations, or telecommunications providers including any associated equipment such as condensing units and generators. Towers, poles and traffic signal controllers shall not be considered utility structures. Facilities with a footprint smaller than two square feet, or underground facilities that extend no more than six inches above grade are exempt from this definition.

(History: Ord. ZRR-3023 §1, 2013; ZRR-2262 §1, 2001; ZRR-1725; ZRR-1661; ZRR-1637; ZRR-941; ZRR-889)

18.110.620 Subdivider

Subdivider means a person, firm or corporation undertaking the subdividing of land.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.625 Subdivision

Subdivision or subdivision of land, (noun) means a tract of land which has been zoned and (preliminary or final) platted to be divided into two or more lots, tracts, parcels or other divisions of land for sale or development. (Often used for the purpose of constructing residences or commercial lots which will be sold individually.)

Subdivision or subdivision of land, (verb) except for “lot-split” as defined below, means the division of a lot, tract or parcel of land into two or more lots, plots, sites, tracts or parcels where any such division results in one or more lots, plots, sites, tracts or parcels. The meaning of this term, except for “lot split” as defined below, shall include the resubdivision of land that has already been platted and the creation of new streets, alleys or other public ways by dedication. This term shall not include the vacation of public rights-of-way or easements, or the dedication of additional rights-of-way in conjunction with an existing street.

Lot-Split means the division of a lot into two or more lots or portions thereof.

(History: Ord. No. ZRR-3300 §26, 2020; Ord. ZRR-3039 §1, 2014; ZRR-1893 §1, 94; ZRR-1725; ZRR-1661; ZRR-1637)

18.110.630 Tract

Tract means a single unit of real property under one ownership, which may be platted or unplatted.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.635 Trailer

Trailer means a vehicle other than a mobile home or manufactured home, equipped with wheels and normally towed over the road behind a motor vehicle.

Advertising trailer means a trailer carrying, or having attached thereto a sign, billboard, or other media for advertising purposes, such advertising being the prime purpose and use of the trailer.

Hauling trailer means a trailer designed and normally used for over-the-road transportation of belongings, equipment, merchandise, livestock and other objects, but not equipped for human habitation.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637; ZRR-889 §18.02)

18.110.640 Tree

Tree means any self-supporting, woody plant of a species which normally grows to an overall minimum height of 15 feet in this region.

Deciduous trees mean those trees which shed their leaves annually, such as ash, sycamore and willow.

Evergreen trees mean those trees which do not shed their leaves annually, such as pine, spruce and juniper.

Small trees mean trees 30 feet or less in height at maturity, including ornamental flowering trees and “patio” trees.

Medium trees mean trees 30 to 70 feet in height at maturity.

Large trees mean those species of trees that reach a height of 70 feet or taller at maturity. The American Standard for Nursery Stock, as published by the American Association of Nurseryman and incorporated by reference herein, shall be referred to in determining the applicability of the above definitions.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

18.110.645 Unified Development Ordinance

Unified Development Ordinance means Ordinance No. ZRR-1637, and amendments thereto.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637)

Utility structure– see 18.110.615.

18.110.650 Variance

Variance means a variation from a specific requirement in this ordinance applicable to a specific piece of property.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637; ZRR-889 §18.02)

18.110.652 Wind Turbine

Wind Turbine means any machine designed for the purpose of converting wind energy into electrical energy. Wind turbine shall include all parts of the system, including the tower and turbine composed of the blades and rotor.

Horizontal-axis wind turbine means the main rotor shaft of the turbine is oriented horizontally. This type of turbine must be pointed into the wind.

Meteorological tower means a tower separate from a wind turbine designed to support the gathering of wind energy resource data. A meteorological tower shall include the tower, anemometers, wind direction vanes, and any telemetry devices that are used to monitor or transmit wind speed and wind flow characteristics at a given location.

Roof-mounted wind turbine means a turbine system mounted to the roof of a building.

Vertical-axis wind turbine means the main rotor shaft of the turbine is arranged vertically and does not have to be pointed into the wind.

(History: Ord. ZRR-2836 §1, 2010)

18.110.655 Yard

Yard means an open space at grade between a building and the adjoining lot lines, unoccupied and unobstructed by any portion of a structure from the ground upward, except as otherwise provided. In measuring a yard for the purpose of determining the width of a side yard, the depth of a front yard or the depth of a rear yard, the least horizontal distance between a lot line and the building shall be used. Where lots abut a street that is designated a thoroughfare street on the

Official Street Map, all yards abutting the street shall be measured from a line one-half the proposed right-of-way width from the center line or from the lot line, whichever provides the greater setback. On other lots, all yards abutting a street shall be measured from a line 25 feet from the center line, or from the lot line, whichever provides the greater setback.

Front yard means a yard across the full width of the lot extending from the front line of the main building to the front lot line.

Rear yard means the yard between the rear lot line and the rear line of the main building and the side lot lines.

Side yard means a yard between the main building and the adjacent side line of the lot, and extending entirely from a front yard to the rear yard.

Required yard means that portion of any yard constituting the minimum area required in any zoning district, but excluding that portion of the yard in excess of the minimum required area.

Yard setback or building setback means that area between a lot line and the respective setback line which shall remain unobstructed by buildings or structures from the ground to the sky, except as may be specifically permitted by other provisions of the zoning ordinance.

(History: Ord. ZRR-1725; ZRR-1661; ZRR-1637; ZRR-889 §18.02)

TITLE 18 - UNIFIED DEVELOPMENT ORDINANCE

18.210 R-3 GARDEN APARTMENT DISTRICT AND RP-3 PLANNED GARDEN APARTMENT DISTRICT

Contents:

- 18.210.010 Statement of Intent
- 18.210.020 Permitted Uses
- 18.210.030 Height and Area Regulations
- 18.210.040 Parking Regulations
- 18.210.050 Development and Performance Standards

18.210.010 Statement of Intent

The zoning of property as R-3, Garden Apartment District, or RP-3, Planned Garden Apartment District, is intended to provide quality apartment development with emphasis on open space and access to light and air. The intent of garden apartment development is to provide residents the convenience of multi-family living and the amenities generally available to low-density residential development. Garden apartments will all be low-rise developments with commonly maintained landscaped open space.

(History: Ord. ZRR-1725; ZRR-1637; ZRR-1202 §1)

18.210.020 Permitted Uses

No building, structure, land, or premises shall be used, and no building or structure shall be hereafter erected, constructed, reconstructed, moved or altered except for one or more of the following uses, subject to the development and performance standards set forth in Section 18.210.050:

- A. Any use permitted in District R-2, subject to the applicable development and performance standards;
- B. Garden apartment buildings;
- C. Accessory uses as provided in 18.390; and
- D. Utility structures, subject to the provisions set forth in Section 18.250.050(H).

(History: Ord. ZRR-2262 §6, 2001; ZRR-1725; ZRR-1637; ZRR-889 §18.12)

18.210.030 Height and Area Regulations

The maximum height of buildings, the minimum dimensions of lots and yards, and the minimum lot area per dwelling permitted on any lot shall be as follows, except as otherwise provided in [18.420](#):

A. Maximum height:

1. **Three-story maximum.** Three-story structures shall be permitted provided the three-story portion of any building shall be setback a minimum of 50 feet from any adjacent streets or single-family residential development.
2. **Accessory structures and uses** -- one story, not exceeding 20 feet and not exceeding the height of the main structure.

B. Minimum setbacks:

1. All main structures shall be located at least 15 feet from any lot line, except where the lot line abuts a street or property zoned R-1.
2. Where a lot line abuts a street, the minimum setback for main structures shall be as follows:
 - a. 40 feet from an interstate, highway or freeway;
 - b. 20 feet from a thoroughfare; or
 - c. 10 feet from a super-collector, collector or any other street.
3. Where a lot line abuts property zoned R-1, but not a public street, the minimum setback for main structures shall be 25 feet from the lot line.
4. All accessory structures shall be located at least 10 feet from any interior lot line.
5. All accessory structures shall be at least 20 feet from any lot line which abuts a street or property zoned R-1.
6. The minimum setback between buildings on the same lot shall be 15 feet.
7. For Infill or Redevelopment projects, the perimeter setback along a public street shall not be less than the average setback for residential uses along the same and facing block faces.

C. Net site area per multi-family dwelling unit -- 3,500 square feet (12.4 units per net acre).

(History: Ord. ZRR-2848 §9, 2010; ZRR-2698 §7, 2007; ZRR-1725; ZRR-1637; ZRR-889 §18.12)

18.210.040 Parking Regulations

See [18.430](#) for parking regulations.

(History: Ord. ZRR-3373 §17, 2023; Ord. ZRR-1725; ZRR-1635; ZRR-1427 §10; ZRR-889 §18.12)

18.210.050 Development and Performance Standards

- A. Garden apartments may not be constructed where adequate sanitary sewers are not available for connection thereto.
- B. The maximum lot coverage shall be 50%.
- C. Pedestrian circulation systems (sidewalks, walkways and paths) shall be located and designed to provide adequate physical separation from vehicles along all public and private streets and drives and within any parking area.
- D. Site drainage patterns shall be designed, graded and constructed to prevent surface drainage from collecting on and flowing across pedestrian paths, walks and sidewalks.

E. Prior to issuance of any building permit, site plan approval shall be obtained as provided for in [18.140](#).

(History: Ord. ZRR-2848 §10, 2010; ZRR-2285 §5, 2001; ZRR-1868 §1, 94; ZRR-1725; ZRR-1637; ZRR-889 §18.12)

TITLE 18 - UNIFIED DEVELOPMENT ORDINANCE

18.390 ACCESSORY USES AND STRUCTURES

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18.390.010 Intent and Interpretation

- A. It is the intent of this Chapter to regard certain activities as being accessory to the principal use of the premises that may be carried on underneath the umbrella of the principal use. An activity will be considered an accessory use or structure when it is conducted in conjunction with the principal use and the activity constitutes only an incidental part of the total activity that takes place on the property, and is commonly associated with the principal use and integrally related to it.
- B. For purposes of interpreting subsection A:
1. A use or structure may be regarded as "incidental" if it is both insubstantial and subordinate in relation to the principal use.

2. To be "commonly associated" with a principal use, it is not necessary for an accessory use or structure to be connected with such principal use more times than not, but only that the association of such accessory use or structure with such principal use takes place with sufficient frequency that there is common acceptance of their relatedness.

(History: Ord. ZRR-2854 §1, 2010; ZRR-1725; ZRR-1637)

18.390.020 District A

The following are accessory uses and structures in District A: repair shops; sheds; garages; barns; silos; irrigation wells and pumps; incidental dwellings; and buildings and structures customarily required for any of the above uses.

(History: Ord. ZRR-1725; ZRR-1637)

18.390.030 District A and All Residential Districts

The following are accessory uses and structures in District A and all residential districts; subject to the performance standards set forth in Section [18.390.140](#):

- A. Day care homes, group day care homes, child care centers, preschools and Mother's Day Out programs.
- B. Fences or walls.
- C. Flag poles.
- D. Garages and carports.
- E. Gardens.
- F. Gates or guard houses for subdivisions or multi-family projects.
- G. Ground-mounted satellite dish antennas.
- H. Hobby activities.
- I. Home occupations.
- J. Keeping of animals.
- K. Outside Storage of equipment, materials or vehicles.
- L. Parking areas.
- M. Play equipment.
- N. Signs.
- O. Solar collectors.
- P. Swimming pools and associated mechanical equipment.
- Q. Television and radio antennas not exceeding 60 feet in height.
- R. Tool/lawn equipment sheds not exceeding 200 square feet.
- S. Recycling collection point.

(History: Ord. ZRR-2854 §2, 2010; ZRR-1725; ZRR-1637)

18.390.040 Districts R-3, RP-3, RP-4, R-5, RP-5, R-6 and RP-6

The following are accessory uses and structures in Districts R-3, RP-3, RP-4, R-5, RP-5, R-6 and RP-6; subject to the performance standards set forth in Section [18.390.140](#):

- A. Power generators.
- B. Recreation areas and buildings, swimming pools and clubhouses.
- C. Trash collection centers.
- D. Vending machines, mail rooms and laundry facilities in common areas of a multi-family project.
- E. Maintenance buildings for the projects.

(History: Ord. ZRR-1725; ZRR-1637; ZRR-889 §18.38)

18.390.050 All Commercial Districts

The following are accessory uses and structures in all commercial districts; subject to the performance standards set forth in Section [18.390.140](#):

- A. Cooling towers.
- B. Dwelling units, other than mobile homes or manufactured homes, for security, management or maintenance personnel.
- C. Fences or walls.
- D. Flag poles.
- E. Food service and vending machines for tenants.
- F. Parking areas.
- G. Private parking garages.
- H. Satellite dish antennas.
- I. Signs.
- J. Solar collectors.
- K. Television, radio or microwave antennas not exceeding 100 feet in height.
- L. Recycling collection point.
- M. Arcade machines and game rooms.

(History: Ord. ZRR-2793 §1, 2009; ZRR-1725; ZRR-1637; ZRR-889 §18.38)

18.390.060 Districts C-O and CP-O

- A. The following uses are accessory uses in Districts C-O and CP-O where located in buildings at least 60,000 square feet of gross building area and at least 2 stories in height not including basements; subject to the performance standards set forth in [18.390.140](#):
 - 1. Barber shops and hair salons.
 - 2. Retail sale of office supplies.
 - 3. Clubs and drinking establishments.
 - 4. Dry cleaning and laundry pickup and delivery.
 - 5. Newsstands.

- 6. Restaurants.
- 7. Health and fitness clubs.
- 8. Copy centers/print shops.
- B. Pharmacies/drug stores and optical shops are accessory uses in Districts C-O and CP-O, subject to the performance standards set forth in [18.250.050](#).
- C. Single-tenant restaurant buildings are accessory uses in Districts C-O and CP-O, subject to the performance standards set forth in [18.250.050](#).

(History: Ord. ZRR-3355 §13, 2022; Ord. ZRR-2750 §2, 2008; ZRR-1725; ZRR-1637; ZRR-889 §18.38)

18.390.070 Districts C-2 and CP-2

In Districts C-2 and CP-2, single-bay, automatic car washes not exceeding 1000 square feet in gross floor area may be operated in conjunction with gasoline service stations.

(History: Ord. ZRR-1725; ZRR-1637; ZRR-889 §18.38)

18.390.075 District MXD

The following are accessory uses and structures in District MXD; subject to the performance standards set forth in Section [18.390.140](#):

- A. Cooling towers.
- B. Fences or walls.
- C. Flag poles.
- D. Food service, recreation areas, swimming pools, clubhouses, vending machines, mail rooms and laundry facilities in association with the residential portion of a mixed use project.
- E. Garages and carports.
- F. Gardens.
- G. Hobby activities.
- H. Home occupations.
- I. Keeping of animals.
- J. Maintenance buildings.
- K. Parking areas.
- L. Play equipment.
- M. Power generators.
- N. Private parking garages.
- O. Satellite dish antennas.
- P. Signs.
- Q. Solar collectors.
- R. Swimming pools and associated mechanical equipment.
- S. Television, radio or microwave antennas not exceeding 100 feet in height.

T. Tool/lawn equipment sheds not exceeding 200 square feet.

U. Trash collection centers.

V. Recycling collection point.

(History: Ord. ZRR-2854 §3, 2010; ZRR-2478 §4, 2004)

18.390.080 Districts BP, M-1, MP-1, M-2 and MP-2

The following uses are accessory uses in Districts BP, M-1, MP-1, M-2 and MP-2; subject to the performance standards set forth in Section [18.390.140](#):

A. Dwelling units, other than mobile homes or manufactured homes, for security, management or maintenance personnel.

B. Employee recreation areas.

C. Gate houses.

D. Loading equipment.

E. Parking and loading areas.

F. Satellite dish antennas.

G. Security and screening fences.

H. Signs.

I. Solar collectors.

J. Television, radio and microwave antennas not exceeding 100 feet in height.

K. Recycling collection point.

(History: Ord. ZRR-1725; ZRR-1637; ZRR-889 §18.38)

18.390.090 Accessory Uses Permitted by Interpretation

Uses other than those listed above may be determined to be accessory uses in any district based upon an interpretation by the Director of Planning and Development Services.

(History: Ord. ZRR-2343 §49, 2002; ZRR-1725; ZRR-1637; ZRR-889 §18.38)

18.390.100 Hotels, Motels, Convention Centers; Hospitals, Nursing or Convalescent Homes, and Continuing Care Community

The following uses are accessory uses within a hotel, motel, convention center, hospital, nursing or convalescent home, or continuing care community, provided the use is located within the main building and designed to serve primarily the occupants and patrons of the building: restaurants; clubs; drinking establishments; banquet rooms; package sales of alcoholic liquor or cereal malt beverages; sales of notions; newsstands; vending machines; barber shops and hair salons; arcades; and flower and gift shops.

(History: Ord. ZRR-3355 §14, 2022; Ord. ZRR-1725; ZRR-1637; ZRR-889 §18.38)

18.390.105 Churches

- A. All buildings and property used exclusively as places of public worship or the accommodation of religious meetings shall be allowed as a main permitted use.
- B. Permitted accessory uses include, without being limited to, property used to house an area where the congregation of a church society and others may purchase tracts, books and other items relating to the promulgation of the church society's religious doctrines. All other permitted accessory uses shall meet the requirements of [18.390](#) of the UDO.
- C. With respect to either a main permitted use or an accessory use, if the religious organization is qualified as a religious organization exempt from federal income taxation pursuant to Section 501(c)(3) of the federal internal revenue code, and the property devoted exclusively to that use is granted a property tax exemption exclusively for religious purposes under the laws of the State of Kansas, there shall be a presumption that such use is a permitted main or accessory use under the land development regulations of the City; provided however, if either or both exemptions are not applicable to the subject use, there shall be a presumption that such use is not a permitted main or accessory use under the land development regulations of the City.

(History: ZRR-2156, §8, 99)

18.390.110 Hospitals

The following uses are accessory uses within a hospital where located within the main building and designed to serve hospital personnel, visitors or patients: residential quarters for staff and employees; nursing or convalescent quarters; storage and utility buildings; food service and vending machines; laundry and dry cleaning pickup and delivery; and flower and gift shops.

(History: Ord. ZRR-1725; ZRR-1637; ZRR-889 §18.38)

18.390.120 Public Utility Buildings

Outside storage of materials and equipment is an accessory use in buildings used by public utilities provided all storage is screened from view off the premises.

(History: Ord. ZRR-1725; ZRR-1637; ZRR-889 §18.38)

18.390.125 Bus Shelters

Bus shelters that are under the control of a public transportation provider shall be permitted in any district in the public right-of-way or on private property as an accessory use to a public street or private drive used as a bus route by a public transportation provider. All such shelters shall be subject to the performance standards set forth in Section [18.390.140 Q](#).

(History: Ord. ZRR-2215 §1, 99)

18.390.130 Construction Sites

Mobile homes and hauling trailers may be used as a temporary construction office on the site of a construction project, provided such mobile home or trailer is removed upon completion of the project. In residential districts, any such mobile home or trailer must be removed upon the issuance of a certificate of occupancy for the first residential dwelling unit for the subdivision or project or, in the case of a subdivision or project for which approval has been given for phased development, for the first dwelling unit for that phase.

(History: Ord. ZRR-1725; ZRR-1637)

18.390.140 Development and Performance Standards

A. Animals.

Domestic animals may be kept, and farm animals such as horses, ponies, cows and chickens may be kept, except that on a lot or tract of less than three (3) acres in size, a special use permit shall be required for the keeping of farm animals. The keeping of animals is also subject to the provisions of [Title 6](#).

B. Day care homes, child care centers, preschools and Mother's Day Out programs.

1. Day care homes shall be allowed subject to the following standards:
 - a. The day care provider shall be licensed by the State of Kansas and shall reside on the premises.
 - b. Outside play areas shall be fenced.
 - c. Up to three employees, other than persons residing on the premises, shall be permitted.
 - d. Compliance with requirements for day care homes in Title 5.
2. Child care centers, preschools and Mother's Day Out programs may be allowed as an accessory use only in religious, educational and community buildings. Such programs shall be subject to a general traffic plan being submitted to and approved by the City Traffic Engineer (or designee). Such plan shall not permit parking on any adjacent public street, and shall include a drop-off and pick-up site designed to prevent traffic congestion or vehicles stacking up onto the public streets.

C. Fences or walls.

1. Fences or walls may be constructed to a maximum height of 8 feet above the average grade subject to the restrictions of this subsection. Where a new fence or wall is constructed or an existing fence or wall is being extended, a permit shall be obtained from the Code Administrator. A fence permit shall also be required for the replacement or reconstruction of 50% or more of the linear length of the entire existing fence.
2. *Reserved.*
3. Retaining walls may be permitted where they are reasonably necessary due to the topography of the lot, where the wall is located at least 2 feet from any street right-of-way, and where the wall does not extend more than 6 inches above the ground level of the land being retained.
4. Any fence or wall constructed prior to the adoption of these regulations which does not meet the standards of this subsection may be reconstructed, replaced and maintained at

its present location resulting in a fence of the same size and material; provided, however, that the following standards shall be met:

- a. Where 50% or more of the linear length of the entire existing fence is being reconstructed or replaced, such fence shall comply with the design standards listed in subsection 5b. below; and
- b. No fence shall be replaced or reconstructed in a manner which obstructs the sight distance triangles as defined in [18.420.060](#).

Whenever any fence or fence section changes with respect to location, size or material, then the result shall be a fence or fence section that is in full compliance with all requirements for location and design, except for changes in location required for compliance with [18.420.060](#).

5. In residential districts the following restrictions and standards shall apply to all fences and walls:

a. **Location.**

1. **Front yard.** A fence or wall may not be constructed in the front yard or in front of the front platted building line, whichever is more restrictive, except for decorative entry fences. (See [18.245.050](#) for front yard fences in the PRN District). A decorative entry fence shall:
 - a. Extend no further than 12 feet in front of the front surface of the residence and shall in no case be closer than 15 feet to any public or private street right-of-way.
 - b. Be located in front of the main entry to the residence and shall not extend beyond either side of the residence.
 - c. Not connect with any other fence on the property, nor with any fence defined as a decorative landscape element.
 - d. Be decorative in nature, be 3 feet or less in height, and be limited to or similar to one of the following types of construction: brick or stone walls, split rail, wood rail, wrought iron, or spaced picket fence.
 - e. Not define an area which is completely enclosed without an ungated opening to the yard at least 36 inches in width.
 - f. Be maintained in good condition such that (1) painted portions of the fence do not have chipping or peeling paint, (2) elements of the fence that are broken or missing are promptly repaired or replaced, and (3) the area at the base of the fence is kept free of debris and neatly trimmed.
2. **Rear yard.** A fence or wall may be constructed on the rear property line on all lots whose rear lot lines abut another lot or a designated thoroughfare. However, no fence shall be permitted in any platted landscape easement except as a part of an approved master fence/screening plan. In the case of a double frontage lot whose rear yard abuts a super-collector, collector or local street, a fence or wall may be constructed no closer than 15 feet to the rear property line.
3. **Side yard.** A fence or wall may be constructed on the side property line, except that no fence shall be closer than 15 feet to any super-collector, collector or local

street right-of-way. In addition, no fence shall be permitted in any platted landscape easement except as a part of an approved master fence/screening plan.

b. Design standards.

1. All fences and walls shall be constructed with a finished surface facing outward from the property (e.g., in the case of a wooden fence, a "finished surface" means a surface of the fence where the pickets or slats are fully exposed to view). The posts and support beams shall be on the inside of the finished surface or shall be designed as an integral part of the finished surface. Provided, however, that where the Director determines that there are practical difficulties in complying with this standard, the fence posts may be outside the finished surface.
2. All fence segments abutting a designated thoroughfare, except on corner lots, shall provide one gate opening per lot to allow access to the area between the fence and the edge of the street for maintenance and mowing.
- c. Exceptions for fences in landscape easements. Where a master fence/screening plan has been approved as provided for in [18.460.220](#), all fences in the platted landscape easement shall conform with the master fence/screening plan approved by the Planning Commission. Changes to this plan shall be permitted only if a new master fence/screening plan is approved by the Planning Commission.
6. In all commercial and industrial districts, a fence or wall may be constructed on any side or rear property line but shall not be located in any required front yard setback or be closer to any public or private street than the required setback for a building. All fences and walls shall be constructed with a finished side facing outward from the property. The posts and support beams shall be on the inside of the finished surface or shall be designed as an integral part of the finished surface.

D. Garages, carports and storage buildings. (See [18.245.050](#) for garages in the PRN District)

1. For any one-family or two-family dwelling, there shall be permitted 1 detached garage or covered carport. Detached garage or carport spaces shall not exceed 250 square feet for each 3,000 square feet of lot area; provided, that in no event shall such areas exceed a total of 1,200 square feet. An attached garage or carport shall be subject to the same required setbacks as the main structure. A detached garage or carport shall be subject to the setbacks required for detached accessory buildings.
2. For any multi-family residential development, all detached garages or carports shall be subject to the setbacks required for detached accessory buildings. If the applicable district regulations do not contain separate provisions for accessory structures, then the setback requirements for the main structure shall apply.
3. In all residential districts, the design and construction of any garage, carport or storage building shall be similar to or compatible with the design and construction of the main building. The exterior building materials and colors shall be similar to the main building or shall be commonly associated with residential construction.

E. Hobby activities.

A hobby activity may be operated as an accessory use by the occupant of the premises purely for personal enjoyment, amusement or recreation so long as the activity is not in conflict with any City ordinance. Articles produced or constructed shall not be sold unless the activity complies with the requirements for a home occupation.

F. Home occupations.

Home occupations are permitted as an accessory use to a residence subject to the following provisions:

1. Purpose and intent.

It is the purpose and intent of these requirements to:

- a. Maintain neighborhood integrity and preserve the residential character of neighborhoods by encouraging compatible land uses.
- b. Provide residents of the City with an option to utilize their residences as places to enhance or fulfill personal economic goals as long as the choice of home occupations does not infringe on the residential rights of neighbors.
- c. Establish criteria for operating home occupations in dwelling units within residential districts.
- d. Assure that public and private services such as streets, sewers, water or utility systems are not burdened by home occupations to the extent that usage significantly exceeds that which is normally associated with a residence.

2. Area of use.

Home occupations shall be entirely contained within the interior of a residence and shall not be located in garages or accessory structures on the site. No visible evidence of the business shall be apparent from the street or the surrounding area. Day care homes as defined in [18.110.155](#) will be allowed to have an outside play area which shall be fenced. A home occupation shall use no more than 20% of the total dwelling unit floor area. Those home occupations which require occasional meetings using more than 20% of the floor area may be permitted, provided such meetings do not occur more frequently than once per month.

3. Employees.

The home occupation shall be conducted by family members residing on the premises with no assistance from other individuals or groups.

4. Sales, repairs and leasing.

- a. The commercial exchange of tangible goods or other items constituting a sale between the proprietor of a home occupation and members of the general public shall not be permitted on the premises of a home occupation. "Members of the general public" shall not include persons in the home by prior individualized invitation.
- b. The repair of items as a home occupation may occur only when the delivery and pickup of the items is conducted off the premises by the proprietor of the home occupation or by employees of the home occupation as defined in this Section. No trips shall be generated to or from the home occupation by customers with items which have been or are to be repaired.

- c. The exchange of items in a lease agreement between the proprietor of a home occupation or an employee and a customer shall not occur on the premises of a home occupation.

5. Traffic and parking.

No parking in the public right-of-way shall occur as a result of the home occupation except for occasional meetings. If parking for a home occupation occurs in a manner or frequency causing disturbance to the normal traffic flow for the neighborhood, the occupation shall be considered a business best operated in a commercial district rather than as a home occupation, and will no longer be permitted as an accessory use.

6. Changes to exterior.

The appearance of a dwelling as a residence shall not be altered to the extent that attention is drawn to the structure as a commercial or business operation. Alterations of building material, size or color, lighting fixtures or intensity, parking area, or any other exterior change should neither cause the structure to lose its residential character nor detract from the residential character of the neighborhood.

7. Nuisance controls.

A home occupation shall not create excessive noise, dust or dirt, heat, smoke, odors, vibration or glare or bright lighting which would be in excess of that created by a single residential dwelling. The production, dumping, or storage of combustible or toxic substances shall not be permitted on site. Additionally, a home occupation shall not create interference with, or fluctuations of, radio or television transmissions.

8. Visitation.

A home occupation may attract patrons, students or any business-related individuals only between the hours of 6:00 a.m. and 9:00 p.m. At any time during the day or evening, the parking standards in this Section shall apply to the activity generated by the home occupation. A home occupation shall not generate more than 10 business-related visitations per day, consisting of 10 arrivals and 10 departures by vehicle. Day care operations shall not generate more than 12 arrivals and 12 departures per day by vehicle. These standards shall not be construed so as to prohibit occasional group gatherings, recitals or demonstrations. However, such gatherings shall not occur more frequently than once per month and must be held within the visitation hours specified in this Section.

9. Signage.

See [18.440](#) for signs allowed at a residence.

10. Complaints and appeals.

Complaints against home occupations shall be made to the Planning and Development Services Department, or may be initiated by City staff members. Any person found to be in violation of the provisions of this Section relating to home occupations shall be notified in writing by the Director. Any person who is aggrieved by a determination that a violation exists may appeal that determination to the Community Development Committee. Any appeal must be filed within 10 days of the date on which the written notification was issued. If an appeal is filed, the Community Development Committee shall hold a hearing to review the notice of violation within 30 days of the filing date of the appeal. The Committee shall uphold or reverse the determination that a home occupation violation exists within 30 days of the date of the hearing. Any further appeals by any aggrieved party may be made to the District Court of Johnson County, Kansas, pursuant to K.S.A. 60-2101(d), or amendments thereto.

11. Presumption of Violation.

If an occupant of a residence is repairing a motor vehicle, trailer, camper or boat not registered to that address, then a presumption shall be made that the work is being done for compensation and that a home occupation violation is occurring. This presumption can be rebutted if the occupant can document that the repair work in question is not being done for compensation.

12. Other regulations.

Home occupations shall comply with all other local, state or federal regulations pertinent to the activity pursued, and the imposition of requirements under this Chapter shall not be construed as an exemption from such regulations.

G. Outside storage and use of equipment, material or vehicles.

1. The parking or storage of boats, camping trailers, pickup campers, motor homes, recreational vehicles, hauling trailers and commercial vehicles shall be subject to the provisions of [7.22](#).
2. In commercial districts, trucks, vans and trailers that are regularly driven or towed as a part of the operation of any permitted use may be parked but may not be used for the storage or sale of merchandise. Semitrailers shall not be parked or stored on the same lot for more than 10 days in any 30-day period. Temporary storage buildings or storage structures designed to be easily moved are not permitted as an accessory use or structure.
3. Hauling trailers may also be stored in District C-3 or CP-3.
4. Notwithstanding the foregoing, useful items may be stored outside under the conditions set forth in [7.26.170](#). Storage of such items shall be permitted only to the extent that it is accessory to the residential use of the property; storage related to any business activity shall not be permitted.

H. Parking and loading areas.

Parking and loading areas are subject to the requirements of [18.430](#).

I. Satellite dish antennas.

Subject to any applicable federal regulations, satellite dish antennas are permitted subject to the following requirements. These requirements are intended to protect the safety and character of the community without unduly impairing the ability of any such antenna to

receive an acceptable signal. Any person may request an exception to these rules by submitting written evidence to the Director that it is not possible to install an antenna which would receive a signal of acceptable quality and be in compliance with the requirements of this Section. The Director shall respond to such request in writing and may grant an exception where the requirements preclude an acceptable signal quality. This exception shall specify an alternative location for the antenna which minimizes any negative impact on the safety or character of the community.

1. All Districts

No satellite dish antenna shall be utilized as a sign. All antennas greater than 2 meters 79" in diameter shall be screened from view from surrounding properties to the greatest extent possible without interfering with the operation of the antenna. Plans detailing such screening shall be approved by the Planning Commission as a Final Development Plan prior to installation of any such antenna.

2. Residential and Agricultural Districts

- a. Satellite dish antennas 1 meter 39" or less in diameter may be building-mounted or ground-mounted. In no case shall the height of the antenna and supporting mast exceed 60 feet in height. Where the antenna is ground-mounted on a self-supporting mast, the mast shall be set back a distance from any property line equal to one-third of its height and shall not be located in the front yard.
- b. Satellite dish antennas greater than 1 meter 39" in diameter shall be ground-mounted and shall not exceed 13 feet in height (distance between the average surrounding grade and the highest point on the satellite dish antenna). The antenna shall be located within the rear yard and shall be set back from all property lines a distance at least equal to its height. On a corner lot, the antenna shall not be closer to the side lot line adjacent to the street than the main structure. All cables and electrical lines serving the antenna shall be located underground.

3. Commercial and Industrial Districts.

Satellite dish antennas in commercial or industrial districts may be either ground-mounted or building-mounted. Ground-mounted antennas shall not exceed 30 feet in height and shall be located behind the required yard setbacks applicable to accessory structures in that district. Building-mounted antennas shall not extend more than 13 feet above the roof surface.

J. Signs.

Signs are subject to the requirements of [18.440](#).

K. Solar collectors.

Solar collectors are permitted provided that the following performance standards are met. All solar collectors shall meet or exceed the current standards expressed in the adopted building codes. A building permit is required prior to the installation of any solar collector system.

1. Installation on a pitched roof:

- a. Roof-mounted solar collectors located on front or side building roofs visible from the public right-of-way shall not extend above the peak of the roof plane on which they

are mounted, and no portion of any such solar collector shall extend more than 2 feet perpendicular to the point on the roof where it is mounted.

- b. Roof-mounted solar collectors located on the rear side of building roofs shall not extend above the peak of the roof plane on which they are mounted, and no portion of any such solar collector shall extend more than 4 feet perpendicular to the point on the roof where it is mounted.

2. Installation on a flat roof:

- a. Roof-mounted solar collectors may be mounted on a flat roof at an optimum angle to the sun for maximum energy production when the building parapet or roof design provides full screening of the solar panels from public streets.
- b. For installation on a building without a parapet, roof-mounted solar collector panels shall be placed in the most obscure location without reducing the operating efficiency of the collectors, such as the center of the roof. The panels shall be installed at the same angle or as close as possible to the pitch of the roof. Associated equipment may be permitted on the roof so long as it is screened from view in accordance with [18.450.100](#). Solar collector panels are exempt from the screening provision of this subsection.

3. Installation on the side of a building:

- a. In any planned zoning district or in any district requiring site plan approval, the construction or installation of any solar collection system on the side of a building shall be subject to either Final Development Plan approval or Site Plan approval.
- b. Wall-mounted solar collector panels shall not extend more than 5 feet to the furthest extension of the solar collection panels from the wall plane on which they are installed.
- c. Wall-mounted solar collector panels shall not extend more than 25% into any required side setback or 50% into any required rear setback. No part of the system shall extend into any required front setback.
- d. Wall-mounted solar collectors shall not extend above the top of the wall on which they are mounted.

4. Ground-mounted installation:

- a. Ground-mounted solar collectors shall not exceed 8 feet in total height and shall be located within the rear yard at least 12 feet inside the property line.
- b. All lines serving a ground-mounted solar collector shall be located underground.

5. Parking lot light pole installation:

The mounting height for parking lot light fixtures shall not exceed 33 feet as measured to the top of the fixture from grade. 20% of the height of the light pole may be added above the light fixture for the purpose of installing a solar collector panel. The overall height of the parking lot light pole and solar collector shall not exceed 40 feet. Any necessary solar collector appurtenances shall be painted to match the light pole and fixture.

- L. No temporary or incomplete building, and no automotive equipment, trailer, recreational vehicle, garage or other use or building accessory to a family dwelling shall be erected, maintained or used for residential purposes.

- M. No accessory use or structure except basketball goals, flag poles and fences, as permitted, shall be located in any front yard.
- N. Unless otherwise specifically provided, any accessory use or structure greater than 10 feet in height shall be located a distance of at least 1/3 its height from any side or rear property line.
- O. The total floor area of all accessory uses listed in [18.390.060](#) shall not exceed 10% of the gross floor area of any building.
- P. A recycling collection point as defined in this Chapter may be permitted as an accessory use only after approval of a final development plan by the Planning Commission. Prior to granting any such approval, the Planning Commission shall consider the impact of the proposed activity and structure on:
1. Adjacent properties and uses;
 2. The visual appearance of the area; and
 3. Traffic circulation on and off the site.

In District A and all residential districts, recycling collection points may be permitted only in conjunction with a nonresidential use such as a school, church, or community building.

Q. Bus Shelters.

Bus shelters may be erected upon issuance of the appropriate building permit(s) by the Planning and Development Services Department. Such permits shall be issued only if the following standards are met:

1. The location of the bus shelter relative to street geometrics, traffic patterns and sidewalk locations does not create significant traffic hazards for vehicles or pedestrians, and does not create any obstacles to pedestrian access to the shelter.
2. The bus shelter is located such that riders can safely and easily move from the shelter to the bus and the bus can move safely from the traffic flow to the shelter and then back into traffic.
3. The bus shelter is anchored to a concrete pad.
4. The location of the bus shelter does not interfere with the operation or maintenance of any existing or planned traffic control devices, stormwater or utility facilities, lines or equipment.
5. The bus shelter, if located on private property, does not reduce the number of parking spaces below the required amount, or interfere with the safe circulation of vehicular and pedestrian traffic.
6. The bus shelter is transparent in nature and if lighting is present, all light fixtures are cut-off fixtures shielding the light source at an angle of 90 degrees from vertical.
7. The bus shelter does not contain any signs or advertising except for bus schedules, routing information and the logo(s) of the public transportation provider(s).
8. The bus shelter is located a minimum of 2 feet from the back of the curb of any public street, and meets all sight-distance requirements.
9. The bus shelter, if located within the public right-of-way, is subject to maintenance agreements.
10. The bus shelter, if located on private property, is not subject to setback requirements from the public right-of-way.

R. Swimming Pools and associated equipment.**1. Setbacks:**

Swimming pools and associated mechanical filtering equipment located in residential areas shall meet the setback for accessory buildings per [18.180.070](#).

2. Screening.

- a. In residential districts, mechanical filtering equipment and heating equipment of new in-ground pools shall be screened from view, unless the equipment is located greater than 25 feet from any rear or side property line.
- b. Any mechanical equipment visible from streets shall be screened.
- c. An approved solid privacy fence at the property line shall be deemed as providing required screening.
- d. Screening shall be any combination of landscaping, solid fence, or other enclosure. The screening shall be approved by the Director prior to a permit being issued for the pool.

Denial of a building permit by the Planning and Development Services Department based on the interpretation of the development and performance standards listed above, may be appealed to the Board of Zoning Appeals.

(History: Ord. No. ZRR-3447 §22, 2024; Ord. No. ZRR-3300 §30, 2020; Ord. ZRR-2923 §1, 2011; ZRR-2903 §2, 2011; ZRR-2836 §1, 2010; ZRR-2870 §1, 2010; ZRR-2854 §4, 2010; ZRR-2698 §14, 2007; ZRR-2590 §6, 2005; ZRR-2215 §2, 2000; ZRR-2116 §1, 98; ZRR-2093 §1, 98; ZRR-1925 §4, 95; ZRR-1807 §3, 93; ZRR-1725; ZRR-1637; ZRR-1304; ZRR-889 §18.38)

TITLE 18 - UNIFIED DEVELOPMENT ORDINANCE

18.410 NONCONFORMING SITUATIONS AND VESTED RIGHTS

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18.410.010 Definitions

Unless otherwise specifically provided or unless clearly required by the context, the words and phrases defined in this section shall have the meaning indicated when used in this chapter.

- A. **Effective date of this ordinance.** Whenever this chapter refers to the effective date of this ordinance, the reference shall be deemed to include the effective date of any amendments to this ordinance if the amendment, rather than this ordinance as originally adopted, creates a nonconforming situation.
- B. **Expenditure.** A sum of money paid out in return for some benefit or to fulfill some obligation. The term also includes binding contractual commitments to make future expenditures, as well as any other substantial changes in position.
- C. **Nonconforming dimension.** A nonconforming situation that occurs when the height, size, or minimum floor area of a structure or the relationship between an existing building or buildings and the other buildings or lot lines does not conform to the regulations applicable to the zoning district in which the property is located.

- D. **Nonconforming lot.** A lot existing on the effective date of this ordinance (and not created for purposes of evading the restrictions of this ordinance) that does not meet the minimum area requirement of the zoning district in which the lot is located.
- E. **Nonconforming project.** Any structure, development, or undertaking that is incomplete on the effective date of this ordinance and would be inconsistent with one or more of the regulations applicable to the zoning district in which it is located if completed as proposed or planned.
- F. **Nonconforming sign.** A sign that, on the effective date of this ordinance, does not conform to one or more of the regulations set forth in this ordinance.
- G. **Nonconforming site improvement.** A nonconforming situation that occurs when, on the effective date of this ordinance, an existing site improvement on a lot, including but not limited to parking areas, storm drainage facilities, sidewalks and landscaping, no longer conforms to one or more of the regulations of this ordinance applicable to the property.
- H. **Nonconforming use.** A nonconforming situation that occurs when property is used for a purpose or in any manner made unlawful by the use regulations or development and performance standards applicable to the zoning district in which the property is located. The term also refers to the activity that constitutes the use made of the property.
- I. **Nonconforming situation.** A situation that occurs when, on the effective date of this ordinance, an existing lot, structure or improvement, or the use of an existing lot, structure or improvement no longer conforms to one or more of the regulations applicable to the zoning district in which the lot, structure or improvement is located.

(History: Ord. ZRR-1725; ZRR-1637)

18.410.020 Continuation of Nonconforming Situations and Completion of Nonconforming Projects

- A. Unless otherwise specifically provided in this title and subject to the restrictions and qualifications set forth in Sections [18.410.030](#) through [18.410.090](#), nonconforming situations that were otherwise lawful on the effective date of this ordinance may be continued.
- B. Nonconforming projects may be completed only in accordance with the provisions of Section [18.410.090](#).
- C. The burden shall be on the landowner or developer to establish entitlement to continuation of nonconforming situations or completion of nonconforming projects.

(History: Ord. ZRR-1725; ZRR-1637)

18.410.030 Nonconforming Lots

- A. This section applies only to undeveloped nonconforming lots. A lot is undeveloped if it has no substantial structures upon it. For purposes of this section, a substantial structure shall include any structure in excess of 600 square feet in floor area which was constructed for a use which was a principal use permitted in the zoning district at the time of construction. A change in use of a developed nonconforming lot may be accomplished only in accordance with Section [18.410.060](#).

- B. When a nonconforming lot can be used in conformity with all of the regulations applicable to the intended use, except that the lot is smaller than the required minimum lot area applicable to that zoning district, then the lot may be used as proposed just as if it were conforming. However, no use that requires a greater lot size than the established minimum lot size for a particular district is permissible on a nonconforming lot.
- C. When the use proposed for a nonconforming lot is one that is conforming in all other respects but the applicable setback requirements cannot be complied with, then the Board of Zoning Appeals (in the case of a conventional zoning district) or the Planning Commission (in the case of a planned zoning district) may allow deviations from the applicable setback requirements if it finds that:
1. Development of the property is not reasonably possible for the use proposed without such deviations;
 2. The deviations are necessitated by the size or shape of the nonconforming lot; and
 3. The property can be developed as proposed without any significant adverse impact on surrounding properties or the public health or safety.
- D. For purposes of subsection C, development in compliance with the applicable building setback requirements is not reasonably possible if a building that serves the minimal needs of the use proposed for the nonconforming lot cannot practicably be constructed and located on the lot in conformity with such setback requirements. However, mere financial hardship does not constitute grounds for finding that compliance is not reasonably possible.
- E. Subject to the following sentence, if, on the date this ordinance becomes effective, an undeveloped nonconforming lot adjoins and has continuous frontage with one or more other undeveloped lots under the same ownership, then neither the owner of the nonconforming lot nor his or her successors in interest may take advantage of the provisions of this section. This subsection shall not apply to a nonconforming lot if a majority of the developed lots located on either side of the street where such lot is located and within 500 feet of such lot are also nonconforming. The intent of this subsection is to require nonconforming lots to be combined with other undeveloped lots to create conforming lots under the circumstances specified herein, but not to require such combination when that would be out of character with the neighborhood that has previously been developed.

(History: Ord. ZRR-1725; ZRR-1637)

18.410.040 Extension or Enlargement of Nonconforming Situations

- A. Except as specifically provided in this section, no person may engage in any activity that causes an increase in the extent of nonconformity of a nonconforming situation. In particular, physical alteration of structures or the placement of new structures on open land is unlawful if such activity results in:
1. An increase in the total amount of space or building area devoted to a nonconforming use; or
 2. Greater nonconformity with respect to dimensional restrictions such as setback requirements, height limitations or density requirements, or other requirements such as parking requirements.
- B. Subject to subsection D, a nonconforming use may be extended throughout any portion of a completed building that, when the use was made nonconforming by this ordinance, was

manifestly designed or arranged to accommodate such use. However, except as otherwise provided in Section [18.410.090](#), a nonconforming use may not be extended to additional buildings or to land outside the original building.

- C. Except as otherwise provided in Section [18.410.090](#), a nonconforming use of open land may not be extended to cover more land than was occupied by that use when it became nonconforming; provided, however, that a use that involves the removal of natural materials from the land may be expanded to other portions of the lot where the use was established at the time it became nonconforming if ten percent or more of the earth products had already been removed on the effective date of this ordinance, and where the development and performance standards otherwise applicable to such a use are complied with.
- D. The volume, intensity, or frequency of use of property where a nonconforming situation exists may be increased and the equipment or processes used at a location where a nonconforming situation exists may be changed if these or similar changes amount only to changes in the degree of activity rather than changes in kind and no violations of other paragraphs of this section occur.
- E. Notwithstanding subsection A, any structure used as a one-family dwelling and maintained as a nonconforming use may be enlarged or replaced with a similar structure of a larger size, so long as the enlargement or replacement does not create new nonconformities or increase the extent of the existing nonconformities with respect to such matters as setback and parking requirements. This paragraph is subject to the limitations stated in Section [18.410.080](#).

(History: Ord. ZRR-1725; ZRR-1637)

18.410.050 Repair, Maintenance and Restoration

- A. Minor repairs to and routine maintenance of structures where nonconforming situations exist are permitted and encouraged. Major renovation, i.e., work estimated to cost more than 50% of the fair market value of the structure to be renovated, shall not be permitted.
- B. If a structure located on a lot where a nonconforming situation exists is damaged by fire, explosion, act of God, or the public enemy to an extent that the costs of repair or restoration would not exceed 50% of its fair market value, then the damaged structure may be repaired or restored only in accordance with a nonconforming situation permit issued by the Code Administrator pursuant to this section. This subsection does not apply to structures used for one--family dwellings, which structures may be reconstructed pursuant to a building permit just as they may be enlarged or replaced as provided by subsection E of Section [18.410.040](#), except as otherwise provided in [18.360](#) (Floodplain Management Ordinance).
- C. Any repairs, renovation or restoration of a structure pursuant to this section which would require the issuance of any permit under [Title 16](#) of the code shall also require the issuance of a nonconforming situation permit by the Code Administrator. In support of the application for such permit, the applicant shall submit such information as may be required to satisfy the Code Administrator that the cost of the proposed repairs, renovation or restoration would not exceed 50% of the fair market value of the structure.
- D. For purposes of this Chapter:
 - 1. The "cost" of renovation or repair or restoration shall mean the fair market value of the materials and services necessary to accomplish such renovation, repair or restoration.

2. The "cost" of renovation or repair or restoration shall mean the total cost of all such intended work, and no person may seek to avoid the intent of this Chapter by doing such work incrementally.

(History: Ord. ZRR-2450 §19, 2003; ZRR-1725; ZRR-1637; ZRR-889 §18.44)

18.410.060 Change in Use of Property Where a Nonconforming Situation Exists

- A. A change in use of property (where a nonconforming situation exists) may not be made except in accordance with subsections B through E of this section. However, this requirement shall not apply if only a sign permit is needed.
- B. If the intended change in use is to a principal use that is permissible in the district where the property is located, and all of the other requirements of this Title applicable to that use can be complied with, permission to make the change must be obtained in the same manner as permission to make the initial use of a vacant lot. Once conformity with this Title is achieved, the property may not revert to its nonconforming status.
- C. If the intended change in use is to a principal use that is permissible in the district where the property is located, but all of the requirements of this ordinance applicable to that use cannot reasonably be complied with, then the change is permissible only if the Planning Commission issues a nonconforming situation permit authorizing the change. This permit may be issued if the Planning Commission finds, in addition to any other findings that may be required by this Title, that the intended change will not result in a violation of Section 18.410.040 and that all of the applicable requirements of this Title will be complied with that are reasonably possible. Compliance with a requirement of this Title is not reasonably possible if compliance cannot be achieved without adding additional land to the lot where the nonconforming situation is maintained or without moving a substantial structure that is on a permanent foundation. Mere financial hardship caused by the cost of meeting such requirements as paved parking does not constitute grounds for finding that compliance is not reasonably possible. Further, in no case may an applicant be given permission pursuant to this subsection to construct a building or add to an existing building if additional nonconformities would thereby be created.
- D. In making a determination under subsection C, whenever (1) there exists a lot with one or more structures on it, and (2) a proposed change in use that does not involve any enlargement of a structure is proposed for such lot, and (3) the parking or loading requirements that would be applicable as a result of the proposed change cannot be satisfied on such lots because there is not sufficient area available on the lot that can practicably be used for parking or loading, then the proposed use shall not be regarded by the Planning Commission as resulting in an impermissible extension or enlargement of a nonconforming situation in violation of Section 18.410.140. However, if the proposed use is approved, the applicant shall be required to comply with all applicable parking and loading requirements than can be satisfied without acquiring additional land, and shall also be required to obtain off-site parking if parking requirements cannot be satisfied on the lot with respect to which the site development permit is required and such off-site parking is reasonably available. If such off-site parking is not reasonably available at the time the nonconforming situation permit is granted, then the permit recipient shall be required to obtain it if and when it does become reasonably available. This requirement shall be a continuing condition of the nonconforming situation permit.

(History: Ord. ZRR-2420 §22, 2003; ZRR-1725; ZRR-1637; ZRR-889 §18.44)

18.410.070 Nonconforming Site Improvements

- A. On lots with nonconforming site improvements, no additions to, or repairs or renovations of, any structure or site improvement may be made without first either bringing the nonconforming site improvements into complete conformity with the regulations applicable to the zoning district in which the lot is located or obtaining a nonconforming situation permit pursuant to this section. Provided, however, that this section shall not apply to the following circumstances:
1. Repairs or restoration of a structure pursuant to subsection B of Section [18.410.050](#); or
 2. Minor repairs or renovation of a structure or site improvement.
- B. For purposes of this section, "minor repairs or renovation" shall mean repairs or renovation costs which do not exceed 10% of the structural value of a structure or site improvement.
- C. When an addition to, or repairs or renovation of, any structure or site improvement is proposed on a lot with a nonconforming site improvement(s), the Board of Zoning Appeals (in the case of a conventional zoning district) or the Planning Commission (in the case of a planned zoning district) may approve a nonconforming situation permit allowing such addition or repairs or renovation if it finds that:
1. The nonconforming site improvement(s) is the only nonconforming situation pertaining to the property.
 2. Compliance with the site improvement requirements applicable to the zoning district in which the property is located is not reasonably possible.
 3. The property can be developed as proposed without any significant adverse impact on surrounding properties or the public health or safety.
- D. For purposes of subsection C, mere financial hardship does not constitute grounds for finding that compliance with the site improvement requirements is not reasonably possible.

(History: Ord. ZRR-1725; ZRR-1637)

18.410.075 Nonconforming Status of Gravel Driveways

All residential driveways and parking areas in existence prior to June 1, 1991, and not paved with a hard surface in compliance with O.P.M.C. [18.430.020](#) shall be considered a "nonconforming site improvement." Such driveways and parking areas shall not be required to be paved, but shall be required to comply with all maintenance standards established for gravel driveways and parking areas. In order to be granted this nonconforming site improvement status, the existence and the relative size and location of a gravel driveway must be recorded in the Overland Park Gravel Driveway Survey of 1991, or be registered with the Department of Planning and Research (now known as Department of Planning and Development Services) as provided in this section. Residents and property owners will have until December 31, 1992, to verify the accuracy of the survey as it applies to their property or to register their property by showing that a gravel driveway existed prior to June 1, 1991. After December 31, 1992, unpaved driveways and parking areas which are not included in the survey or registered with the City will be presumed to be unlawful unless the property owner can provide convincing evidence to the contrary.

(History: Ord. ZRR-2343 §50, 2002; ZRR--1747 §1, 92)

18.410.080 Abandonment and Discontinuance of Nonconforming Situations

- A. When a nonconforming use is discontinued for a consecutive period of 180 days, or discontinued for any period of time without a present intention to reinstate the nonconforming use, the property involved may thereafter be used only for conforming purposes.
- B. If the principal activity on property where a nonconforming situation other than a nonconforming use exists is discontinued for a consecutive period of 180 days, or discontinued for any period of time without a present intention of resuming that activity, then the property may thereafter be used only in conformity with all of the regulations applicable to the preexisting use unless the Board of Zoning Appeals (in the case of a conventional zoning district) or the Planning Commission (in the case of a planned zoning district) issues a permit to allow the property to be used for this purpose without correcting the nonconforming situations. Such permit may be issued if the permit-issuing authority finds that eliminating a particular nonconformity is not reasonably possible (i.e., cannot be accomplished without adding additional land to the lot where the nonconforming situation is maintained or without moving a substantial structure that is on a permanent foundation). The permit shall specify which nonconformities need not be corrected.
- C. For purposes of determining whether a right to continue a nonconforming situation is lost pursuant to this section, all of the buildings, activities, and operations maintained on a lot are generally to be considered as a whole. For example, the failure to rent one apartment in a nonconforming apartment building for 180 days shall not result in a loss of the right to rent the apartment or space thereafter so long as the apartment building as a whole is continuously maintained. But if a nonconforming use is maintained in conjunction with a conforming use, discontinuance of a nonconforming use for the required period shall terminate the right to maintain it thereafter.
- D. When a structure or operation made nonconforming by this ordinance is vacant or discontinued on the effective date of this ordinance, the 180-day period for purposes of this section begins to run on the effective date of this ordinance.

(History: Ord. ZRR-1725; ZRR-1637)

18.410.090 Completion of Nonconforming Projects -- Vested Rights

- A. All nonconforming projects on which construction was begun at least 180 days before the effective date of this ordinance as well as all nonconforming projects that are at least 10% completed in terms of the total expected cost of the project on the effective date of this ordinance may be completed in accordance with the terms of their permits, so long as those permits were validly issued and remain unrevoked and unexpired, and a vested rights permit is obtained from the Director of Planning and Development Services. If a development is designed to be completed in stages, this subsection shall apply only to the particular phase under construction.
- B. Except as provided in subsection A, all work on any nonconforming projects shall cease on the effective date of this ordinance, and all permits previously issued for work on nonconforming projects may begin or may be continued only pursuant to a vested rights permit issued in accordance with this section by the Planning Commission. The Planning Commission shall approve such a permit if it finds that the applicant has in good faith made

substantial expenditures or incurred substantial binding obligations or otherwise changed his or her position in some substantial way in reasonable reliance on the development regulations as they existed before the effective date of this ordinance and thereby would be unreasonably prejudiced if not allowed to complete its project as proposed. In considering whether these findings may be made, the Planning Commission shall be guided by the following, as well as other relevant considerations:

1. All expenditures made to obtain, or pursuant to, a validly issued and unrevoked building, land disturbance, site development or sign permit shall be considered as evidence of reasonable reliance on the development regulations that existed before the effective date of this ordinance.
 2. Except as otherwise provided in subsection B--1, no expenditures made more than 180 days before the effective date of this ordinance may be considered as evidence of reasonable reliance on the development regulations that existed before the effective date of this ordinance. An expenditure is made at the time a person incurs a binding obligation to make that expenditure.
 3. To the extent that expenditures are recoverable with a reasonable effort, a person shall not be considered prejudiced by having made those expenditures. For example, a person shall not be considered prejudiced by having made some expenditure to acquire a potential development site if the property obtained is approximately as valuable under the new classification as it was under the old, for the expenditure can be recovered by a resale of the property.
 4. To the extent that a nonconforming project can be made conforming and that expenditures made or obligations incurred can be effectively utilized in the completion of a conforming project, a person shall not be considered prejudiced by having made such expenditures.
 5. An expenditure shall be considered substantial if it is significant in dollar amount and in terms of the total estimated cost of the proposed project and the ordinary business practices of the developer.
 6. A person shall be considered to have acted in good faith if actual knowledge of a proposed change in the development regulations affecting the proposed development site could not be attributed to such person.
 7. Even though a person had actual knowledge of a proposed change in the development regulations affecting a development site, the Planning Commission may still find that such person acted in good faith if such person did not proceed with his plans in a deliberate attempt to circumvent the effects of the proposed ordinance. For example, the Planning Commission may find that the developer did not proceed in an attempt to undermine the proposed ordinance if it determines that at the time the expenditures were made, either there was considerable doubt about whether any ordinance would ultimately be passed, or it was not clear that the proposed ordinance would prohibit the intended development, and the developer had legitimate business reasons for making expenditures.
- C. When it appears from the developer's plans or otherwise that a project was intended to be or reasonably could be completed in phases, stages, segments, or other discrete units, the developer shall be allowed to complete only those phases or segments with respect to which the developer can make the showing required under subsection B. In addition to the matters and subject to the guidelines set forth in subsection 1 through 6 of subsection B, the permit-

issuing authority shall, in determining whether a developer would be unreasonably prejudiced if not allowed to complete phases or segments of a nonconforming project, consider the following in addition to other relevant factors:

1. Whether any plans prepared or approved regarding uncompleted phases constitute conceptual plans only or construction drawings based upon detailed surveying, architectural or engineering work.
 2. Whether any improvements, such as streets or utilities, have been installed in phases not yet completed.
 3. Whether utilities and other facilities installed in completed phases have been constructed in such a manner or location or to such a scale, in anticipation of connection to or interrelationship with approved but uncompleted phases, that the investment in such utilities or other facilities cannot be recouped if such approved but uncompleted phases are constructed in conformity with existing regulations.
- D. The Planning Commission shall not consider any application for a vested rights permit authorized by subsection B that is submitted more than 60 days after the effective date of this ordinance. The Planning Commission may waive this requirement for good cause shown, but in no case may it extend the application deadline beyond one year from the effective date of this ordinance.
- E. The Planning Commission shall establish expedited procedures for hearing applications for permits under this section.
- F. Notwithstanding the provisions of subsections A and B above, development rights for a single-family residential development shall vest upon the recording of a plat of such land. If construction is not commenced on such land within five years of recording a plat, then the development rights in the project shall expire.

(History: Ord. ZRR-2420 §23, 2003; ZRR-2343 §51, 2002; ZRR-1725; ZRR-1637)

18.410.110 Nonconforming Utility Structures

- A. Subject to the remaining restrictions of this section, and the provisions of Section [18.410.080](#), nonconforming utility structures that were in existence on the effective date of this ordinance may be continued provided documentation outlining the size and location of the structures has been provided by the City prior to May 1, 2002.
- B. Subject to the other provisions of this section, nonconforming utility structures may be maintained, repaired, or replaced. A nonconforming utility structure may be altered or replaced with an alternate structure in the same location, provided the resulting structure does not increase the size of the pre-existing structure by more than 35% in volume, and further provided that no new nonconforming situations are created.
- C. Nonconforming utility structures may not be moved, except to bring the structure into complete conformity with this ordinance.

(History: ZRR-2626 §4, 2006; ZRR-2262 §15, 2001)

TITLE 18 - UNIFIED DEVELOPMENT ORDINANCE

18.430 PARKING AND LOADING REGULATIONS

Contents:

- 18.430.010 Parking Required for All Structures**
- 18.430.020 Improvement of Parking Areas**
- 18.430.030 Access to Parking Lots and Parking Garages**
- 18.430.040 Dimensions of Parking Areas**
- 18.430.050 Accessible Parking**
- 18.430.060 Head-in Parking**
- 18.430.070 Setbacks**
- 18.430.090 Screening**
- 18.430.100 Landscaping**
- 18.430.110 Deferred Construction of Parking Spaces**
- 18.430.120 Paved Parking Areas for One- and Two-Family Dwellings**
- 18.430.125 Maintenance of Gravel Driveways**
- 18.430.130 Small Car Parking**
- 18.430.140 Stacking Requirements for Drive-Thru Facilities**
- 18.430.150 Required Parking**
- 18.430.160 Map of Parking Rates**
- 18.430.170 Authority to Adopt Shared Parking Reductions & Demand Reduction Amenities**
- 18.430.180 Covenant to Maintain Private Parking Facilities**
- 18.430.190 Loading Areas**
- 18.430.200 Parking Waiver**
- 18.430.210 Nonconforming Parking**

18.430.010 Parking Required for All Structures

For all buildings or structures hereafter erected, constructed, reconstructed, moved or altered, parking in the form of garages or areas made available exclusively for parking shall be provided. Such parking spaces shall generally be located entirely on the same property as the main use with no portion other than the necessary drives extending into any street or other public way. Parking shall be provided in quantities stated below for the various zoning districts and certain occupancies which may have unusual parking needs. The issuance of building permits or certificates of occupancy shall require compliance with the minimum parking standards even though a development plan may have been approved previously which included fewer parking spaces due to the unknown or changing status of occupancy. Except as hereinafter provided, no parking of motor vehicles shall occur except on paved parking areas required by this Chapter. In commercial zoning districts, the required parking area shall not be used for motor vehicle maintenance or repair.

These provisions are intended to support the following goals:

- Limit the impacts of excessive and underutilized parking supply and increase opportunities for productive uses and open space.
- Foster economic vitality and mixed-use districts by supporting walkability and activity density with appropriate parking policies.
- Implement codes that maximize the efficient use of parking and support shared parking resources citywide.
- Develop provisions that create quality parking screening and design standards that minimize adverse impacts of the built environment.
- Manage the growth of traffic by encouraging projects and contributions that minimize driving trips.

(History: Ord. ZRR-3373 §37, 2023; Ord. ZRR-1725; ZRR-1637; ZRR-1181; ZRR-889)

18.430.020 Improvement of Parking Areas

All parking areas and drives leading thereto shall be ready for use upon occupancy of a building and shall be surfaced with a permanent, bituminous or concrete paving meeting the standards of the City prior to the issuance of a certificate of occupancy, unless special permission is granted by the Director due to weather conditions not being satisfactory for placing asphaltic materials. Alternate all-weather, dust-free, permeable paving materials may be approved by the Director when used as a stormwater treatment facility as required under [16.210](#). All parking lots and drives leading thereto, except those serving one-family dwellings, shall have curbs and drainage facilities approved by the Director. In cases where raised curbs are eliminated as an integral part of a stormwater treatment facility, flat or “ribbon” curbing constructed from Portland Cement Concrete shall be utilized and alternate means of controlling vehicle movement shall be provided and approved by the Director.

(History: Ord. ZRR-3373 §38, 2023; Ord. ZRR-2675 §12, 2008; ZRR-1725; ZRR-1637; ZRR-1181; ZRR-935; ZRR-889 §18.50; ZRR-412 §28)

18.430.030 Access to Parking Lots and Parking Garages

Ingress and egress to all parking areas shall be by means of paved access drives access meeting the requirements of the City's Design and Construction Standards Manual. See 18.43.040 for internal drive aisle dimensions.

(History: Ord. ZRR-3373 §39, 2023; Ord. ZRR-1725; ZRR-1637; ZRR-935)

18.430.040 Dimensions of Parking Areas

- A. Standard parking stall dimensions shall be not less than 9 feet by 18 feet, plus the necessary space for maneuvering into and out of the space. Where the end of the parking space abuts a curbed area at least 5 feet in width (with landscaping or sidewalk), an overhang may be permitted which would reduce the length of the parking space by 2 feet. Such overhang shall be measured from the face of the curb. For standard parking lots, minimum dimensions shall be as follows:

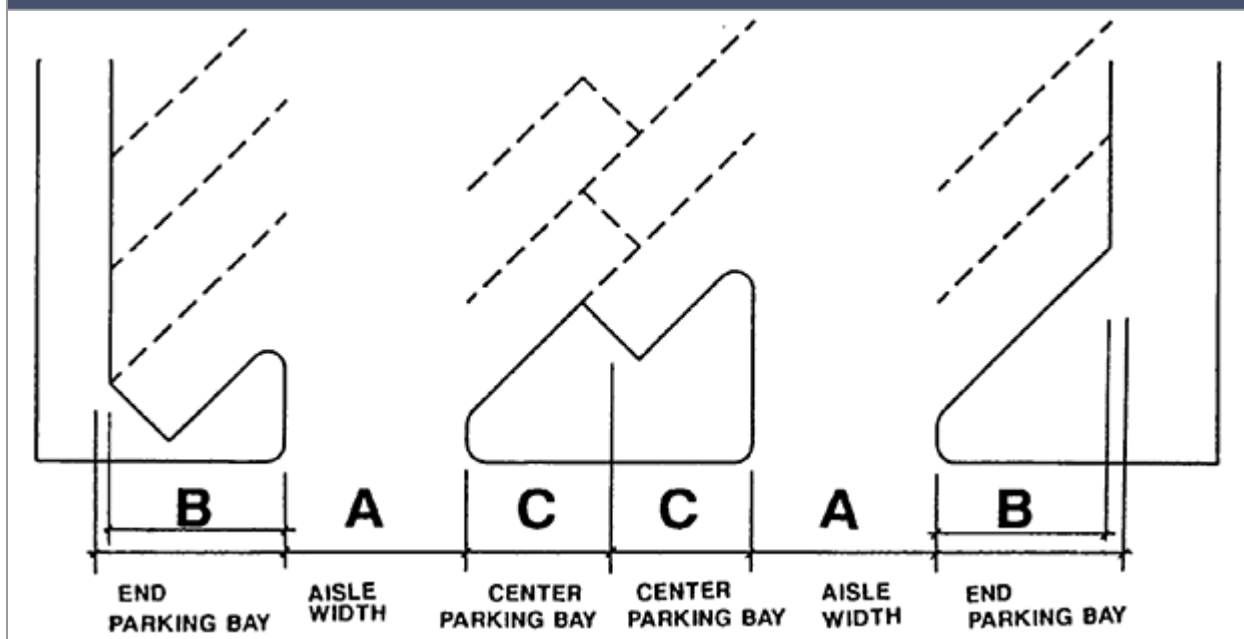
PARKING CONFIGURATION:			
	90-degree	60-degree	45-degree
Aisle Width			
▪ One-way traffic	_____	18 feet	14 feet
▪ Two-way traffic	24 feet	20 feet	20 feet
End Parking Bay Width			
▪ Without overhang	18 feet	20 feet	19 feet
▪ With overhang	16 feet	18 feet	17 feet
Center Parking Bay Width	18 feet	18 feet	16 feet

See also Figure 18.430.040.

- B. Minimum dimensions for a parallel parking space shall be 9 feet by 23 feet.
- C. Minimum parking dimensions for other configurations shall be determined by the Planning Commission. For Small Car Parking, see 18.430.130.
- D. Required aisle widths for fire lanes are subject to the requirements of the City's adopted Fire Code.
- E. All parking design is subject to review and approval and shall meet good traffic engineering design principles.

(History: Ord. ZRR-3373 §40, 2023; Ord. ZRR-1725; ZRR-1637)

FIGURE 18.430.040



18.430.050 Accessible Parking

- A. For those buildings where such parking is required, parking areas servicing each building entrance shall have the number of level parking spaces for person(s) with disabilities set forth in the current version of the Americans with Disabilities Act Accessibility Guidelines and be identified by above-grade signs as reserved for person(s) with disabilities.
- B. Such parking spaces shall conform with the requirements of the Building Code and applicable state law with regard to parking space dimensions and signage.
- C. Accessible parking for the disabled shall be located to avoid the need for disabled persons to cross drive aisles. In instances where high traffic volumes along the face of a large building are expected, the Planning Commission or Governing Body may waive this requirement where the accessible parking will be located across the drive aisle or in another suitable location nearest the building entrance.

(History: Ord. ZRR-3373 §41, 2023; Ord. ZRR-2453 §1, 2003; ZRR-1725; ZRR-1637)

18.430.060 Head-in Parking

Head-in parking from any public right-of-way shall only be permitted as specified in the City's Design and Construction Standards Manual.

(History: Ord. ZRR-3373 §42, 2023; Ord. ZRR-2839 §1, 2010; ZRR-1725; ZRR-1637; ZRR-935)

18.430.070 Setbacks

- A. Parking areas in conventional zoning districts shall be set back per the following table. Except as hereinafter provided, no parking area shall be located within 6 feet of a lot line.

B. Parking areas in planned zoning districts shall be set back the same as that in any equivalent conventional zoning district or as noted in the table below, subject to modifications as provided in 18.150.070.

Zoning District / Land Use	Parking Setback Requirement
A, RE, RP-OE, RP-OS, R-1, R-1A, RP-1N, R-2, MHP, and one- or two-family dwellings in any other district	2 feet from lot line Exception from this setback if a driveway serves two properties
R-3, RP-4, RP-5, RP-6	30 feet from street right-of-way
Non-residential use in any residential district	30 feet from street right-of-way
	25 feet from a lot line of property identified on the Future Development Plan for very-low or low-density residential development
	10 feet from a lot line of property identified on the Future Development Plan for Medium-, Medium-High or High-Density residential development
	6 feet from a lot line of property identified on the Future Development Plan for any other designation
C-O	15 feet from street right-of-way
	new parking along the perimeter of a partially-developed office complex shall comply with the parking setbacks of the development plan approved prior to January 1, 2010
C-1, C-2, C-3	10 feet from street right-of-way
BP	30 feet from street right-of-way
	10 feet from any peripheral property line other than a street right-of-way line or residentially zoned property
	30 feet from residentially zoned property
	6 feet from any internal property line
M-1	30 feet from street right-of-way
M-2, PRN	15 feet from street right-of-way

C. Parking area setbacks for special uses shall be determined at the time of plan approval for the special use permit. The parking setback of the underlying zoning district or the most analogous zoning district shall be followed. Requests for reduced setbacks may be approved by the Planning Commission and Governing Body, taking into consideration the uniqueness of the facility and whether the proposed setback is compatible with:

1. The underlying zoning district,
2. The surrounding land uses, including impact on adjacent residential neighborhoods,
3. The use of the facility,
4. Similarity to setbacks allowed by right for other comparable uses in other zoning districts,
5. The relationship of the site to interstate highways, where applicable, and
6. The topography of the site.

(History: Ord. ZRR-3373 §43, 2023; Ord. ZRR-2848, §25, 2010; ZRR-2156, §5, 99; ZRR-1725; ZRR-1637)

18.430.090 Screening

A parking area shall be screened in accordance with the provisions set forth in 18.450 and any applicable Design Standards.

(History: Ord. ZRR-3373 §44, 2023; Ord. ZRR-1725; ZRR-1637; ZRR-1427; ZRR-987; ZRR-889 §18.57)

18.430.100 Landscaping

The interior of parking areas shall be landscaped in accordance with the provisions set forth in 18.450.070 and any applicable Design Standards.

(History: Ord. ZRR-3373 §45, 2023; Ord. ZRR-1725; ZRR-1637; ZRR-1427; ZRR-1217; ZRR-987; ZRR-889 §18.56)

18.430.110 Deferred Construction of Parking Spaces

A portion of the parking area required under this title may remain unimproved until such time as the Planning Commission or Governing Body deems that it must be improved to adequately serve the parking demand.

- A. Such delayed construction of parking may be permitted only after the Planning Commission or Governing Body is satisfied that the initial occupancy of the premises will be adequately served by the lesser number of spaces and only after approval of a final development plan clearly indicating the location, pattern and circulation to and from the deferred parking spaces.
- B. The land area so delineated for future parking shall be brought to finished grade and landscaped, and shall not be used for building, storage, loading or other purposes.
- C. If the construction of deferred parking exceeds the allowed parking range in 18.430.150, Demand Reduction Amenities or a waiver shall be required per 18.430.170 or 18.430.200.

(History: Ord. ZRR-3373 §46, 2023; Ord. ZRR-1725; ZRR-1637)

18.430.120 Paved Parking Areas for One- and Two-Family Dwellings

Paved parking areas or customary driveways in the required yards abutting streets shall not exceed 35% of the area of such yards for one-family dwellings or 50% of the area of such yards for two-family dwellings, provided that any driveway may extend in a straight line directly from a garage to the street at a width equal to that of the garage, but not wider than 35 feet.

(History: Ord. ZRR-3373 §47, 2023; Ord. ZRR-2228 §1, 2000; ZRR-1925 §5, 95; ZRR-1725; ZRR-1637)

18.430.125 Maintenance of Gravel Driveways

Where permitted, gravel driveways and parking areas shall be maintained to meet the following standards:

- A. The surface of the driveway or parking area shall consist of a uniform layer of gravel evenly distributed from edge to edge, and shall be free of bare spots and vegetation.
- B. The depth of the gravel layer shall be an average of 2 inches and a minimum of 1 inch.
- C. The material used for a gravel driveway or parking area shall be rock or crushed stone not more than 1 inch in diameter and shall not contain dirt, sticks, construction debris or other foreign material. Sand, rock powder or other similar material less than one-eighth inch in diameter is not prohibited, but shall not be included in the measurement of minimum gravel depth.

(History: Ord. ZRR-1747 §2, 92)

18.430.130 Small Car Parking

In District CP-0, and for schools, churches and any special uses deemed by the Planning Commission and Governing Body to have low parking turnover and high user familiarity with the parking area, 30% of the required off-street parking spaces may be designated for small cars. Parking stall dimensions for small cars shall be not less than 8 feet by 16 feet, plus the necessary space for maneuvering into and out of the stall. Acceptable aisle width, layout of spaces, and overall design of the parking area shall be shown on the final development plan. A minimum of 30 parking spaces must be required before a portion of the spaces can be built to the smaller standard.

(History: Ord. ZRR-1725; ZRR-1637)

18.430.140 Stacking Requirements for Drive-Thru Facilities

- A. In addition to meeting the off-street parking requirements of this Section, drive-thru facilities shall meet the following stacking requirements:

Use Type	Minimum Stacking Spaces	Measured From
Fast Food Restaurant	11	Pickup Window
Coffee	16	Pickup Window
Other Uses	Determined at the time of Final Development Plan	

- 1. One stacking space shall equal 20 feet.
- 2. All stacking shall be located in a designated drive-thru lane. Each drive-thru lane shall be clearly defined and designed to not conflict or interfere with other vehicular traffic using the site, parking spaces, or pedestrian routes.
- 3. If provided, a bypass lane shall be clearly designated and distinct from the stacking area.
- 4. Stacking amounts may be adjusted at the time of final development plan approval, based on stacking impacts to the public street system, internal parking lot circulation, access to adjacent properties or private drives and historical averages of the tenant. Additional

traffic studies may be required to substantiate the need for proposed stacking. Site constraints or reuses of existing drive-thru facilities may be taken into consideration when reviewing reduced stacking.

(History: Ord. ZRR-3373 §48, 2023; Ord. ZRR-1725; ZRR-1637)

18.430.150 Required Parking

A. Parking for the zoning districts and certain specific land uses shall be as indicated in the following table.

1. Where a specific use is listed below, parking shall be provided as indicated for that specific use, and the required parking for that zoning district does not have to be provided in addition to it.

2. See 18.430.170 for Shared Parking Reductions. Permission for such shared parking must be received as part of a preliminary or final development plan approval.

B. Where on-street parking is allowed, a maximum of 50% of the required parking may be provided on-street, subject to good traffic engineering design principles, provided the on-street spaces are located adjacent to the site. On-street parking spaces being counted towards the required parking must be identified on plans at time of submittal to the City.

C. When designated as Area A or Area B in the table below, parking for uses in the following districts and for the following specific uses is required within the range specified according to the Map of Parking Rates in 18.430.160.

1. Projects providing parking outside of these ranges must provide Demand Reduction Amenities according to 18.430.170.

Zoning District / Land Use	Required Parking	
	Area A	Area B
A	2 off-street per dwelling	
RE, RP-OE, RP-OS, R-1, RP-1, R-1A, RP-1A, RP-1N, R-2, RP-2	2 off-street per dwelling (1 must be covered) Exception: 1 covered parking space is not required for dwellings approved as one of the City's adopted portfolio home designs	
R-3, RP-3, RP-4, RP-5, RP-6, PRN	1 to 2 spaces per unit	1 to 2.5 spaces per unit
C-O, CP-O, C-1, CP-1, C-2, CP-2, C-3, CP-3, BP, M-1, MP-1, M-2, MP-2	1.5 to 2.5 spaces per 1,000 square feet of gross building area exclusive of restaurant uses	2.5 to 4 spaces per 1,000 square feet of gross building area exclusive of restaurant uses
MXD	See the Parking Requirements section of the Mixed Use Design Standards (MUDS 7.1)	
DFD	See the Parking Requirements section of the Downtown Form-Based Code (DFD 703)	
Restaurants, clubs or drinking establishments (excluding MXD and DFD)	6 to 12 spaces per 1,000 square feet of floor area	
Assembly halls, theaters, athletic fields and other seating facilities	1 space for each 3 seats	

Zoning District / Land Use	Required Parking	
	Area A	Area B
Hotels, motels, dormitories and similar boarding facilities	1 space for each guest room plus 0.15 spaces for each employee	
Hospitals, nursing or convalescent homes, or congregate care facilities	1 space for each 3 beds plus 1 space for each staff person or visiting doctor	
Churches and Religious Facilities (including contiguous facilities)	1 space for each 4 seats in the main sanctuary	

D. Any use not included in the parking requirements in this title shall be assigned a parking requirement by the Planning Commission or Governing Body.

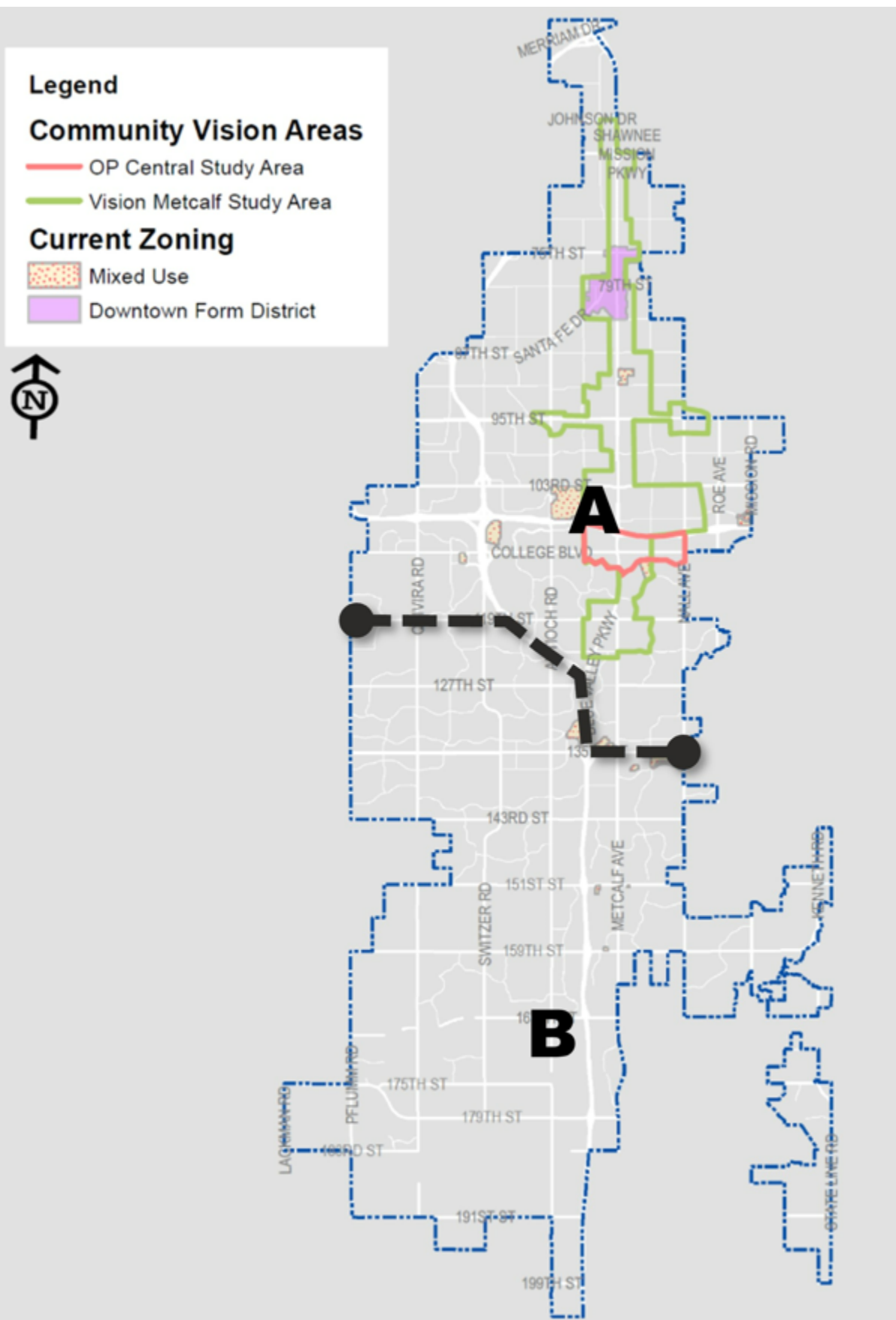
E. Parking requirements for special uses not identified in the above table shall be determined at the time of plan approval for the special use permit. The parking requirement of the underlying zoning district or the most analogous zoning district may be considered. The Planning Commission and Governing Body may approve the requested parking after considering documentation and/or study provided by the applicant, staff's recommendation, and giving decisive weight to all relevant facts, including but not limited to the following factors:

1. The underlying zoning district,
2. The surrounding land uses, including impact on adjacent residential neighborhoods,
3. Characteristics of the use, including hours of operation and peak parking demand times,
4. Similarity to required parking for other comparable uses in other zoning districts,
5. Availability and accessibility of alternative parking, and
6. Existing or potential shared parking arrangement.

(History: Ord. ZRR-3503; ZRR-3373 §49, 2023; ZRR-2156, §6, 99; ZRR-1725; ZRR-1637; ZRR-889 §18.50)

18.430.160 Map of Parking Rates

Parking rates for zoning are reflected across two areas: Area A and Area B shown in the map below. Area A has lower parking demand due to greater density of land uses, a greater mix of land use types, an increased presence of mixed-use developments, and improved access to non-motorized transportation options. Projects with direct access to the dividing street line between Area A and Area B can use either standard.



(History: Ord. ZRR-3373 §50, 2023; Ord. ZRR-1725; ZRR-1637; ZRR-889 §18.50)

18.430.170 Authority to Adopt Shared Parking Reductions & Demand Reduction Amenities

The Shared Parking Reductions & Demand Reduction Amenities shall be adopted and amended by the Director and shall be on file in the office of the Director, and such document is hereby incorporated by reference. The Director may approve alternative or innovative practices that implement the intent of the standard and provide equivalent public benefits without significant adverse impacts on surrounding development.

- A. Developments with more than one land use type may reduce on-site parking allotments according to the referenced Shared Parking Reduction table. A development seeking a shared parking arrangement may also cite the Shared Parking Reduction table in justifying the total on- and off-site parking provision.
- B. Following application of the Shared Parking Reduction table, projects providing parking outside of the ranges provided in 18.430.150 must provide Demand Reduction Amenities. All proposed shared parking shall be identified by the applicant at the time of application submission.

(History: Ord. ZRR-3373 §51, 2023; Ord. ZRR-1725; ZRR-1637)

18.430.180 Covenant to Maintain Private Parking Facilities

Prior to the issuance of a site development permit or building permit for the construction or major reconstruction of any access drive or parking area on privately-owned property in the City, the owner shall execute a Covenant to Maintain Private Parking Facility agreement and record that document with the Johnson County Register of Deeds. Provided, however, this requirement shall not apply to any drive or parking area for any federal, state, county, municipality; or public school district that is a political subdivision of the State of Kansas.

(History: Ord. ZRR-3373 §52, 2023; Ord. ZRR-3135 §1, 2016; ZRR-2839 §2, 2010)

18.430.190 Loading Areas

Loading areas adequate to serve the uses or categories of uses proposed shall be determined at the time of site plan or preliminary development plan approval.

(History: Ord. ZRR-3373 §53, 2023)

18.430.200 Parking Waiver

The Planning Commission or Governing Body may grant a waiver from full or partial compliance to allow amenities commensurate with the proposed improvements if it is found that the proposed amenities meet the intent of the ordinance without creating detrimental impact on surrounding properties (see 18.430.170). Consideration of the waiver is subject to review of documentation and/or study provided by the applicant, to be reviewed with staff's recommendation and all relevant facts, including, but not limited to the following:

- A. The characteristics of the use, including hours of operation and peak parking demand times;
- B. Whether the proposed use is new or a small addition to an existing use;
- C. Design and maintenance of off-street parking that will be provided;
- D. Impact on adjacent residential neighborhoods;
- E. Existing or potential shared parking arrangements or amenities;
- F. Availability and accessibility of alternative parking; and
- G. Property or ownership hardship (For example shared parking or similar agreements and requirements between adjoining property owners).

(History: Ord. ZRR-3373 §54, 2023)

18.430.210 Nonconforming Parking

All developments approved prior to February 1, 2023 with existing or proposed parking outside of the allowed parking range shall meet the required parking or provide amenities for the parking provided outside the allowed range or shall be granted a waiver per 18.430.200.

(History: Ord. ZRR-3373 §55, 2023)